IN THE CIRCUIT COURT OF THE
SECOND JUDICIAL CIRCUIT, IN
AND FOR LEON COUNTY, FLORIDA.

ALBERT GORE, JR., et al.,
Plaintiffs,

vs.
KATHERINE HARRIS, as Secretary of State, STATE OF FLORIDA, et al.,

Defendants.

_____/

CASE NO.00-2808

IN RE: Contest Trial
(VOLUME IV, PAGES 525 to 758)

BEFORE: HONORABLE N. SANDERS SAULS
Circuit Court Judge

DATE: Sunday, December 3, 2000

TIME: Commenced: 9:00 a.m.
Concluded: 11:18 p.m.

LOCATION: Leon County Courthouse
Courtroom 3D
Tallahassee, Florida

REPORTED BY: B. J. QUINN, RPR, CMR, CP
Certified Realtime Reporter
Notary Public in and for the
State of Florida at Large

FILED
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LEON COUNTY, FLORIDA

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PROCEEDINGS

THE COURT: Cross Examination?

MR. COFFEY: Thank you, Your Honor.

CROSS EXAMINATION

BY MR. COFFEY:

Q Mr. Spargo, in addition to the things you described as your observations, with the Canvassing Board and the whole recount dynamic, there were some additional things that took place as well, weren't there?

A Yes.

Q In fact, we can get this -- I want to call your attention to the photograph behind you, Mr. Spargo, and ask if that's you?

A Yep, that's me sitting there in my blue jeans.

Q I gather you're a part of a group of demonstrators, does it appear, sir?

A I was there as an observer on the 19th floor, and the people around there were observers, as well, several of them who I see are lawyers.

Q Yes, sir. And were you holding your hands for any particular reason, or does it appear that you were clapping and chanting and sort of yelling together, correct, sir?

A Yes.

Q And, in fact, that sort of event is what took place between the morning meeting on Wednesday, November 22nd, when

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the Canvassing Board chose to go to a manual recount of all the undervotes and in the afternoon it was shut down, correct?

MR. TERRELL: Excuse me, this is beyond the scope of Direct.

MR. COFFEY: Your Honor, if I may.

THE COURT: He is on Cross. I'll give him some leeway.

BY MR. COFFEY:

Q That's the kind of thing that was going on, right, sir?

A That was the time period that you're describing.

Q And you're present, weren't you, when Supervisor Leahy, and the others said they could do a manual recount of the undervotes, and do them at a rate of 300 an hour, you were present for that, weren't you?

A He did describe a rate, and if that's a rate he indicated. He also had so many per minute, I don't remember what the exact number was.

Q So in the morning with Judge Lehr and Judge King concurrent with the information of the Supreme Court fully available to them, and with the Canvassing Board members themselves planning on doing the recounting, they said they would get it done in time, and they would do it at the rate of 300 an hour, right?

A I'm not sure that I heard that. I heard that they stated the rate at which they would have to go forward, in order to succeed, and I'm not sure that they were even able to conclude

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that they would be done by Sunday.

Q Okay. Well, let me just show you, then, if it will refresh your recollection, page 14 of the transcript of November 22nd, 8:00 a.m., and toward the bottom of the beginning of line 19 are some statements by Supervisor Leahy.

Does that refresh your recollection, sir, about the fact that, in the morning -- and I can show you another page, where 300 an hour is also stated, that they'd have to move, but they could get it done at 300 an hour, does that refresh your recollection?

A That refreshes my recollection that there had to be some rate of accomplishment on a very tight timetable to accomplish that.

Q Uh-huh (affirmative response). So if I say I think it's doable, I think we can accomplish it, it refreshes your recollection that the Canvassing Board determined in the morning for this and other things that it would get done on time, the undervotes, only, right?

A That was what the record states.

Q And, obviously, we heard before, we all know what happened in the afternoon, it was shut down.

I want to back up a little bit and talk about this discussion you had about chads falling out, and things like that.

Now, you recall, sir, that these issues of why you couldn't proceed with the computer generated separation were

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brought to Court in Dade Circuit Court no less than two times, are you aware of that?

A I'm aware of it based on your telling me so.

Q Well, it was in the newspapers that the Republicans, and you were involved with a team that went to Court Saturday night --

MR. TERRELL: Excuse me --

THE COURT: Sustain the objection. Rephrase your question. We need questions, not statements.

BY MR. COFFEY:

Q Do you recall the fact that the Republicans went to Court Saturday night to challenge the separation process and other things that you have described here in Court before Judge Sauls today, do you recall that?

A I'm not aware of that.

Q You had no awareness that they went to Court on that weekend?

A I just -- if we're talking about the 18th, I had just arrived that afternoon in Miami, so I was not aware of that.

Q What about the following Tuesday, you are aware that the Republicans went to Court that morning, aren't you?

A Sir, I was busy enough focusing on my responsibilities of watching the process without worrying about what other lawyers were doing and where they were going to Court.

Q But my question really was: Were you, or weren't you

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aware of the fact that the Republicans went to Court on Tuesday morning, after having been previously rejected by the Dade Circuit Court, before another Dade Circuit Court Judge to challenge the procedures for separating the undervote ballots that the supervisor of the elections was undertaking?

A I'm not aware of that.

Q Not aware of it? And if I were to walk forward and show you copies of pleadings, that would not refresh your recollection?

A No.

Q We'll save time on that. By the way, you're obviously based in New York; is that right?

A That's right.

Q And New York, I think they vote with machines that use levers?

A Lever machines, generally, and some, many counties use now a punchcard system in their absentee ballots.

Q And in New York, you seem to make an issue of the fact that only the elections department personnel were handling the ballots, Your Honor, is that --

A Yeah, what's what I observed here, and I think under New York law, that's required. But --

THE COURT: Let's don't talk about New York law.

Q In Florida, though, absent an order from Judge Sauls, that the only folks that could physically handle a ballot would be

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the staff of the Elections Department and the Canvassing Board members; is that true?

A That's true.

Q Why, then, a little earlier did you indicate in response to Bush's questioning that you were troubled by that, that they wouldn't let you handle the ballots?

A I don't know I was troubled by the fact that I wasn't allowed to handle the ballots.

Q Now, you're not a Florida lawyer, so you're not aware of case laws such as Spradley v. Bailey, a First District Case, or anything like that, correct?

A That's correct.

MR. COFFEY: Your Honor, let me see if I have any more questions.

THE COURT: All right.

BY MR. COFFEY:

Q And just to be clear on one thing, with respect to the 9,000-plus ballots, respecting the undervotes that no human eyes have ever looked at, those have not been touched by anybody, to the best of your knowledge, not supervisor's personnel, no Canvassing Board, they haven't been physically touched by anyone, right?

THE COURT: If you know, if you don't know, say you don't know.

A One of the things that troubles me --

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THE COURT: If you know, say you know, if you don't, don't say anything.

A I don't know.

THE COURT: All right.

MR. COFFEY: Thank you, Your Honor.

THE COURT: Redirect?

MR. TERRELL: That's it, Your Honor.

THE COURT: Well, I have one question, if I may. You were in this building, they just put your picture on there, and you were on the floor doing what?

THE WITNESS: I was sitting down, actually, trying to get out of the way, because I was going to be perhaps the next observer.

THE COURT: What were you clapping for?

THE WITNESS: Apparently Republicans aren't very good clapping in unison, so I was trying to at least.

THE COURT: What was everybody clapping for, what was the reason?

THE WITNESS: Well, there was just some, if you will, I don't want to call it chanting, but that would be as close as it would be to some remarks that had been going on at that time.

THE COURT: What were you chanting?

THE WITNESS: The one that comes to my mind is that the press was being kept out of the area, going in, and they

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wouldn't let the press in.

THE COURT: Did you break into that building?

THE WITNESS: Absolutely not, we knew everybody, and everybody knew us, we worked together for the last two days.

THE COURT: This was a group of the observers that were already in there?

THE WITNESS: Sure.

THE COURT: I don't have any other questions, either of you have any questions that I may have inquired about?

MR. TERRELL: I do have one question.

REDIRECT EXAMINATION

BY MR. TERRELL:

Q Mr. Spargo, did you riot at any time on November 22nd, or at any time when you were in Miami in the month of November?

A Absolutely not, nor did anybody tell us to be quiet or leave. We were generally a group of lawyers who were, as you can see in the picture, sitting around waiting. Many were disappointed that they couldn't go in and observe the process, because it had been very open for the last two days.

And I think there was -- I don't want to call it frustration, but there was disappointment, I think, that they couldn't go back and see, because of the narrow confines of the tabulation room in the back corner where it was secluded from any public viewing.

Q Were you making a first amendment demonstration, I

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guess I would call it?

A It's a lovely thought. I'm not sure my mind was quite elevated to the First Amendment.

THE COURT: All right.

MR. TERRELL: That's all I have.

RECROSS EXAMINATION

BY MR. COFFEY:

Q Were you present that morning when someone stated before the Canvassing Board, page 50, line 17: "This is a full protest going on and we can't bring people in or out. We have people attempting to get into a fight with the officers or members of the media." Were you present when that was said?

A I was not present when that was said, nor can I ever imagine anything that was described that relates to anything saying that, there was no fighting, there was no rough housing there was a gracious courtesy to everybody moving in and out, the employees through the glass that we saw were smiling and laughing, and the receptionist was there all the time. This was a relatively good-natured association that was going on there.

Q Were you present with a Republican attorney?

THE COURT: Mr. Coffey.

MR. TERRELL: I guess this is hearsay, and I object. This is also beyond the scope.

MR. COFFEY: Your Honor, I'm just following up on what he's saying.

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THE COURT: You're just reading whatever it is you want to read, the next thing we'll have a newspaper in here, reading.

MR. TERRELL: I object.

THE COURT: All right.

MR. COFFEY: Can I ask one question?

THE COURT: One question.

BY MR. COFFEY:

Q Were you present when Supervisor Leahy said --

MR. TERRELL: I object.

MR. COFFEY: He gave many statements as to what happened in the transcript.

THE COURT: Sustain his objection. I don't care who was present, if somebody said something, bring them in.

MR. COFFEY: I would direct Your Honor's attention.

THE COURT: I don't need to have any direction, I'll read the transcripts, if that's in the transcript.

MR. TERRELL: That's all I have, Your Honor.

THE COURT: May the witness stand down? Call the next witness.

MR. TERRELL: Your Honor, Governor Bush and Secretary Cheney call to the stand Mark Lampkin.

MR. BECK: Your Honor is, I wanted to correct myself, I misspoke, this is apparently one witness, we have one after this, and then we'll have one witness after this.

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THE COURT: We'll see some light at the end of the tunnel.

MR. DOUGLASS: Your Honor, I think we should mark this for identification, since it was used in the examination.

THE COURT: You wish to submit that as an exhibit?

MR. DOUGLASS: Yes, sir.

THE COURT: What number would it be --

MR. TERRELL: They've marked it as Plaintiff's, Exhibit 60, Your Honor. I think it's irrelevant, but I don't object.

THE COURT: Let the record reflect the objection overruled.

(PLAINTIFF'S EXHIBIT 60 RECEIVED IN EVIDENCE.)

* * * * *

Whereupon,

MARK LAMPKIN

was called to testify and, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

BY MR. TERRELL:

Q Would you please state your name, please, sir.

A It's Mark S. Lampkin, L-A-M-P-K-I-N.

Q Mr. Lampkin, where do you live?

A Right now, in the Washington, D.C. area.

Q Where were you born?

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A In New York, actually, New York, New York, but grew up in Providence, Rhode Island.

Q What is your education, Mr. Lampkin?

A I have an undergraduate degree in Holy Cross College in Worcester, law degree in Boston College Law School, obviously in Boston, Massachusetts.

Q Are you a registered Republican?

A Yes, sir.

Q Have you worked in the Bush-Cheney campaign?

A Yes, sir.

Q Did you have occasion on November 29, to be in Miami-Dade County?

A Yes, sir.

Q What were you doing there?

A I was a Republican observer at the supervisor of elections office as they were preparing to transport under Judge Sauls' order the so-called undervotes to Tallahassee.

Q All right.

MR. TERRELL: Your Honor, may I approach the witness?

THE COURT: You may.

BY MR. TERRELL:

Q I want to put in front of you Exhibit 62, and I'm going to hand you Exhibit 63, these are Defendant's Exhibits 62, and 63.

MR. TERRELL: And, Your Honor, if the Court would indulge me, I'd like to hand them up to you at this time,

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really, for you, because they've not yet been offered, and the witness will testify about them. I don't know what we --

THE COURT: All right, sir.

MR. TERRELL: I'm sorry, Your Honor.

BY MR. TERRELL:

Q Mr. Lampkin, how long were you at the Canvassing Board of Dade County on November 29?

A From approximately 9:00 a.m. until probably physically didn't leave the building until close to 7:00 p.m. that evening.

Q All right. And while you were there, did you have occasion to meet with Miami County -- I'm sorry, Miami-Dade County officials in the elections process?

A Yes, sir.

Q Did you, for example, meet with supervisor David Leahy?

A Yes.

Q Okay. And what was you were purpose in being there?

A Well, if you will, the morning was a little chaotic, because we didn't know what was going on, and so I thought it was best that I go down to the courthouse -- excuse me, the supervisor's office to see how they were going to proceed with the transportation of the ballots.

So I got there around 9:00 a.m. And I was somewhat surprised to see that they had already started the process of -- undertaken the process of transporting. And I was immediately -- I approached David to get a sense of what they were going to do

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throughout the day, how he was going to proceed, what was going on, because that was the first day I had been in Miami.

Q Let me stop you there, you said you approached David, I'm not sure -- perhaps others know who that is, is that David Leahy?

A Yes, sir, the Supervisor of Elections.

Q For Dade County?

A Yes, sir.

Q During the course of the day while you were there, watching the ballots being boxed up to come Tallahassee, to this Court, did you receive from any Miami-Dade County official Defendant's Exhibit 62?

A Sixty --

Q Two?

A Yes, I did.

Q The same question with respect to Defendant's Exhibit 63?

A Why yes, I did.

Q Who did you get Exhibit 62 from?

A I received that from Mr. Leahy.

Q And who did you get Exhibit 63 from?

A From Mr. Leahy.

Q Were you the only person Mr. Leahy shared these with, or did you observe him giving them to anyone else?

A No. We had struck an agreement in the morning,

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Mr. Leahy and I, that I had requested copies of these documents as they were prepared, and he gave them both to me, and the democratic observers, plural, and on occasion, someone in my staff, if I happened to be out of the room.

Q Without testifying about the substance of Defendant's 62, that is, what it reflects, as matter of substance, can you describe just very generally for the record what Defendant's Exhibit 62 is?

A This is a compilation of sheets that were at the four hand tabulation tables that were in the room where the undervote segregation process was being ordered by county employees throughout the day.

There was a set of this -- I believe this is the November 8th canvas report. There was a set of these in each one of the four stations where county employees were counting out manually the number of undervotes by precinct throughout the day.

Q Was this a document that was marked on, to your knowledge, on November 29, by county officials?

A Yes, sir.

MR. TERRELL: Your Honor, we offer Defendant's Exhibit 62.

THE COURT: Without objection, it will be marked and received in evidence.

(DEFENDANT'S EXHIBIT 62 RECEIVED IN EVIDENCE.)

BY MR. TERRELL:

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Q Now, Mr. Lampkin, I want to turn to Defendant's 63. Again, without getting into the substance, because I'm going to ask about both of these exhibits in a few minutes, but for right now, just generally, what is Defendant's Exhibit 63 that Mr. Leahy gave you?

A I observed Mr. Leahy, and I believe it's his deputy, Ivy Coreman, preparing this sheet, or these sheets, I should say, at the end of the day, as they were attempting to ascertain -- they were transferring the data from the Exhibit 62, to Exhibit 63, as a record of what the actual, or undervote counts were in various precincts.

Q As it stood on November 29th?

A Yes, sir.

MR. TERRELL: Your Honor, we offer Defendant's Exhibit 63.

MR. KITCHEN: No objection, Your Honor.

THE COURT: Without objection, let it be marked.

(DEFENDANT'S EXHIBIT 62 RECEIVED INTO EVIDENCE.)

BY MR. TERRELL:

Q Let's go back, we'll come back and talk about Defendant's Exhibit 62, and 63, as time comes along, but what I would like to do is see if you can describe for us what you observed with respect to what was going on with the ballots, 625,000 ballots on November 29th, could you tell us?

A Yes, sir. As I say, I arrived around 9:00 a.m., give

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or take a few minutes, into what they -- I guess they described at the counting room, and there was a -- at that point, there were eight county employees, seated at four tables, sort of in the very first row, if you will, of the room, directly in front of the door.

And they had just begun the process whereby Mr. Leahy, and, again, I believe she is his assistant, Ivy Coreman, they would take -- retrieve from mail trays that were just to the right of those tables, precinct envelopes that contained the then segregated undervote counts from various precincts. They would grab, say, handfuls of them, and deposit them in front of the two workers at each table.

Then the workers would, one of the workers, would open the ballots from the envelopes. They would place the -- that used, spoiled envelope in front of them, then they would undertake an examination count, I call it a tabulation, so -- I think that's the most accurate way to describe it, a count of each of the precincts number of undervotes.

Then one worker would count, the second worker would then get the count from the worker who was counting, and then referring back to Defendant's Exhibit 62, mark that sheet, the tally report, in a variety of ways, depending on what the count was.

Q Mr. Lampkin, we heard testimony about 10,750 undervotes, or maybe 9,000 undervotes, we've heard

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different numbers. What was Dade County doing still counting undervotes, or trying to figure out how many undervotes there might be on November 29th, if you could tell from your observation?

A I believe -- and this is based on observations through the course of the entire day, that they were trying to actually ascertain the item number of undervotes that existed in the various precincts and absentee ballots throughout the county.

Q In fact, if you'll look at Defendant's Exhibit 62, sir, I notice there are checkmarks in ink beside some of the numbers of typed undervotes, the typed undervote column, checkmarks by some, by precinct. But then on others, I see a number, for example, handwritten, 14, instead of the typed number, 15.

In other words, there's fewer, there's one less undervote, apparently, in Precinct 42 than had previously been thought, prior to November 29th, is that your understanding of what this is?

A That's my understanding.

Q Is this handwriting on Exhibit 62 the county employee's efforts on November 29 to figure out whether they've got more ballots that could be undervotes in these precinct envelopes, than they previously thought, or even less?

A Yes, sir, that would probably be accurate.

Q Okay. And have you taken an opportunity to try to count up on how many occasions the undervote envelope for a

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precinct had, in fact, more undervotes than had previously been thought, at least according to this record?

A My -- and this is based my counting, I did this that evening, when I received it from David, that based on this sheet, which is Exhibit 62, I believe the number of precincts that had a -- I call it the increase of the undervote, was approximately 34, could be a little more, a little less. There was a tally on some of these precincts we were talking about.

Q Are you talking about 34 ballots or precincts where there was a discrepancy between the prior number of undervotes in that precinct and what somebody was apparently doing for the county on November 29?

A The 34 represents the number of precincts, where the tally sheet, Exhibit 62, has a number of undervote counted which exceeds, as you were referring to it, the typewritten undervote count.

Q So that's -- did you say 30, or 34?

A It's about 34. Like I said, the numbers are hard to discern.

Q We've got 34 precincts up. How much went down where, apparently, there were fewer undervotes than what previously they thought, according to officials?

A Again, my -- I passed through this a couple times, it's about 120.

Q That have fewer undervotes?

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A Yes, sir.
Q That's 120 precincts?
A Precincts, yes, sir.
Q Did you ask -- and listen carefully to my question, and just answer my question, so we don't return into an evidentiary problem. Did you ask Dade County officials for an explanation of these discrepancies, just, yes, or, no?
A Yes.
Q Was any explanation given to you for this discrepancy by any Dade County official?
A No, not that I recall, no.
Q All right, sir, let me now show you, or point to you, point your attention to Defendant's Exhibit 63, this is the thing that is a different kind of tabulation that you also testified David Leahy showed to you?
A Yes, sir.
Q What do you understand this document to be, and how, if at all, does it relate to Defendant's Exhibit 62?
A My understanding is -- now, I only observed Mr. Leahy and his deputy, Ivy Coreman, actually -- I guess the word is transmitting these numbers. But towards the end of the day, I don't think we have gone through all of the precincts, yet. They were trying to ascertain the exact number of precincts where the, as you call it, the typewritten undervote, there was a decrease in that number after they -- undervotes ballots had been hand counted

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by the county employees.

So they manually transferred, checked it and transferred it to this document in order to have a more exact, or a more precise number on one sheet towards the end of the day. I don't recall the exact hour.

Q And do you recall that about the time that -- or around the time that Defendant's Exhibit 63 was prepared, or at least it was given to you, that that's the point at which Judge Sauls had a telephone conference with the Miami-Dade County people and, in fact, everything stopped at Miami-Dade County?

A I'm not exactly -- frankly, at that point, I was kind of running around --

Q If you don't know, you don't know?

A Okay.

Q So you don't know?

A No.

THE COURT: For the record, I have not had any conference with any Dade County --

MR. TERRELL: May I make the record clear, I'm talking about the hearing that occurred on November 29, before Your Honor, where you stopped various activities that were apparently ongoing without our knowledge with respect to these ballots, so that the ballots could come up here, I'm talking about Your Honor's order.

THE COURT: That's where the ballots were to be

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impounded and brought up.

MR. TERRELL: That's right. That's all I'm talking about.

Q Mr. Lampkin, is it clear to you, how many undervotes, there could be in Dade County?

A No, no, sir, not at all.

Q Okay. Does it seem to be shifting?

A Oh, certainly.

Q All right, sir. Let's talk about what you observed on November 29, concerning the handling of ballots, did you observe anything on November 29 with regard to the handling of ballots?

A Yes.

Q Please tell Judge Sauls what you observed.

A Well, as I stated earlier, the first, for probably the three or four different observations that I witnessed during the course of the day regarding handling, the first was in the very beginning, top of the day, when the hand tabulators, as I've been calling them, started counting the ballots physically, removing them from a sealed envelope, counting them out, on certain occasions during that observation, I saw people grabbing the ballots not at the corners, as they had been instructed to do, but kind of midway in the ballot.

I saw people that, if there was a larger number of ballots, actually fan or do them like you do with a set of cards or something to try to straighten them out, so you could get them

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in order.

Subsequently, I saw ballots run back through the tabulation machines, and, again, that's a two-step process, where they're removing them from the ballot trays, one worker would remove them from the ballot trays, they would then go into the tabulation machine, where another worker would operate the tabulation machine.

Then a third worker, would be where they were pulling out, and where an undervote was identified, and pull it out and stick it in an envelope, another sealed envelope. Then -- are you limiting me only to the 29th?

Q Yes.

A Okay. So those are the two -- oh, the third process I saw is on occasion, either Mr. Leahy, or his Deputy Ivy, would be called over to examine ballots.

And at that point, they would, again, they might -- there would be another hand count. There would be, on occasion, an examination of the ballots in the air, trying to see if a light would go through a hole all the way through.

And then there was another segregation process in a number of precincts.

Q Let me understand you, sir, did you see a number of ballots handled physically by county employees?

A Yes.

Q Did you see a number of ballots run through for a

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fourth time through the machine?

A Yes, I did.

Q All right, sir. Did you observe any chad while you were there?

A Yes.

Q Please slowly and carefully explain to Judge Sauls what you saw with respect to chad on November 29, at the Dade County Canvassing Board headquarters?

A I saw at least four or five instances, where a -- at one of the hand tabulation tables, before a new envelope was opened, the area in front of the hand tabulators, was completely clear of chads.

Then after having counted out the various chads -- excuse me, undervote ballots, they would reseal, and then you would see one or two, sometimes three or four chad that had actually appeared in a previously cleared area on one of the hand tabulation tables.

In addition, I saw around the area that's just outside of the mechanical tabulation machines, you would see chads either on the casing, or on the floor immediately surrounding, and on the few occasions when I had an opportunity to actually look into the mechanism of the hand tabulation -- of the mechanical tabulation machines, I would see chad lying in that area, as well.

Q All right, sir.

MR. TERRELL: I'm just about through.

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Q Mr. Lampkin, I feel like I need to ask you this question, it is of some interest to some in this room. Did you participate in a riot in Miami-Dade County with respect to the Canvassing Board at any time in the month of November of the year 2000?

A No, sir.

Q Did you create any disturbance to try to shut down the Miami County Canvassing Board?

A Oh, no, sir.

MR. TERRELL: Pass the witness, Your Honor.

THE COURT: You may inquire.

CROSS EXAMINATION

BY MR. KITCHEN:

Q Good afternoon, Mr. Lampkin, my name is Deeno Kitchen. I'm one of the lawyers for the Vice President and Senator Lieberman. You were a Republican observer, and why did you tell us you were there, sir?

A I kind of have a bizarre life. Half of my stuff is still in Austin. Half is in a storage locker in Virginia, and I'm actually kind of bunking with friends until this matter is over, and I can get my life settled, again.

Q Are you a lawyer?

A Yes, sir.

Q And you are a Republican observer, is that the role you were --

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A Yes.

Q Now, sir, let me get some basic things here. Are you suggesting that Supervisor Leahy's office did anything to compromise the integrity of the undervotes as to destroy the ability of an impartial observer, to determine the voter's intent?

A That's a complex question. I'm not suggesting anything. I'm just providing the Court with my recollection of my observations over my two-day period.

Q So you're not trying to tell us you can't rely on these ballots because of the way they were handled, you're not telling us that?

A I can only state, I'm providing the Judge and the Court with my observation.

Q Do you have any reason to believe that Supervisor Leahy's office is incapable of separating the undervotes from the other votes?

THE COURT: I believe the witness is trying to just testify as to what he saw, and not whether he's got to surmise, or reason, or this, that, or the other.

MR. KITCHEN: Okay, sir.

BY MR. KITCHEN:

Q Would you agree with us, that, based on what you saw, in order to segregate or separate the undervotes from the other votes, they have to be handled?

A Can you repeat that, again?

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Q Yes, sir. In order to separate what is determined to be an undervote from the other votes, do personnel of the office have to handle them?

A Yes, but I do have a caveat to that.

Q Well did they have to handle them or not?

A I have -- yes, but I do have a caveat.

Q What's your caveat?

A Based on my observation, and I'm certainly no expert in this, I would -- I could suggest a better way that would have allowed less handling during the course of the day.

Q Okay, sir. Fine. In order to count the undervotes, do personnel of Mr. Leahy's office have to handle them?

A Yes, with the same caveat.

Q In order to package them up when a Judge in Tallahassee says: "Ship them to Tallahassee," do personnel of Mr. Leahy's office have to handle them?

A I would disagree with that.

Q They don't?

A No, because --

Q You disagree, that's fine.

A Because, what they did, is that added an extra step at that point, because I believe there would have been a way to transport the entire previously secured ballot box to Tallahassee, as opposed to what they did, which was to read -- well, I guess, another time remove the trays, and put them into smaller boxes, so

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I would disagree with you on that.

Q So you say, you have a better way to pack them up and transport them than they have?

MR. GREENBURG: Let the record reflect, please, that Dade County's transporting of those ballots, both the first and second time were pursuant to orders of this Court, and at the second time we were told not to touch them further but pack them up, and there was not a question of a better way or other way, but it was pursuant to Court order and we had to do it the most expeditious way.

THE COURT: Let the record so reflect.

BY MR. KITCHEN:

Q Well, sir, Mr. Lampkin, can you, sir, for the Court, and for all of us, tell us the procedure of the Miami-Dade County supervisor's office for identifying undervote ballots?

A Again, I came in midstream in some of the identification. But as I observed it on the 29th, in short, here's how it proceeded.

They would remove a particular precinct. They would -- if it had -- if the undervote had been previously segregated. They would take that segregated vote in its envelope, and give it to one of the two men or two women teams, actually, who would then open, count.

There were circumstances where, if the overvote was higher after the first -- after the hand tabulators counted, then

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as previously recorded on Exhibit 62, either David, or Deputy Ivy would come again, and make some determination for what they determined to be clear votes and then make a final call on the number and then reseal them.

There were other ballots that had not gone to the tabulation machines for segregation where on the day of the 29th, the entire precinct was run through for the first time -- excuse me, I should say for the first time that day, there was a manual segregation by one of the workers, that envelope was then transferred to the hand tabulators, who would then count it, again, and that secondary process would commence if there was a discrepancy on the hand tabulation, Mr. Leahy, or Ivy Coreman would come over and count them, again.

Then there was a third attempt to look for undervotes based on his compilation of information from Defendant's Exhibit 63, Mr. Leahy had determined that any precinct which had a lower undercount record from the hand tabulation, than the one that was determined on the canvassing report of the 8th, those began the process, I should say, and I believe he only got through 50 or 75, 100 of those, were put back through the machine and that's when we received word either through a conference call or some other means, Judge Sauls ordered that all activity regarding the ballots should stop.

Q You don't question in any way the honesty or integrity of the office, do you?

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A No, I mean, they're very good people.

Q Based on what you observed, were hard-working public servants, they were doing their best to count the votes as they were supposed to?

MR. TERRELL: We've been through this.

THE COURT: I believe we have.

MR. KITCHEN: Well, if we have, Judge, would you tell me what his answer was?

THE COURT: I think he said several times that he thought they were fine people down there. He's just testifying as to what he says he saw them doing.

BY MR. KITCHEN:

Q Would you, sir, accept Supervisor Leahy's description of the method in which you determine the undervote and identify undervote ballots in his office as the way it's done?

MR. TERRELL: I object, none of us know what David Leahy is going to say.

THE COURT: Mr. Witness, do you know what Mr. Leahy's system was?

THE WITNESS: As I said, based on my observation as to what was going on.

THE COURT: You may inquire.

BY MR. KITCHEN:

Q Can you, Mr. Lampkin, identify or define for me what an undervote is in that office that they're talking about, what they

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used to define it?

A As I observed it through the course of the day, they were identifying undervotes where there was no clear vote. Again, that -- I believe is Mr. Leahy's term in the presidential ballot area.

That's how they were defining it to be an undervote.

MR. KITCHEN: Just a moment, please, Judge. Thank you, Mr. Lampkin.

MR. KRAFTCHICK: Can I ask this witness a couple question?

THE COURT: You may.

CROSS EXAMINATION

BY MR. KRAFTCHICK:

Q Mr. Lampkin, you understand where the number of undervotes comes from in the first place?

A It all depends what number. There are only so many numbers.

Q Let me see if I can explain it to you, you start with the precinct?

MR. TERRELL: Excuse me, I object to counsel testifying, he can ask questions.

Q We'll do it through questions, all right, sir?

THE COURT: All right.

Q Let me start with the precinct, we start with the precinct and we come up with a number of ballots for the precinct,

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right, can you do that?

A Are these incremental questions.

MR. KLOK: Your Honor, can I object, please, it seems the problem we have is there's a discrepancy between two documents, and now apparently counsel is going to take this guy and try to explain the discrepancy for Mr. Leahy's office. If they want to explain how it happened, they should not put us through this.

MR. KRAFTCHICK: We're going to make sure his observations are consistent.

THE COURT: Let's don't testify.

BY MR. KRAFTCHICK:

Q You start with a precinct and you find out how many ballots there are, that's something you can count?

A I'm not understanding where you're going.

Q If you know, when you have a set of ballots, you have a number that reflects the number of presidential votes?

A I believe that to be true, but it's unclear.

Q There's also some overvotes, correct?

A Again, I believe that to be true, but I'm not sure.

Q If you add together the presidential votes, and the overvotes, and then subtract them from the number of ballots from the precinct, that ends up as your undervote, do you understand that?

A I don't know.

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Q Let me ask you this, sir: When you were observing, was it your observation that what Mr. Leahy was trying to do was to make sure that the undervote that he originally had from the precinct fully matched up to the number of ballots pulled out by the machine?

A Frankly, I'm not sure what he was trying to do, because, as I recall, and I think -- actually, these documents don't reflect if there are precincts where, in finality, and I'll put that with quotes around it, the number of hand tabulated undervotes exceeds the number that was ascertained on November 8th. So under that premise, and during the course of the day, that's why I objected to what was going on.

Q So what Mr. Leahy was trying to do was to reconcile --

THE COURT: Sustain the objection. I think the witness started off by saying he thought what they were trying to ascertain, so that's all the witness can testify to. Now, if there's some other witness that is going to come in and explain that, that the contradict it or explain it.

Q One last question, anything about your observations that's inconsistent with the process of trying to match up the undervote with the number of cards?

A Yes.

Q What was inconsistent about it?

A I thought running the ballots through the machine, what appears to be a fourth time, was actually, you could cause the

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ballots -- you could cause there to be a net increase in the total number of undervote which would undercut that very point.

Q But that was, in fact, the very thing that the Court had ordered us to do, or allowed us to do in previous cases where we're supposed to run it through the machine to pull out from the undervote, did you know that?

MR. TERRELL: Excuse me, he's testifying, Your Honor.

THE COURT: Sustain the objection.

BY MR. KRAFTCHICK:

Q Sir, do you know any way to pull out the undervote other than to put it through the machine or to hand count it to find out which one is the undervote?

A I don't know if there's any other way.

Q And you would leave that to Mr. Leahy to dig that out, right?

A I thought we were operating under Judge Sauls' order that day, not the discretion of the supervisor.

Q The supervisor does have discretion to handle the ballots?

MR. TERRELL: I object, Your Honor.

THE COURT: I sustain.

MR. TERRELL: No further.

THE COURT: May this witness stand down and be excused? Without objection, call the next witness.

MR. BARTLIT: Governor George W. Bush and

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Dick Cheney call as their last witness, Shirley King.

MR. DOUGLASS: Your Honor, filed with the Court previously is a stipulation of the facts, concerning the contest as it relates to Nassau County. Miss King is the Supervisor of Elections in Nassau County. We don't believe that there's any issue of facts that aren't covered in this stipulation, and that's why we entered into it.

THE COURT: Was this stipulation intended to cover the entire case between counts for the -- for Nassau County?

MR. DOUGLASS: That's the way Mr. Mullin approached it.

MR. BECK: We didn't sign the stipulation.

MR. KLOK: We object to it.

THE COURT: You didn't.

MR. BECK: Nothing from George Bush's campaign.

THE COURT: This is the Supervisor of Elections, and the Canvassing Board's attorney --

MR. BECK: Yeah. If they want to sign it now --

MR. TERRELL: That's fine, other parties are not bound.

MR. KLOK: The Secretary is not bound, as well.

MR. DOUGLASS: I would have tried, but they probably wouldn't have been bound anyway.

MR. BECK: We absolutely would not have.

THE COURT: Let's proceed. Where is the next witness?

* * * * *

Whereupon,

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SHIRLEY KING

was called to be testify and, having been first duly sworn, was examined and testified as follows:

THE COURT: You may proceed.

DIRECT EXAMINATION

BY MR. BARTLIT:

Q This microphone is -- you have to move it forward a little bit. What is your name, please.

A Shirley N. King.

Q And where do you live, Miss King?

A On Amelia Island, Nassau County.

Q That's up in the northeast part of the state just north of Jacksonville?

A Yes, sir.

Q At the time of the November 7th election, did you have any official position with regard to the election?

A Yes. I'm the Supervisor of Elections.

Q How long is had you -- for what county were you the Supervisor of Elections?

A Nassau County.

Q How long have you been Supervisor of Elections for Nassau County?

A For 20 years.

Q About how many elections had you handled in your capacity as Supervisor of Elections up there?

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A Quite a few, probably 35 to 40, at least.

Q And, again, I know it's difficult, but if you could just speak up a tad, that would be great. Have you had any problems in the past with any elections up there?

A No, sir, I haven't.

Q Now, let's take a look at the other members of the Canvassing Board that night of November 7th, 2000. Who were the other two members?

A Our county judge.

Q And what was his name, please?

A Robert Williams.

Q Do you know how long he had been a county judge up there?

THE COURT: Let's get oriented, that's over there.

MR. BARTLIT: Over there.

(LAUGHTER.)

BY MR. BARTLIT:

Q Do you know how long he had been a judge? It doesn't make a great deal of difference.

A I'm not sure, but I they we might have worked together for 16 years or more.

Q So there's you, Judge Williams, and who is the other member of the Canvassing Board that night?

A Dave Howard, David Howard.

Q Now, let's turn to the events of the 7th and the 8th.

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Let's first take a look at Exhibit 52, which is on your monitor, and on the big screen. Are those the three kinds of ballots that were used in the election that night, Miss King?

A Yes.

Q Now, we see we've got A, and B, and C?

A Yes.

Q Now, the A ballots have a red stripe down the side, how come?

A That's to identify one ballot that the presidential race is on, and it also tells us exactly how electors voted in that particular election.

Q Now, for how long over there in Nassau County have you had the presidential election ballots have a red stripe down the side?

A Oh, for quite some time, but not always.

Q Now, that evening, the evening of November 7th, did you run the red A ballots, do a machine run of the red A ballots separately from the other ballots, the B and C ballots we see up there?

A No, sir, not on election night.

Q Did you, on election night, did you run all the ballots together through your machines?

A Yes, sir.

Q Now, on November 8th, the next day, did you do a machine recount, please?

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A Yes, sir.

Q Now, when you did the machine recount, would you tell the Court how it is you did it?

A Well, the cards are placed in what we call a transport case, and they are put just one right beside the other.

And in doing so, sometimes the red is up, and sometimes it's down.

Q Now, when you say the red is up, and sometimes down, you're saying sometimes, when you take all these cards and you put them in the case, sometimes the red stripe is on the top side, and sometimes it's on the down side?

A Yes, sir.

Q Now, in this particular election, were you deprived of the regular person that worked with you so closely of all these years?

A Yes, sir, I certainly was.

Q And who was that?

A Judy Tiner.

Q We look here, we see Judy A. Tiner, Democratic candidate, right?

A Yes, sir.

Q Were you going to retire after --

A Yes, sir.

Q And have you in fact retired?

A No, sir, not until December 31st at midnight.

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Q In any event, so, what kinds of duties had Miss Judy A. Tiner done for you in past elections, please?

A She is the assistant supervisor, and she has been my right arm for many years, ten to be exact.

Q Now, why is it that you didn't have the benefit of her experience on this particular Nassau County election?

A Because she is a candidate, and, really and truly, she is supposed to step down, especially if she is going to be on the ballot -- if she is on the ballot the night they're actually tabulating the votes for that candidate.

Q Now, I've met with you, haven't I, and with your lawyer, Mr. Mike Mullin, I'm sorry, the handsome gentleman, sitting here, with the red tie?

MR. MULLIN: Thank very much.

A Yes.

MR. BARTLIT: And I'm going to put a document on the screen, which is a demonstrative, Your Honor, and we'll switch over here, if we can, Bill.

Q And is that the data that you gave me in the presence of your counsel?

A Yes.

Q Now, it says, and this is my handwriting for the record, this will be a demonstrative, Your Honor, on November 7th, you did a machine recount of the A ballots, and you told me you got 25,387, right?

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A Yes, sir.

Q And then on the next morning, did you do the full machine recount of the A ballots, right?

A Yes, sir.

Q Now, Miss King, did you just, from all of the ballots that you had stored in the boxes, did you just sort out and attempt to pick out the red stripe A ballots?

A Yes, sir.

Q And when you ran those A ballots, those presidential ballots, what total did you get?

A On the day of the 7th -- on the day of the 8th we got 25,169.

Q Now on, the 8th --

A On the 8th.

Q Which of the two counts, number one, or number two, did you certify up to the state?

A Tricky question. I'm not sure I'm following you. I have certified both the 7th, and the 8th. The question, again?

Q The question is: On the 8th, after you did the machine recount here, which of the two did you certify that day?

A On the 8th, I certified the automatic recount.

Q And when was it that, for the first time you became personally aware of this discrepancy between the machine recount of the A ballots, and the first count of the same ballots?

A I regret to have to say but it was on the 9th -- at

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nine o'clock on the day of the 9th.

Q And how did you become aware that there was this discrepancy?

A I had had a chance to look at the figures, and also Mrs. Tiner came in, and she was bringing it to my attention at the same time someone brought it to the attention of our county judge, and all three of us were scrambling for the telephone.

Q You remember looking at all of the reports of all the machine recounts all over the state and seeing you were the only county in the entire state that the second machine recount went down over the original election night recount?

A Yes, sir, I noticed that, and also the Judge wanted to know how could that be possible.

Q And when you say, "the Judge," you're talking about Judge Williams?

A Yes, sir.

Q Now, did you make an effort to try to figure out how in the world you could be the only county in the state where you could do a machine recount twice, and the second machine recount could be lower? Did you consider that?

A Yes, sir. Almost immediately we knew what had happened, and we proceeded to try to correct this.

Q Now, I put on the screen a chart that -- you remember you and I drew that on the wall of my office?

A Yes.

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Q And if we look at it, we can see that there's a lot of the red ones that are turned up, and there's a few that are turned down?

A Yes.

Q Now, let's go through, and this is, again, a demonstrative, not offered for any mathematical, but just to make a point.

Let's turn to see what happens next. And, again, we did this the other night in my office, is that what happened, did somebody go through all these jumbled up ballots and try to pick out the red ones?

A Yes, that's correct.

Q Now, normally, would Miss Judy A. Tiner do that or at least supervise it in the past?

A She would have supervised it, or, yes, Judy would probably pull them herself rather than having anyone else pull them.

Q But as we heard, she was running to be your successor as a Democrat?

A Right, if she didn't pull them, she would have seen they were pulled and there's also a way of knowing we have the correct number, because we know how many people voted on the 7th, and if your red card goes through, then you compare that number, and it will be the same.

Q So we're now talking about the machine recount, and you

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told us how the substitute people you had went through the box and tried to pick out all the red A ballots, the presidential ballots?

A Yes.

Q And was the next thing you do, did you tell me it's your belief -- now, nobody knows this, because those have been sealed up, is it your belief that what happened is that somebody missed some of the red ones because they were turned upside down and they just, in the flurry didn't see them all?

A That's correct.

Q But just as you told me the other night, Miss King, nobody can know that at the present time because they've been sealed up tight since?

A Yes, sir.

Q Was the next thing that was done, the A ballots that you were successful in removing, were taken and run through the machine, and I've just drawn a box here that shows the machine; is that right?

A Yes.

Q And when you did this, although you didn't know it until the 9th, the numbers that were counted was 218 ballots less than the ones that were counted on election night, correct?

A That's correct.

Q Now, and then what happened is after you counted the red ones, the red ones you counted were all put back in the same big box, right?

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A Yes.
Q And after that, what did you and the other Supervisor of Elections do with all these ballots after they were put back in after the second machine count?
A The boxes are closed and they're sealed.
Q How are they sealed?
A We have a special tape with the signature of the Canvassing Board placed on them, on the transfer boxes that are sealed up.
Q And you all, then, sign them with your initials across it?
A If not all, we at least have the Judge do that.
Q Judge Williams?
A Yes.
Q Since the second machine recount was run on the 8th, have those seals ever been broken to this minute?
A Not since the 8th.
Q Now, you told us that you conducted this recount after -- when was it announced in the area up there, that the machine recount had been 218 votes short of the election night machine recount?
A When did I announce that?
Q No, that was a bad question, I'll rephrase it.
Did it become -- well, did you, at some time, announce in Nassau County, that the second machine recount had come up

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short of the election night machine count?

A Yes, I talked with many people about that.

Q I'm going to show you Defendant's Exhibit 69. Counsel was just handed it, it's a letter from somebody that says they want to have a count.

MR. DOUGLASS: November 22nd was the date the letter was sent.

MR. BARTLIT: Yes, sir, and I'll show this to the witness.

BY MR. BARTLIT:

Q It's to Shirley King, November 22, from a lawyer named Mr. Wood, and I'll ask you if you can identify that letter, did you receive it, please.

A Yes, I did.

MR. BARTLIT: And then with the Court's permission, I'll put it on the screen.

THE COURT: Any objection?

MR. DOUGLASS: No objection.

THE COURT: Without objection.

BY MR. BARTLIT:

Q Mr. Wood says he is an attorney for the Nassau County Republican Party, and it says your letter to the Division of Elections indicates the recount was flawed and results in a loss of 218 ballots, and then he says he wants this -- he says, "Please consider this, Exhibit 69, is an urgent request to consider an

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appropriate count at your earliest convenience."

Now, after these events, did you suggest doing a recount, another recount?

A I'm not sure if it was another request made after that letter. But, on many occasions, I did request a recount.

Q Could you get anyone to give you authority to let your canvassing board in Nassau County there, to do a third count to see what the problem was?

A I could not get permission to open the -- to break the seals on the ballot cases.

Q Did you -- I'm sorry to interrupt. Did you contact the state Division of Elections for advice?

A Yes, I did.

Q Did you get advice?

A Verbally.

Q And what was the -- who were the people you talked to up at the state Division of Elections?

A Connie Evans, Clay Roberts, and Ed Cast (phonetic).

Q And what advice did they give you?

MR. BARTLIT: And this is not offered for the truth of it, Your Honor, only as to what she was told and heard.

Q What advice did they give you?

A If I remember correctly, it was to -- that would be up to the Canvassing Board, the Nassau County Canvassing Board.

Q Did they suggest you convene another board meeting to

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consider this?

A Yes.

Q Did you convene another board meeting?

A Yes.

Q Now, you told us earlier that the board was composed of you, Judge Williams, and David Howard. Was David Howard present at the reconvened meeting of the board?

A He was at one, and he wasn't at the other, and I don't know which one you're referring to.

Q How come he wasn't at the other?

A He had gone out of town.

Q Was Mr. Howard replaced by another board member when he was out of town?

A Yes, he was.

Q Now, if we look at our screen, we'll see that another one of the people running here was --

A District 5. District 5, go down.

MR. MYERS: Down to the bottom of that list.

MR. BARTLIT: Thank you.

A First candidate under District 5.

Q It's Marianne P. Marshal?

A Yes.

Q Was she the one that replaced Mr. Dave Howard on the Canvassing Board?

A Yes.

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Q Now, when was the Canvassing Board meeting held when she showed up to replace Mr. Howard?

A The morning after Thanksgiving.

Q The 23rd, 24th? Now, at the time she showed up, the day after Thanksgiving to replace Mr. Howard, do you know whether she won her election for county commissioner?

A Yes, she most definitely won.

Q Was she still a candidate the day after Thanksgiving, had she been sworn in?

A She was no longer a candidate, and she had been sworn in.

Q Did you post what you consider to be legal notice of the meeting the day after Thanksgiving to consider the discrepancy between the two recounts?

A Yes, there was -- we did notify the people.

Q Could you give us, in a nutshell, the kind of notice you gave for this meeting?

A There's three entrances to the courthouse annex where the meeting was held and there was a notice on all three doors. There was one at the public works, and our county attorney makes sure they were posted at the temporary courthouse, across from the courthouse.

Q Was there anything in the newspaper?

A It was in the newspaper.

Q And now we're coming into the meeting on Friday, the

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day after Thanksgiving, was anybody there?

A Yes, people from out of state were there.

Q From out of state?

A South Carolina, Georgia.

Q How many people were there?

A Somewhere in the neighborhood of 50, I'm assuming. A very small area.

Q Was it in any way a contentious, or a -- was it a contentious meeting?

A I'm not sure I know -- understand what you mean.

Q Well, was there -- did people get hot? Were people arguing and fighting, and, you know, the kind of thing that --

A I feel like I was the only one that got hot.

Q Was it a peaceful meeting?

A It was very peaceful, and I had people there with signs: "Support Mrs. King."

Q Now, at your meeting you had the day after Thanksgiving, did you vote to amend the November 8th certification?

A Repeat, please.

Q At the meeting you had the day after Thanksgiving, did you vote to amend the November 8th certification of the machine recount?

A Yes, sir.

Q And what was the vote, please, Miss King?

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A Three-to-zero.

Q And what count did you vote to send up to the Secretary of State in your amendment?

A The vote of November the 7th, 2,387 (verbatim).

Q By the way, this 218 votes, those aren't Bush votes or Gore votes, those are just a total difference in ballots, right?

A Yes, sir.

Q Now, when you voted three-to-zero to amend -- why did you vote to amend the certification, and send up the original November 7th machine count, why did you do that?

A Why?

Q Why did you do that?

A Because I had lost 218 votes in Nassau County, and I wanted them counted. I wanted every vote to count.

Q Quite a few people have been saying that.

A Right, and I've been sleeping on the couch saying: I want my vote to count, too.

Q Did anybody at the meeting stand up and object to your three-to-zero vote to include the -- to amend your certificate to include the original count of 25,387 A presidential ballots?

A Yes, sir.

Q Who was that?

A I believe, if my memory serves me correct, Don Cascone (phonetic).

Q Who is he, please?

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A I think he's the attorney for the Democratic Party.

Q Did he give a speech or talk?

A He spoke to us about what he thought we had done incorrectly.

Q Did you give him all the time he wanted to address you?

A Yes.

MR. TERRELL: That's all I have. Pass the witness.

THE COURT: Mr. Klok.

MR. KLOK: No questions.

CROSS EXAMINATION

BY MR. DOUGLASS:

Q Miss King, I'm Dexter Douglass and I represent Vice President Gore and Senator Lieberman.

MR. BARTLIT: It's a distinguished honor to operate the equipment for a distinguished boy like Mr. Douglass.

MR. DOUGLASS: I tell you having you as an assistant, gives me some pause.

THE COURT: Please continue.

MR. DOUGLASS: We'll save time.

BY MR. DOUGLASS:

Q You're familiar with the fact that Nassau County has filed a stipulation of the pertinent facts?

A Yes, sir.

Q Mr. Mullin went over that with you?

A Yes, sir.

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Q And that's presented to the Court as the bare bones fact of what happened in this case, correct?

MR. BARTLIT: Your Honor, I don't think the witness ought to be asked to characterize a legal stipulation.

MR. DOUGLASS: Well, we're going to ask some questions about it.

THE COURT: Well, just ask her if -- did her attorney consult with her and furnish her a copy of this stipulation before it was -- before it was signed by counsel.

BY MR. DOUGLASS:

Q That's correct, isn't it, Miss King?

A I'm not sure I understand.

THE COURT: Did you --

MR. DOUGLASS: Excuse me, go ahead.

THE COURT: Did your attorney go over and show you this stipulation of facts prior to the time that he signed the stipulation.

THE WITNESS: If you're talking about what I think you are, yes.

THE COURT: Let me show you, this is called a stipulation of facts.

THE WITNESS: Yes. Thank you. I'm sorry.

THE COURT: Overrule the objection.

BY MR. DOUGLASS:

Q And most of the things you're talking about are covered

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in that stipulation, are they not?

A Yes.

Q For example, as I understand the factual events as they occurred, that we're discussing. On November the 7th, 2000 election date, that night you got the vote which you testified to?

A Yes.

Q And that was the unofficial return, at least at that time?

A At that time, yes.

Q And then you were required, as you understand it, to do an automatic recount because of the closeness of the race statewide?

A That's correct.

Q And on November the 8th, that recount was done?

A Yes.

Q And that amount of votes that was determined by the automatic recount, was then certified to the Secretary of State or to the Canvassing Commission as the correct vote from Nassau County; is that correct?

A That's correct.

Q And then after how many -- let's see. You've got this letter, which was not -- you didn't have a protest, did you, a statutory protest?

A No, sir.

Q You didn't have a statutory contest until we filed it,

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right?

A That's correct.

Q And the letter you got from Mr. Wood, who was the Republican person, was mailed on the 22nd of November, I presume you got it on the 23rd?

A It was handed to me across the counter in my office.

Q On the 22nd. And the meeting that you called was it the 24th?

A Yes, sir.

Q And the 23rd was Thanksgiving?

A Yes, sir.

Q So you got that letter hand delivered in the morning, and then you proceeded to give notice of a meeting on what time Friday, after Thanksgiving, do you remember what time of day it was?

A When did I start on, Thanksgiving Day?

Q No, no, I won't ask you what you did on Thanksgiving Day, but what I want to ask you is: What was the date -- the time of the meeting on the 24th that was noticed?

A The meeting was held at 8:30 in the morning the day after Thanksgiving.

Q And the notice was given on the day before Thanksgiving; is that right?

A There was more than 24 hours, from the time that I posted the notice, and I also contacted the news media. And when

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the paper came out the morning of Thanksgiving, there was 24 hours until the time of our meeting.

Q Was the paper published on Thanksgiving morning in Nassau County?

A Yes, sir.

Q The News Leader?

A Not the News Leader, no.

Q Which paper?

A The Jacksonville Times Union.

Q And the notice that's attached to the stipulation says the notice was given to the -- it doesn't say it was given to the Times Union?

A We also gave it to the News Leader. It was in, I know it was in the Jacksonville Times Union.

Q And the Times Union is the Florida Times Union, it's the Jacksonville paper published in Duval County?

A That's correct, and it's delivered to the front door of almost every citizen in Nassau County.

Q Well, you can get it here if you live in town?

A Right.

Q So we have those dates straight, there was never a protest, and never a contest until after what you call the certification, the last certification which was sent to the Secretary of State's Office or the Canvassing Board, which would have been on the 26th, is that right, Sunday?

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A No, it wasn't sent out on a Sunday. The certification --

Q Excuse me, we're wrong. Maybe I've confused you. We start -- you had one certification, that's all you ever had at that point, before we get to Thanksgiving, ma'am, you had one certification, the official certification, that you sent to the Canvassing Board, and it was reported as the vote in Nassau County that was after, excuse me, that was after the machine recount on the 8th?

A I sent a certification to the Division of Elections on the morning of the 8th after it had been faxed to the Division of Elections.

Q You sent a certification, didn't you, in accordance with the law?

A Yes, sir.

Q To them, on the 8th, that certified the vote that had resulted -- the count that had resulted from the automatic recount; is that right?

A On the 8th, about 8:30 at night, we faxed to the Division of Elections, the automatic recount.

The morning, the next morning, it was also overnighted to Tallahassee and should be there by 10:30.

Q On the 9th?

A Yes.

Q And that was the certification required by law and the

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statute which you made?

A That's correct.

Q And then that was the vote, officially, until you had this meeting November the 24th; is that correct?

A It was the wrong count for Nassau County.

Q No, no, no, that's not my question. There was no recount, no other recount than the machine recount that's required by law is that correct?

A A recount that was required by law that was done on the 8th.

Q That's the only recount that's ever been done?

A That's correct.

Q So when the time for certification of the absentee ballots that came, the set time for that?

A The overseas ten-day ballots.

Q Correct, you didn't certify that then, either, did you, on that date? That was a week after the certification you sent in, in the first instance?

A The certification of the absentee ballots overseas were certified immediately.

Q Right, one vote; is that right?

A We had eight overseas ballots in Nassau County.

Q And you certified how many on the required date for certification of the overseas ballots?

A There was seven that was actually counted, accepted.

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There was one that was rejected because of the postage.

Q Now, you're still are going along with the vote, even after you reported these seven, in the same ratio, as they were, in what you had certified on the 9th; is that right?

A I'm not real sure, because, as soon as I realized that I was going to get an automatic recount, I immediately notified the Division of Elections that I had a correct and an incorrect tabulation.

Q Do you remember when you called them?

A No, sir, I really don't.

Q Was it around the 20th?

A I don't know.

Q You have no idea?

A No, sir, I don't.

Q How long before the meeting, the last meeting?

A I have been constantly trying to get this mistake that I have made straightened out ever since the morning of the 9th, and I have done many things, calling the Secretary of State, everyone I could think of to correct this.

Q And nobody told you that you needed to have a recount, or you had to have a protest or any of those things to do that, did they?

A Absolutely, no one.

Q Not anybody in the Secretary of State or anybody?

A No one.

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Q So you're going along sort of -- I kind of feel sorry for you, you're relying on people?

A I was asking for guidance and I did not receive it.

Q And when you finally did get the guidance and went ahead and set this meeting down toward the time it had to be set?

A I had to have a 24-hour notice.

Q Right, but the decision to do it and everything was quick because this 24 hours over Thanksgiving?

A We were running out of time for the certification.

Q Correct. Actually, there was no count or anything, but when you held that meeting, and we'll get to the circumstances in a moment, but when you did hold that meeting, it's my understanding that Mr. Wood, was it, who was not there?

A That's correct.

THE COURT: Howard.

A Mr. Howard was not there.

Q We're going to get our names right one of these days. Mr. Howard was not there, and he was out of town, so then the county commission appointed Marianne Marshal?

A Yes, sir, that's correct.

Q And then that night -- as a substitute, as I read this, and then that day, that morning, rather, the two remaining members of the Canvassing Board put her on the board that day as a substitute?

A The county commissioners replaces any commissioner.

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We did not replace her.

Q But when she came --

A The Canvassing Board did not replace her.

Q But when she came that morning, as I read what we were furnished, the commission acknowledged she served as a substitute commissioner?

A The Canvassing Board acknowledged the fact that she was substituting for Mr. Howard.

Q And you were aware, and everybody was aware that she had been on the ballot in this very election that we are now contesting; is that right?

A Yes, sir, that's correct.

Q And you're familiar with the law, because the person that worked for you, she just didn't do it because -- was she on the Canvassing Commission?

A No, on the ballot.

Q I know, but was she on the Canvassing Commission, or just an employee in your office?

A She was an employee in my office, and she is my right arm, and she stepped down because her name was on the ballot.

Q Well, she did the right thing, and not because she had to, she did it because it was right, and we're proud of you for having somebody work for you like that. But then you put somebody on the commission to serve in this case that had been on the ballot, just like your assistant, correct?

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A But her election was over.

MR. MULLIN: Your Honor, we're getting into final legal argument that Mr. Douglass and I talked about we would make at the end.

THE COURT: Let's move as quickly as we can.

MR. MULLIN: I think that would be reserved for final legal argument, otherwise, I would have to bring in all the witnesses.

THE COURT: I'm waiting for a question, I'm listening for a question.

BY MR. DOUGLASS:

Q I'm trying my best here. Now, to summarize slightly, there was one certification on November the 9th, there were no other certifications until the 24th, or was it the 26th?

MR. MULLIN: Your Honor, let me object. I hate to stand and object, again, but I think it's been asked and answered, she said it was the 24th.

MR. DOUGLASS: We stipulated to this, but then they went into all this other stuff.

MR. MULLIN: We stipulated, both the Plaintiff and the Defendant.

THE COURT: That testimony is in line with what's in the stipulation.

MR. DOUGLASS: All right.

BY MR. DOUGLASS:

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Q The other thing I was going to ask you is: Aren't there two sides to that ballot they put up there, the one with the red line on it?

A It depends on how you look at it, there's a front and a back and two sides.

Q A front and a back and some races on the back, too?

A That's correct, in order to vote that complete ballot, if you wanted to vote each race, you would vote front and back of an A, B, and C card.

The presidential race is only on the A card, and that is also the card that tells you how many voters participated in the November 7th election.

Q There is one question I didn't ask you, I think I've tried everything to get this in. Isn't it correct that at the time you sent that first certification in, you, yourself, thought there was something wrong with it?

A At the time I sent the first certification in was election night results.

Q Okay the next day?

A And there was absolutely nothing wrong with it. The automatic recount, we missed 218 ballot cards, because we tried to pull out all the red ones. All the red ones were not up top, they were turned down in the bottom of the box. It was not until they had already been sealed up, signed and sealed and stored under security, the morning of the 9th, by nine o'clock, we realized

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there was -- had been a mistake.

The mistake was that I did not proof everything that left my office.

Q Okay. My question still is, at the time you sent the certification on the 9th, which certified what you now say is the incorrect count, you already knew that, you, yourself?

A I knew it, but not before it was certified, in fact, and mailed to the Division of Elections.

Q I'm not going to go into the question of your political affiliation in public statements or anything like that.

MR. DOUGLASS: Thank you.

THE COURT: Thank you, Mr. Douglass.

MR. KLOK: Can I ask a couple of questions in light of what he has done, I'll try to keep it short.

CROSS EXAMINATION

BY MR. KLOK:

Q Miss King, my name is Joe Klok, I'm counsel for Katherine Harris and for Clay Roberts and also the Canvassing Commission. I just need to ask you a couple questions.

With respect to the November 24 meeting, I believe you testified that neither anyone from Secretary Harris' office, or the Elections Division told you what to do, other than advising you that if you were going to do anything, you had to have a Canvassing Board meeting; is that correct?

A Pretty much so.

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Q Okay. Fine. So when they say in Paragraph (10) of the stipulation that the November 24 meeting, after receiving advice from the Elections Division of the Department of State, the advice they're referring to there is just that you had to have a meeting if you were going to do anything; is that correct?

A That's correct.

Q Thank you, ma'am, one or two more questions. When you sent in the certificate on November 7th, you just had the returns, and you signed it; is that correct, and you sent it in?

A We typed those figured up on the forms that are sent to us from the Division of Elections, and the three members signed that, and it is faxed, and then it is mailed immediately to the Division of Elections.

Q You don't write any personal notes on it or anything, you just fill in the blanks and sign it, correct?

A That's correct, on certification.

Q Now, on the next day, after the automatic machine recount was done, did you do the same thing, ma'am?

A That's correct.

Q Did you put any personal notes on that, or just fill in the form?

A Just filled in the form.

Q And after you had the meeting on November 24, when you sent that particular form in, did you have any notes on that, or did you just have amended on it?

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A I'm not real sure, because I sent quite a few.

Q But you -- you did not have any explanation in there as to why there was a difference between that one, and the one you filed on November 9th?

A I believe we did. I believe we had an explanation on that, also, and also we sent in the precinct-by-precinct results.

Q And then finally, ma'am, when you sent in the numbers on November 26th, is it the day you were ordered to by the Supreme Court of Florida on Sunday when you sent the final numbers in, did that include the overseas ballots?

A Correct.

Q You just filled out the form there, and that contained the total number of votes for Nassau County, it just wasn't a supplementary one, it was just the total number of votes, correct?

A We had two different certifications that went in. One had the overseas ballots, and one had the actual election count.

MR. KLOK: Thank you very much. Just one last --

MR. DOUGLASS: Your Honor, I didn't realize he was going to ask Direct or Cross, or whatever it is.

THE COURT: I guess he took Mr. Bartlit's Direct.

MR. DOUGLASS: But I have one question on his Cross.

THE COURT: You've got another question?

MR. DOUGLASS: If he's through.

MR. KLOK: Yes, sir, apparently.

RECROSS EXAMINATION

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BY MR. DOUGLASS:

Q Miss King, I hate to belabor this point, but did you make a statement in the press that was reported in the Washington Post on the 26th of November, quote: She, King, said they were told by Ed Cast, who works in Harris' office, that the local board could certify its original tally and disregard the recount, is that what you told them?

A Something to that effect is what I was told. I was trying to get help from the Division of Elections, and they told me that it was in the hands of the Canvassing Board.

Q Ed Cast, who works in Harris' office, said that the local board --

MR. BARTLIT: That is cheap shot.

THE COURT: I heard that one the first time, she answered that she told him something to that effect, so move on.

MR. DOUGLASS: That's all I have.

THE COURT: All right.

MR. BARTLIT: Pass the witness.

THE COURT: I have one question, if you don't mind. Let me ask you, if your instructions were, Miss King, that you would have a meeting of the Canvassing Board, first, who ordered that the ballots be sealed up, and that the tape be put on, and the Judge sign, and nobody could open that box?

THE WITNESS: That's just one of our laws, as soon as

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the election is completed, you seal them.

THE COURT: All right. And then --

THE WITNESS: And they're not supposed to be opened, to my understanding, unless you have a court order, or the Canvassing Board has reason to go back and open them.

THE COURT: When you had the meeting on November the 24th, did the Canvassing Board discuss reopening the boxes?

THE WITNESS: At that time, we were running out of time, and we felt the best way to get the correct certification to the Division of Elections was to go back to election night results, but I did offer, and I'm still offering, I will go back and count them automatically, by hand, whatever is necessary, to prove to you that the tally we gave you on the November 7th is correct.

THE COURT: All right. And do either of you have any questions concerning any matter I may have inquired about?

MR. BARTLIT: No, sir.

MR. MULLIN: One.

CROSS EXAMINATION

BY MR. MULLIN:

Q Miss King, do you remember the day of the meeting on the 24th, indicating that the meeting of the Canvassing Board, that based on your conversations with the Secretary of State's office and given the time constraints, the thing to do would be to

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recertify the November 7th return?

A That was my understanding.

Q And is that what you advised the Canvassing Board?

A Yes, it was.

Q And then you subsequently sent in a new certification to the Secretary of State's office indicating this was an amended certification; is that not correct?

A Yes, I did.

THE COURT: Anything further? May the witness stand down and be excused, thank you very much.

MR. BECK: Your Honor, that was our last live witness. If Your Honor, would like, I would formally offer the various documents we referred to in the course of our presentation, and we've been doing the best we can on this, and we'll furnish the Court and the clerk and apparently the other parties.

THE COURT: Apparently you're ready to rest, and I suppose Mr. Klok, you want to put in some documents.

MR. KLOK: Just documents.

THE COURT: And I was just wondering, it's 5:30. Do you think we could take until quarter to six and sit down and look at these respective lists that you have here, and each of you make sure you got everything in I mean, is that satisfactory?

MR. BECK: Sure.

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THE COURT: Let's do that, we'll stand in recess until quarter to the hour.

(DISCUSSION OFF THE RECORD.)

THE COURT: All right. Have we had an opportunity for each of the parties to review their document list?

MR. BECK: I am told that ours has been reviewed and agreed to on the items that I'm going to be offering, and I am sure that Plaintiffs' has been reviewed, and we've made some sort of agreement on that, as well.

But, in any event, I will now read in the exhibit numbers of those that we'll be offering, and does Your Honor want me to note for the record just a thumbnail description of what the exhibit is or shall I just read the numbers.

THE COURT: Well, if you've stipulated to them, if you have a list of the exhibits, and everyone has stipulated to the exhibits, then I would then just move your list, and we'll put that in as a Court exhibit.

MR. BECK: With the Court's permission, if we could supply that later, we have a list, but it has arrows, and crossouts, and handwritten things, so we need the evening to prepare a list that is presentable.

THE COURT: Will you take one that you have there, what it is you had agreed on, and initial it so that we all know this is what it is, and then make a copy of it?

MR. KLOK: Your Honor, while they're busy signing, we

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have some objections that we'll hand up, most of them, Your Honor, just go to weight that we will give the exhibits. One of them --

THE COURT: You can argue the weight.

MR. KLOK: Precisely, that's what I'm saying, right, and so I'll hand that up, Your Honor, so the first one having to do with the official amended certificate of state elections, they just put part of it in, we have the rest of it. The part they put in, it's fine, it's just the part that they didn't attach, and it's understandable, because it's a box. If I could hand this up.

MR. BOIES: No objection. Is that going to be your exhibit?

MR. KLOK: The objection is written down, so you don't have to talk about them. And this is the first of them.

MR. KITCHEN: Well, then subject to the agreement stated by Mr. Beck, and they'll be admitted subject to the weight being given by the Court. God bless you. That's wonderful.

MR. KLOK: And our trial exhibits as well, are numbered, and there's two boxes of them here, the first one is the official returns, which you might want to leave in the box so they're right here in front of the clerk.

THE COURT: Do you have a list?

MR. KLOK: Yes, sir, the list is right there, sir.

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THE COURT: All right. Then the Plaintiff's list, we have, I assume will be Court Exhibit 1. Bush now will be Number 2, and this will be Number 3? Is that satisfactory, Court exhibits?

MR. BECK: And, Your Honor, I think you'll find on several of the lists there are transcripts of the Canvassing Board determinations, and sometimes they're partial transcripts.

And what the parties have agreed is that we will get together this evening, hopefully, and we'll put together a complete set of the transcripts from all the meetings of the Canvassing Boards in issue, and we'll simply submit that jointly without separating them into the partial transcripts that the parties have designated, so you'll have a complete set.

THE COURT: That will be satisfactory. I recall the Plaintiffs filed four or five or six transcripts, and there will be an additional filing because of another meeting that was not in the initial filed transcript.

MR. BECK: So we'll get together a complete set.

MR. KITCHEN: Judge, this is significant, and it's difficult, I've worked with your clerks, and they've helped so much, trying to straighten this out. We moved into evidence the approximately 9,000 undervotes from Miami-Dade County that were up here. There appears to be a question in

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what box they appear in the transport stuff, and what numbered boxes. All I want to make sure is that we've moved them into evidence. This is fine where they are, but they are here, under your order, and we want to make sure they are in evidence irrespective of the trouble we might have figuring out which box. Am I making sense?

THE COURT: Yeah. You've attempted to list the boxes, but you don't know if that's all.

MR. KITCHEN: These are the transmittal forms given to us by the clerks, and what it says, number 80 on this particular one, they -- it says, undervotes from precincts, 1,451, then the next box has voted ballots from 501 to 940. I don't know where the rest of those other votes are in the boxes, because I can't see those boxes or get into those boxes.

THE COURT: You have a receipt for the list do you not, Mr. Clerk?

THE CLERK: Yes, sir, we have not opened those boxes, they're still sealed.

THE COURT: Move that in. You've got them all now. Nobody is going to be switching them or doing anything with them, they'll all be there.

MR. KLOK: Your Honor, we said it enough times, and I imagine the Court has heard, obviously we object to any ballots coming in for a recount, unless you have all of the

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ballots. I believe, as you know, the time has expired, and it was the responsibility for the Plaintiff to request it in all 67 counties.

THE COURT: Well, if they want to put them into evidence, we've got them, and you can argue what the argument is, all right. I don't know if that's clear. You've attached the receipt documents of the clerk, and that's satisfactory, to represent your submission of all of the ballots. And we will, at the appropriate time, you can have the Clerk sort them out, to make sure which ones are in which box.

MR. KITCHEN: That's our problem.

THE CLERK: And we may need the Supervisor's help on something like that from that particular county.

THE COURT: Talk to Mr. Greenburg. They may need your Supervisor's assistance.

MR. GREENBURG: We will be glad to help, Your Honor.

MR. TERRELL: May I address the Court briefly, Your Honor?

THE COURT: Sure.

MR. TERRELL: We will be filing later today a motion to exclude the Miami-Dade ballots from any consideration for this reason: I suppose you could tell from Mr. Kitchen's effort to try to figure out what's in what box, we don't know, either. And this is not casting aspersions on the good

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faith of the good people in Miami-Dade County, that's not the point. That evidence has been through all kinds of reshuffling, or those ballots have been through all kinds of reshuffling that Your Honor has heard about this afternoon. That's point one. Point two, as part of the Plaintiff's affirmative case, they did not prove up through any witness, the authenticity of those ballots, they didn't call Supervisor Leahy, they didn't call anybody from Miami-Dade to actually put those ballots before Your Honor, in an appropriate way.

So I suppose my objection is two-fold. One is there's no proper predicate for them as part of the Plaintiff's case. They missed the point, where we could have cross-examined someone about that.

And, number two, there is spoliation issue. We believe strongly that no one could go in and look at those records now and have any confidence that they are really what 625,000 voters put into the box on November 7. They went through the machines at least three times. We believe that at least some, and perhaps more went through a fourth time. They were handled by hand in many instances. There is evidence of --

THE COURT: I understand the nature of your objection. I think it goes to the argument and the weight and credibility, and the utilization of any of those particular

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items that were in evidence, but I don't believe it doesn't go to the admissibility, and as far as their authenticity, I would have to deem that. The supervisor's attorneys, all of the ballots that are down there, unless there's information that is developed that was not ordered.

MR. TERRELL: I'm not going to argue, my only point is there's no evidence in testimony, and, therefore, no evidence that is admissible in trial, and, accordingly, no opportunity for us to cross-examine about that, and for that reason I object, but I understand Your Honor's.

THE COURT: I understand. Your objection is duly noted in the record, and at this time, are there any other witnesses? Mr. Klok, you've introduced your evidence?

MR. KLOK: Just on paper, Your Honor.

THE COURT: All right, we have a Court exhibit. At this time, does the Plaintiff wish to go to rebuttal, or, no, we still have two additional -- yes, sir, Mr. Myers, does Your Honor, wish at this time to hear witnesses from the Intervenors? We have deferred to Mr. Madigan to go, first, on the order of his witness.

For what purpose does the gentleman arise?

MR. DOUGLASS: Your Honor, as we have stressed the need, and the Intervenors are here subservient to the main cause of action, I think to reach the decision here that's needed to move this matter, the Intervenors there does not

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identify completely with either party, or to the contest.

I, therefore, suggest that their issue be raised later after the Court has made a decision about recounting these ballots, and about how they're -- possibly, how they're going to be recounted, because we need that, and to tie up considerably more time with testimony after this long period, we think, would be detrimental to our clients and to their clients.

THE COURT: What's your position?

MR. MADIGAN: Terry Madigan on behalf of Matt Butler. Mr. Butler has appeared through counsel, has filed pleadings, they have not been objected to or denied by counsel for the Plaintiffs, he is here in the back of the courtroom in the far corner, for purposes of authenticating he is who he is, but that's not been denied, and I'm concerned that Mr. Douglass is now making a standing argument, again.

MR. DOUGLASS: We know he's here, and you show him to be --

THE COURT: All right, I'm going to let them -- apparently, both of the Plaintiffs, Intervenors, they represent actual voters, and voters are people who have an interest in this, so I'm going to let them make a limited presentation, and I think I explained to them that theirs is very limited. I'm not going to have -- did you furnish a witness list?

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MR. MYERS: Yes, we did, and how limited are you talking about?

THE COURT: Well, nobody showed me the witness list. I'm not going to have you come in and duplicate, if all they're going to testify if they were a voter in a certain county.

MR. MADIGAN: In the interest of time --

THE COURT: How many do you have?

MR. MADIGAN: Just him.

THE COURT: Fine. How much testimony do you anticipate?

MR. MYERS: Four, Your Honor.

THE COURT: And the purpose of those witnesses?

MR. MYERS: The first witness to establish the time at which she heard that the state then called for advice in the Central time zone.

THE COURT: Does that have any relevancy to this proceeding?

MR. MYERS: Yes, Your Honor, it does.

THE COURT: In what regard?

MR. MYERS: The Court is required to look at the contest as a whole from a statewide perspective, and from the point of view that the Court is to consider all alleged wrongs that took place in the statewide election pursuant to 102.168.

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We ask the Court to consider all of the factors, all of the issues raised in alleged wrongs in this election, so that the Court can determine as a whole, the intent of the voters in this statewide election.

THE COURT: The next witness?

MR. MYERS: The next witness is to establish that, in fact, they were voters they did not go to the polls as a result --

THE COURT: Two minutes. What's the next witness?

MR. MYERS: And the last is an expert who will indicate that it did have an effect on the voting in Florida, it will have had an effect on the results, which the Court is well aware that's one of the things you're looking at to determine whether there's been any effects on the results of the election.

THE COURT: What effect?

MR. MYERS: The early call of the election by the press in the Central time zone.

THE COURT: I believe that would be bringing in some extraneous matters to the issues that we have in here, as far as that expert is concerned.

MR. MYERS: My co-counsel, Manuel Klausner, would like to address the Court, may he address the Court?

MR. KLAUSNER: Very briefly, our view is under the applicable section of the Florida Statutes, which asks the

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Court to look at all the circumstances, and frame a remedy that's appropriate whatever the Court may find has been done erroneous or improperly with respect to the election, that if the Court finds there have been any errors whatsoever, before the Court is able to frame an appropriate relief, an appropriate remedy under the code, the Court --

THE COURT: What you have are some witnesses, apparently, depending on what type of, I suppose, remedy, that would be fashioned.

But as far as I know, the Plaintiffs have filed a contest to this election or certain specific allegations. The other Defendants have defended on those allegations, and these -- this, apparently, goes to another matter.

MR. KLAUSNER: Respectfully, Your Honor, our view is that under the code the Court may provide any relief under the circumstances. Our view is this codifies the inferent equitable part of the Court. If there were a tornado that wiped out half of western Florida, our view is the Court should consider an act of God --

THE COURT: With respect to the relief that these Plaintiffs seek?

MR. KLAUSNER: That's our view.

THE COURT: I'm going to have respectfully --

MR. KLAUSNER: Your evidence is very limited in terms of times.

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THE COURT: Your fact witnesses that you want to present, I will permit those, sir, but we're not going to bring in another statistical expert that's going to, I suppose, have an opinion concerning the effect of, as I understand it, an early call --

MR. KLAUSNER: By the networks, or the local media.

THE COURT: -- by the networks, as that might have some bearing on this case, I'm just going to have to respectfully disagree with you. I think that your position is noted in the record, and will be a part of this, subject to appropriate --

MR. KLAUSNER: We do have another expert, Your Honor, who would be prepared to testify briefly on the issue of the use of selective hand recounts in certain counties, as diluting -- in terms of the overall effect on the statewide results.

THE COURT: Is this witness disclosed to the other parties, so that he has an opportunity to --

MR. KLAUSNER: The answer is, yes, he was disclosed. And he's in the courtroom.

MR. GREENBURG: Your Honor, if I may make a brief suggestion, Miami-Dade County Canvassing Board.

THE COURT: Do I hear dissent?

MR. GREENBURG: I think so, Your Honor, Miami-Dade County Canvassing Board doesn't care, but maybe as a way to

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speed these processes up, these Intervenors, first of all, as Your Honor recalls, were admitted and allowed to intervene, subject to and subordinate to the rights of the main parties, or else I think there would have been more objection at that time. They have filed an Intervenor's amended witness list, they filed it today. If everyone can stipulate that goes into the record, it speaks for itself, we don't have to hear anything else.

MR. MYERS: I think, technically, we would have to proffer them, for purposes of the record, and I would suggest to the Court that a written proffer could be done in order to save the Court time.

THE COURT: Let's proceed in that fashion. Bring on your fact witnesses, at the appropriate time, and then you may proffer the expert testimony.

MR. JENNINGS: Your Honor, I have only one party to testify as to standing. If the Plaintiffs will stipulate that my client is a voter in Duval County, voted for Governor Bush, and that he has not received any certification of how he voted, that's all I want.

MR. DOUGLASS: Well, we certainly could agree with that, but he may not have pushed his chad.

THE COURT: Subject to that, he stipulates to your proffer, and your client's name, Mr. Jennings, for the record.

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MR. JENNINGS: Your Honor, there are five clients.

THE COURT: Are all of them named?

MR. JENNINGS: Named in the petition for declaratory relief.

MR. DOUGLASS: Only the named clients, right.

MR. BECK: Actually, he had 600,000 of them.

THE COURT: All right, Mr. Madigan has the floor.

MR. MADIGAN: We reached a similar stipulation, all his appearances have been through counsel, we don't need for him to testify as long as we're resolved that we do have standing, and we have it right to participate in Closing Argument, we won't put him up.

THE COURT: What is the stipulation?

MR. DOUGLASS: The stipulation is that his party is back there in the courtroom and he's who he says he is, that's right.

MR. MADIGAN: Yes, sir, he's made his appearances through our pleadings.

MR. DOUGLASS: And that's the same thing we're agreeing to with --

THE COURT: All you're going to do is present your witnesses that he is he.

MR. MADIGAN: Yes, sir, we're all through with what we said, in fact, we could have done it by now, but I was trying to --

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THE COURT: Well, are you proffering what your argument was the other day?

MR. MADIGAN: Yes, sir, and we did submit the witness and exhibit list.

THE COURT: I understand, but all that I hear as being stipulated to is to identity only, now, if you have -- if you wish to proffer that your client, I believe, his testimony, or your argument was to the effect that he was a resident of Collier County, that he voted in the election for George Bush, that there was some 3,000, or so-called I suppose undervotes, or no votes in Collier County, and your client doesn't know whether his vote was counted or not.

MR. MADIGAN: Yes, sir.

THE COURT: Is that off the top of my head?

MR. KLOK: And he did not have an opportunity to ask for a statewide recount.

THE COURT: And he did not have an opportunity to ask for a statewide recount.

MR. DOUGLASS: He's going to proffer that, we're not necessarily going to agree with the proffer.

THE COURT: Call your witness.

* * * * *

Whereupon,

MATT BUTLER

was called to testify and, having been first duly sworn,

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was examined and testified as follows:

THE COURT: You may proceed.

DIRECT EXAMINATION

BY MR. MADIGAN:

Q Would you state your name for the record?

A Matt Butler.

Q Thank you. And you are a resident of where?

A Collier County, Florida.

Q And how long have you been a resident of Collier County?

A Just over a year.

MR. MADIGAN: I'm hearing objections.

MR. DOUGLASS: Leading.

MR. BOIES: Leading.

MR. MADIGAN: Nobody objects if I lead them.

BY MR. MADIGAN:

Q Did you vote in the November 7th general election?

A Yes.

Q And did you have any problems in voting?

A No.

Q Did you encounter any problems with the machinery?

A No.

Q Who did you vote for?

A George Bush.

Q What kind of voting machine was it that you used?

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A A punchcard.
Q And you had no problems?
A No.
Q Do you know if your vote was, in fact, counted?
A I do not, for a fact.
Q Are you aware that there were a number of votes in Collier County that were not counted for one reason or another?
A I have read that.
Q You're not aware if yours is one of them?
A I do not.
Q Do you know who gained the most votes in the presidential election in Collier County?
A I believe Governor Bush.
Q Do you have any idea what the percentage was?
A I've read it was like two to one.
Q Was there a manual recount conducted in your county, in Collier County?
A No.
Q Did you ask for a manual recount?
A No.
Q Why not?
A My understanding is that it's not allowed by a voter. That can only be asked for by a candidate, or a political party whose candidate appears on the ballot.
Q So you were not allowed to ask for a recount?

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A No.

Q Are you concerned about recounts taking place in other counties?

A Extremely so.

Q Why does than concern you?

A Because it places my vote as a disadvantage. It makes my vote potentially worthless than the vote of someone else's.

Q Is that why you intervened in this cause?

A It is.

Q Do you want your vote to count the same as any vote in any other county?

A I do, the same.

Q If there is a recount in any county, would you want the same thing to be done in your county?

A Well, I want the same rules applied to my vote as to anybody else's vote in the state, that's what I want.

MR. MADIGAN: Thank you, no further questions, Your Honor.

THE COURT: Inquiry?

MR. JENNINGS: Your Honor, may I call my one client?

THE COURT: I think you had a stipulation.

MR. JENNINGS: I wasn't sure.

THE COURT: At this juncture, call your witness.

MR. JENNINGS: Your Honor, I call Keith Temple.

* * * * *

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Whereupon,

KEITH TEMPLE

was called to testify and, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

BY MR. JENNINGS:

Q Mr. Temple you're an Intervenor in this action by order of the Judge, correct?

A Yes.

THE COURT: Your first name, sir?

A Keith.

Q Your full name is Keith Temple?

A Yes.

Q Where do you vote?

A Duval County.

Q Are you a registered voter there?

A Yes.

Q On November the 7th of the year 2000, did you vote for George W. Bush as President?

A Yes, I did, or for the electors of George W. Bush.

Q Have you had any kind of certification as to how your vote was counted?

A No, I have not.

Q Do you want to be sure that you are on an equal standing with everyone else in the state as to whether or not your

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vote was correctly counted?

A Yes.

Q And if your county is not counted, are you assured that you're going to be on the same standing as the individual voters in the three counties that are the subject matter of this lawsuit, primarily Palm Beach County, Miami-Dade, and Broward County?

A No.

Q Are you a taxpayer in the state of Florida, if you're alive, you're a taxpayer?

A Yes.

MR. JENNINGS: That's all I have, Your Honor.

THE COURT: Mr. Myers, did you have a fact witness? May the witness stand down and be excused?

MR. BOIES: Your Honor, just one inquiry.

THE COURT: Yes, sir.

CROSS EXAMINATION

BY MR. BOIES:

Q Sir, did you file a protest in this election?

A No, I did not.

Q Did you know you had a right to do so?

A No, I did not.

Q Did you file a contest in that election?

A No.

Q Do you know you had a right to do that?

A I did not.

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MR. BOIES: Thank you.

REDIRECT EXAMINATION

BY MR. JENNINGS:

Q You were allowed to intervene on the basis of a petition to declare the manual recount statute unconstitutional, were you not?

A I'm sorry?

Q You were allowed to intervene by the Judge in this Court on the basis of the petition to declare the manual recount statute unconstitutional; is that correct?

A That's correct.

THE COURT: This witness, may he stand down and be excused, without objection?

MR. MYERS: I call Teresa Cruce to the stand.

THE COURT: Come forward and be sworn.

* * * * *

Whereupon,

TERESA CRUCE

was called to testify and, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

BY MR. MYERS:

Q What is your name, please?

A Teresa Cruce, C-R-U-C-E.

Q And you're the same Cruce that's listed as an

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Intervenor in this action?

A Yes, sir.

Q And you live in Panama City, Bay County, Florida, correct?

A Yes, sir.

Q And you voted before November 7, 2000, didn't you?

A Yes, sir.

Q And how did you do that?

A I went into the Supervisor of Elections Office and voted because I was going to be out of town on election day, and I cast my ballot that day.

Q Were you a member of the Military at the time?

A Yes, I was.

Q Was this done through the Military absentee, or just normal absentee ballot?

A I'm not sure what it was, I just filled out the ballot. I don't know how it was categorized but I was there and turned it into the Supervisor of Elections in person.

Q And you don't know if your vote counted, because you don't know if anybody physically looked at your ballot, right?

A I do not know.

Q And then at some point you came to be in Bay County on the evening of the election, is that right?

A I had a conflict in my schedule. I was driving back to Panama City on 267. I could get channel 87.75, which is CBS, and

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it was around news time, I don't know the exact time, but it was around 6:15, our 6:20, and I heard that Florida had been called for Gore. I heard the polls were closed in Florida, and I was very, very upset.

I switched to another channel, NPR, they had also called the polls in Florida being closed, and being in the Central time zone, I knew the polls closed at seven, and was, like, 6:15 in the Central time zone. I was so upset, I just couldn't say anything for 15 -- not 15 but about five minutes, then I called my mother on my cell phone, so there is a record on my cell phone bill, which has already been mailed out, I don't have it with me, but it shows the time.

And my mother, she had heard on ABC, that's hearsay, but she had heard it being called.

Q Had you paid attention to what was going on in the election up to that point?

A Yes, I have.

Q And have you paid strict attention to everything that was going on in the election?

A As close as I can.

Q And who do you know was the company that was responsible for the early call in Florida, do you know?

A I do not know.

Q Wasn't it Voter News Service?

A I don't know.

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Q Would you tell the Judge, last question, would you tell the Judge, why you as a voter in Bay County are concerned about this election contest that is going on in Leon County?

A I do know that I -- I know of a person that worked at some polls, and there was a definite change in the polls, in the turnout, and for a major election, you know, it's surprising of that, and I know of one other person that did actually not go to vote, and I believe she is going to testify.

I do know of other people saying they knew of people saying they did not vote because they heard the polls were closed, and they didn't think it made any difference, because it had all been called for Gore.

Q So you know there were valid votes that would have been made had the call not been made at least 40 minutes before the polls closed?

A Yes, sir.

MR. MYERS: Nothing further.

THE COURT: You may inquire.

CROSS EXAMINATION

BY MR. DOUGLASS:

Q Did anybody tell you, like your lawyer or anybody, that had a right to protest this election?

MR. MYERS: Objection, calls for privileged information.

BY MR. DOUGLASS:

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Q Did anybody tell you on your cell phone or otherwise, that you could contest an election?

MR. MYERS: Objection, calls for privileged information.

MR. KLOK: I don't understand the basis of the rule to protest.

THE COURT: The last question is not related to advice of counsel.

MR. MYERS: He said anybody.

THE COURT: Anybody other than your counsel tell you you could protest.

MR. KLOK: Your Honor, there's no statutory basis for her to protest the same with the last witness, it may make for good press, but what can she protest --

MR. DOUGLASS: We don't think there's a statutory basis, either, but it says in the statute that an elector can file a protest.

THE COURT: As I read the statute, it says, candidate, does it's not -- well, no, it's any elector and a candidate.

MR. DOUGLASS: And an election for a voter --

MR. KLOK: Unless I'm missing the inquiry of the pleadings, the position taken by the Intervenor in terms of the totality of the circumstances in a voting contest, one of the things that should be taken into consideration by the Court, since I'm sure the Plaintiffs are going to be arguing

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equity, every vote should count, except the ones in Nassau County, but they're going to be making a strong equitable argument that they should consider all the votes.

THE COURT: I understand that, but his question was did he understand that she had a right under the statute to file a protest, and I believe the witness said she did not.

A I did not.

THE COURT: Okay. Do you have any other questions?

BY MR. DOUGLASS:

Q And also the contest, I presume you didn't know you had a right to do that?

A I did not, and I want to reply, we spent days arguing -- they argued the other side of this.

MR. MYERS: No other questions, Your Honor.

THE COURT: Any other questions of Miss Cruce? If not, can she stand down.

MR. MYERS: She may, Your Honor. At this time, we call Jeanette Seymour.

THE COURT: Come forward and be sworn.

* * * * *

Whereupon,

JEANETTE SEYMOUR

was called to testify and, having been first duly sworn, was examined and testified as follows:

THE COURT: You may proceed.

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DIRECT EXAMINATION

BY MR. MYERS:

Q Would you please state your name.

A Jeanette Seymour.

Q And you currently live in Santa Rosa County?

A Correct.

Q You're a taxpayer there?

A I am.

Q And you were registered and qualified to vote in the 2000 presidential election in that county, weren't you?

A I was.

Q Were you present in that county during the times the polls were open?

A I was.

Q Did you ever take the time to drive to the poll to vote for President?

A During the daytime I worked. My plan was to go at five o'clock when I got off, I was delayed a little bit, it was closer to six, from work, and on the way to the polls, my husband called me and told me it was over, he told me Gore had won, and there was no reason to vote.

Q Did you have plenty of time before the poll closed in order to cast your vote?

A I did.

Q Did you intend to vote for a presidential candidate

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when you got there?

A I did.

Q Would you tell the Judge why you, a Santa Rosa County resident, are concerned about an election contest proceeding over in Leon County?

A Because the media made a mistake and called the vote early and there's a lot of votes that were not counted, not just in my area, but the whole Panhandle of Florida that should have counted, whether they were for Bush or Gore, they should have counted.

And, you know, other than the machines being -- whether they were actually not working, or not maintained correctly, that was out of the voter's hands, and so was this. It dilutes my vote.

Q And you're aware your attorneys have filed a request with the Court if he orders anything to order a manual recount of all the undervotes and overvotes in the State of Florida?

A I believe so.

Q Is that a concern of yours?

A It would be a strong concern of mine.

Q Tell the Court why.

A Because in order to have a fair and accurate count of the votes, you have to consider everybody's votes, and not just selected counties, where they may have a strong Democratic outcome.

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THE COURT: Does anyone wish to inquire? If not, thank you, Miss Seymour, you may stand down and be excused. All right. The case will now go to the Plaintiff.

MR. VEZINA: Rob Vezina on behalf of Speaker Thrasher, I don't want to be forgotten, you recall we filed Friday our Motion to Intervene and Motion to Dismiss and Mr. Beck on behalf of Governor Bush and I discussed with you at some appropriate time during the hearing, we would be having a hearing on the dispositive Motion to Dismiss.

THE COURT: You would be entitled on the intervention to present? The final arguments whatever it is, I suppose, we'll take up the issues of your Motion to Dismiss. It's my recollection not in the context of the proceeding.

MR. VEZINA: We don't wish to put on any evidence. We wish to have legal argument at the appropriate time, and if final argument is the appropriate time --

THE COURT: Let me finish with that, and when we finish that, we'll have a hearing on your Motion to Dismiss, as soon as I can take all the evidence in this case, but right now, let me ask if the Plaintiffs -- Mr. Klayman?

MR. KLAYMAN: Your Honor, when Your Honor kindly allowed Judicial Watch to appear as an observer, you raised the possibility that our witness, Kevin Haggarty of the CPA firm, Johnson and Lambert, might want to be called as a witness of the Court. We simply proffer him.

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We did file a notice to take judicial notice of this expert's report and for leave of testimony, if the party or the Court likes a witness. He did make certain observations with regard to the vote in Palm Beach when we did that inspection earlier in the week. We just want to make him available for the Court or the parties.

THE COURT: That's the reason I left it up to you and the parties, as to whether or not anyone wished to utilize any of the information that was available, and, apparently, neither of the existing sides have done so.

MR. KLAYMAN: Thank you for that opportunity.

THE COURT: Let's go to the Plaintiffs for Rebuttal. Call the first witness, if you have it.

MR. BOIES: May it please the Court, we would first offer Plaintiff's Exhibit 61 which is a stipulation we entered into, and we offer this without objection.

THE COURT: All right. Mr. Berger, Mr. Greenburg, and Mr. Beck, I believe that's all the parties, and Mr. Klok?

MR. KLOK: Our feelings aren't hurt, Judge. Fine, Your Honor, no objection.

THE COURT: Just sign on the bottom.

MR. BOIES: Our next witness is going to be Professor Hengartner.

* * * * *

Whereupon,

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NICOLAS HENGARTNER

was recalled to testify and, having been previously sworn, was examined and testified as follows:

DIRECT EXAMINATION

BY MR. BOIES:

Q Professor Hengartner, you have not been here after the testimony has been going on; is that correct?

A Yes, I have been away.

Q I'm going to ask you some hypothetical questions drawn from that testimony.

First, there was some testimony, and I ask you to assume, about a person who said that they voted in precinct 626 in Miami-Dade, and there was a question about undervoting in that precinct. From your review of the records, were there any undervotes in that precinct?

A I have been told that there were no undervotes in that precinct, and I expect to have delivered in this courtroom --

THE COURT: Sustained, he has an objection to the question.

MR. KLOK: Objection.

THE COURT: Sustained.

BY MR. BOIES:

Q Have you fully reviewed the statistics by precinct in Miami-Dade County?

A Yes, I have.

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Q Do I take it from your answer that you were checking on whether or not there were undervotes, and how many there were in 626, because you didn't have that number in your mind?

A Yes, that's what I'm referring to, sir.

Q And did you ask somebody to check that by looking at the figures?

A Yes, I did.

Q And as an expert, do you frequently rely on people to check figures for you?

A Yes, I do.

MR. KLOK: Your Honor, I'd like to object.

THE COURT: Do you wish to take the witness on voir dire?

MR. KLOK: My objection is that the Rebuttal case is not to rehabilitate your witness that has been impeached. The purpose is to rebut. This isn't a rebuttal, it's a rehabilitation.

MR. BOIES: This has nothing to do with rehabilitation.

THE COURT: He's directing it to other testimony today concerning precinct 626.

MR. BOIES: That's right.

MR. KLOK: But it's now being introduced in proving whether or not there was an undervote in 626, if he wants to prove there was an undervote in 626 he has to do it some other way.

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THE COURT: Overrule the objection. You may proceed.

BY MR. BOIES:

Q Were there any undervotes in precinct 626?

A There were none.

Q The second subject: I asked you to assume that there was testimony that, in the Miami-Dade precincts that had not been subject to a manual recount; that is, the so-called 9,000 votes that have not been manually recounted, that the total vote for President Bush, or Governor Bush and -- not President, or Vice President Gore. Let me start over, again. I've got two Presidents here, and, in fact, we have none so far.

I ask you to assume that there was testimony that with respect to the precincts from which those 9,000 uncounted, or manually uncounted ballots come from, in Miami-Dade, there were precincts that, in total, in the aggregate, gave more votes to Governor Bush than to Vice President Gore.

Does that tell you anything about which of those two candidates is most likely to get votes if those ballots were counted?

A No.

MR. KLOK: Objection, Your Honor, same grounds stated before. Any basis of selecting a President or any other candidate on statistical data, we object to. The only evidence that is relevant that that goes to is something having to do with statewide figures, not on a county basis,

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Your Honor. We're not electing a county supervisor.

THE COURT: Note your objection. Restate the question.

MR. BOIES: Yes.

BY MR. BOIES:

Q I ask you to assume, Professor Hengartner, that there was testimony put forward by the Defendants in this case that, if you took all of the Miami-Dade precincts that had not been subject to a manual count is that Governor Bush would have gotten more votes from the machine count in those precincts in the aggregate than Vice President Gore, do you have that assumption?

A Yes.

Q If that were true, would that have anything at all to do with the statistical likelihood that Governor Bush would, in fact, get more votes, from those 9,000 ballots if they were counted?

A No, it doesn't.

Q Why not?

A Because it depends on how the undervote -- the distribution of the number of undervotes in each precinct is related to the proportion of Democrats and Republicans, at least as measured by the machine count.

Q And did you look at that?

A Yes, I did.

Q And what did you find?

A There seems to be some association between number of

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undervotes and the political persuasion of the county. In particular, there seems to be more undervote in Democratic precincts.

Q Now, when you say Democratic precincts, are you talking about precincts in which there is a registration, majority of Democrats, or are you talking about this particular election?

A I'm using majority as -- precincts, I say Democratic precincts. If the precinct has more machine-counted votes for Vice President Gore than for Governor Bush.

Q And that is more machine-counted votes in this last election?

A Yes, sir.

Q And using Democratic precincts in that way; that is, a precinct that returned a majority of votes for Vice President Gore in this last election, where are most of the undervotes that have not yet been counted?

A That would be in the Democratic counties, sir.

Q Democratic counties or precincts?

A Precincts. I'm sorry, we're talking about precincts.

MR. BOIES: No more questions, Your Honor.

THE COURT: Mr. Beck?

CROSS EXAMINATION

BY MR. BECK:

Q Good evening, Professor.

A Good evening.

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Q Are you aware of the statistical approach that was taken by the Gore-Lieberman legal team concerning the undervotes in Miami, the position taken in their complaint?

MR. BOIES: Objection, Your Honor, outside the scope.

MR. BECK: We were talking about the computation of the projection of undervotes in Miami, based on the undercount, I thought that was one of the two subjects in the --

MR. BOIES: What we were talking about is exactly what we went through, it was not a projection from the complaint, it was in direct response to the witness they put on.

THE COURT: Sustain the objection, rephrase it.

MR. BECK: Oh, okay.

BY MR. BECK:

Q Mr. Boies was asking you about improper methods to project the undervote for all of Miami, based on the undervote total for the 20 percent that was manually recounted, do you remember that?

A Yes, sir.

Q And he was asking you about the significance of whether a particular precinct is a Democratic precinct or a Republican precinct, right?

A Yes, sir.

Q Now, and you said that one of the things that you have to take into account is that, I think you said that there tend to be somewhat more undervotes in Democratic precincts than in

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Republican precincts, right?

A Yes, sir.

Q But you still have to take into account whether the precincts are Republican or Democrat, don't you?

A Yes, sir.

Q So that if some lawyer writes a complaint that says 20 percent of the ballots have been -- of the undervotes of course manually reviewed, and they all come from heavily Democratic precincts, and then they say the way you can project the total for the county is just to project that out times five to get 100 percent, that's just flat wrong from a statistical point of view, isn't it?

MR. BOIES: Objection, he's back to the complaint which you've ruled on.

THE COURT: Overruled, you asked him about this.

BY MR. BECK:

Q That approach is just plain flat wrong from a statistical point of view, isn't it, Professor?

A That is taking the number of votes, or the difference of votes, and just multiply that by five, that's the calculation you're asking me?

Q Yes.

A It is not an accurate prediction.

MR. BECK: Thank you.

THE COURT: All right. Is there anyone else? The

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Professor may stand down and be excused without objection. Call your next witness.

MR. BOIES: We have no more witnesses and we rest.

THE COURT: Do you wish to proceed at this time with your Closings? We can take a short recess so you can compare your notes. Would it be feasible to start at seven o'clock?

MR. BOIES: Yes, Your Honor.

THE COURT: And let me suggest before you leave, can we get an agreement as to time would something like -- is an hour sufficient for the Plaintiffs, and an hour, I suppose, for Bush Defendants, and whether you need an hour, Mr. Klok?

MR. KLOK: No, sir.

THE COURT: Can we take that hour and allot you 15 minutes, each of the Canvassing Boards?

MR. MULLIN: That would be plenty, Your Honor.

THE COURT: Fifteen minutes, so that would be another hour, and then I have my Intervenors, which are, let's see, how many hours have I just figured up?

MR. GREENBURG: I can help you, Your Honor, we'll waive my Closing.

THE COURT: Well, how many of the Canvassing Board Defendants wish to be heard?

MR. MULLIN: Nassau County wishes to be heard.

THE COURT: Mr. McMahon?

MR. McMAHON: We'll waive, Your Honor.

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THE COURT: All right. That's everybody. That's Palm Beach and Dade and Nassau.

MR. MADIGAN: Five minutes for Intervenor Butler.

THE COURT: All right. And Mr. Myers?

MR. MYERS: Ten minutes.

THE COURT: All right. Fifteen and 15, you and Mr. Madigan there would be 15 for our Intervenors. And then I have, who is it, Mr. Jennings?

MR. JENNINGS: Yes, Your Honor, ten.

THE COURT: Ten? And let's see, Mr. Klok, 30.

MR. KLOK: No more than that, sir.

THE COURT: All right. That would be 30. There's another hour. You've got ten minutes or more. And then I believe I had your motion, and that's my impression that the subject of your motion was something similar to the motion of the --

MR. VEZINA: It's similar to -- to the Defendants Bush that I reserved ruling on and subject to their renewal at the close of all the evidence and I believe it was an earlier indication that Mr. Richard --

MR. BECK: I'm speaking on his behalf.

THE COURT: Had basically come up and said he would reserve on in presenting the Motion to Dismiss and argue it at the time of Closing Arguments. So --

MR. BECK: We do not propose to make any legal

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arguments on those motions this evening, and we'll rest on the papers, rather than take the time to do that this evening.

THE COURT: Which papers now?

MR. BECK: Well, we've submitted a brief on our motions to dismiss. And what I'm suggesting, Your Honor, is that rather than take up additional time on oral argument for those motions, we'll rest on the papers, unless Your Honor wants to hear from us, then I'll be happy to address them.

THE COURT: That's up to you. You, of course, can stand on your motion and your memorandum in support of it, but I don't know -- you filed a -- you filed a response in opposition to that. I don't know if you want to stand on that.

MR. BECK: Judge, I'm going to want to be -- I'm sorry, I'd like to be heard briefly on that when we come back, so I'll address briefly our legal motions, but I won't be taking a lot of time.

THE COURT: I'm still trying to figure out where we're going to fit our last Intervenor into this, and what type of time period are we talking about.

MR. VEZINA: Just very few minutes.

THE COURT: Ten?

MR. VEZINA: I would think ten at the most, perhaps 15 at the most.

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THE COURT: All right. And I suggest it probably fits in well to do it at the same time Mr. Beck is going to make his argument. Well, I thought we'd try to group you up.

MR. VEZINA: I'd be happy to follow Mr. Beck.

THE COURT: We'll put you down at 15 or less, and that was Mr. Jennings at ten, and Mr. Klok had 30, and Mr. Myers and Madigan had -- they were going to try to share 15, somewhere in that area, and Mr. Mullin had 15, all right.

Now, since I've used up another 20 minutes of your time, how much time do you wish to take?

MR. KITCHEN: Seven o'clock is fine.

THE COURT: Seven it is.

MR. DOUGLASS: Your Honor, we have one hour; is that right?

THE COURT: Yes, sir.

MR. DOUGLASS: And what's the total time?

THE COURT: One hour, one hour, then Mr. Klok has 30, Nassau 15, Intervenors 15, Jennings ten, and Thrasher 15.

MR. DOUGLASS: Your Honor, we feel we should have some time to respond in addition to our argument.

THE COURT: Well, that's true, I suppose -- hold on. You're going to have to be responding. You've got to have some time to respond to any of the aspects of the motions is that what you're talking about?

MR. DOUGLASS: I'm talking about when we argue, and

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then they argue, we feel we would be entitled to some time to rebut all these arguments.

THE COURT: You've got the right to close, how much time would you like?

MR. BOIES: Half an hour.

THE COURT: Thirty minutes, very good.

(DISCUSSION OFF THE RECORD.)

THE COURT: All right. I believe we outlined our tentative time schedule after having a few minutes to review it. What I told counsel, do you feel that's sufficient for all parties, to have that on this record, this is satisfactory to all parties? All right, then let's proceed.

CLOSING ARGUMENT BY MR. DOUGLASS

MR. DOUGLASS: May it please the Court. First, let me say that all counsel appreciate you bringing this case as rapidly as you could to a conclusion of sorts here today, at least in this Court.

THE COURT: I could not have done it without the cooperation of highly skilled counsel.

MR. DOUGLASS: I did want to start this by saying one thing that doesn't at all relate to the argument, but this morning, I received from my 19-year-old granddaughter, some inspiration thoughts which she sends me, and first she quoted Proverbs, when she says all cats are gray in the dark, and I don't mean to say that this case reminds me of Proverbs, but

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it certainly gives me a start here as we go, because we are after dark.

Then she also sent another one from Proverbs that says the best of men are but men at best, and I trust when we end we'll be the same way. And then she sent me one based on Psalms, which I'm going to keep private.

But it reminded me of the great burden that we have here today, and how hard everybody has worked to try to get a just result for their clients and for others, so that we do arrive at what could be a good decision to move this case to the end. And I'd like to point out to the Court that the balance of the argument, with the exception of the Nassau County matter, will be argued by Mr. Boies.

And I will just briefly touch on Nassau County. But I point out that this is not a case where there's some technical application of this statute.

This statute is designed to protect the integrity of the vote. And that's to keep people from saying something was done when, in fact, it might not have been, but it would give the appearance that the election had been manipulated or changed or something of that nature.

And that's why there is a provision that says there shall be no person on the commission considering the election who was in the election as a candidate. And it doesn't say "may" or otherwise, it said, "shall," and that's 102.141 of

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the Florida Statutes.

And it also provides other ways to appoint a substitute member when you have to have one, it can be appointed by the Judge, rather than having the County Commission do it if that's necessary, particularly when it's a critical matter.

That's not a fatal error here, but it is pointed out, that it is very, very important that to keep the appearance that everything is done correctly for the public and for everybody else.

I don't think anybody, particularly this lady that testified here today, is trying to do anything wrong, but, unfortunately, I think they did a lot of things wrong that violate the statute.

All of which raise the issue there could be impropriety, not that there was. So those statutes have to be strictly enforced to preserve the integrity of all the ballots in that county, in all of the elections in that county, and I would like to point out that there has never been a recount of these votes of any kind.

What happened, there was a recount the night after that is statutorily required. And then without public meeting, or without any other thing, this group decided that when it got down to the time when they had to send in the final certification that, my goodness, we've got to not recount these, but we looked, somebody did, looked at this, not out

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at a public meeting or anything, and said, gee whiz, we counted these wrong.

And therefore, they called the Secretary of State, and I'm not inferring because they are Republicans, but this was a Republican benefit that occurred, but they advised her incorrectly that she could, or the Canvassing Board could amend these returns without any prior recount, or recertification of any kind. And they only -- and then they turned around and certified the first count without, in effect, performing the required mandatory recount by the statute.

We think that means that these 51 votes that were taken away in order to preserve the integrity of the system, the integrity of the counting of the ballots, must be allowed to stand. To do otherwise, would always hang a cloud over this county, as having, in effect, counted them favorably, to the big majority voters in that county, to the detriment of the others who chose to vote for other candidates.

And, therefore, we suggest to the Court that that is a fairly straightforward issue of law which is very well covered in the stipulation we filed, plus the other explanations that were made here.

With that, Your Honor, I will preserve time for my colleague, and may I say, which I'm sure the Court agrees that Mr. Boies has been, for us here in Tallahassee and

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Florida, a real pleasure to have in our community, and the following that he directs is well deserved.

And the fact he can put up with me as co-counsel, he deserves accolades from everyone, and I have thoroughly enjoyed it, and -- I am very pleased to present him to the Court to present our closing argument on behalf of Vice President Gore and Joseph Lieberman.

THE COURT: And let me point out that the Clerk has the clock.

Mr. Boies?

CLOSING ARGUMENT BY MR. BOIES

MR. BOIES: May it please the Court. I want to begin by going back to what I said in my opening yesterday, and that is to remind the Court that this is, as the Court well knows, a contest action under Section 102.168 of the Florida Statutes.

It is not a protest action under Section 166. It is not an application for a manual recount under Section 166. It is a protest. And it's terribly important to keep in mind the difference between 166 and 168 in this regard: Section 166 talks about manual recounts, and it talks about the obligation of a Canvassing Board to consider the possibility of the manual recount, to make a decision as to whether or not to do a sample, if a sample turns up enough votes to be meaningful to the election, to then undertake a

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mandatory recount of all the ballots.

That is not what is involved here. What is involved here is a question of a protest that the Plaintiffs have made with respect to particular counties and particular ballots.

There is nothing in 168, or in any precedent that says: In order to have an election contest in a statewide election, you must count all the votes.

Indeed, there are many, many cases of election contests under Florida law which the Courts have counted far fewer than all the votes. Sometimes as few as two or three or a dozen or 20. Sometimes several hundred, sometimes several thousand. But we are not aware of any authority, and I'm sure that if the Defendants have any authority, they will cite it to the Court that says that in a statewide election, in order to have a contest, an election contest under 168, you have to recount all the votes.

Let me turn to the issues that we have contested. And let me begin with Palm Beach County, because I think Palm Beach County ought not to take a lot of time, given the record that we have established.

First, the Court will remember that Governor Bush's counsel told the Court earlier this week on the record that they did not have any problem with the way Palm Beach County had conducted their recount. They thought that Palm Beach County had exercised their discretion properly. And the

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Court heard Judge Burton testify that they had identified 215 net votes for Vice President Gore and Senator Lieberman, as a result of a recount analysis that was designed to determine whether they could ascertain the clear intent of the voter.

And the Court heard Judge Burton, called by the Defendants, testify that they had been able to identify the clear intent of the voters. Such to add a net 215 votes to Vice President Gore.

There is no contrary evidence. There is no evidence in this record that suggests that those 215 votes are not legal votes that need to be included.

And those votes are, of course, votes that are not included in the certified results.

So we begin with 215 votes that the record is now undisputed, are legal valid votes in which the intent of the voter has been clearly demonstrated.

Now, it is arguable whether or not those votes should have been included by the Secretary of State on November 26th. We obviously think they should have. We think that the Florida Supreme Court decision compelled the Secretary of State to accept at least the votes that were certified as of 5:00 p.m. on that date. We think the Supreme Court's decision a dozen years ago, in State against Shapel (phonetic), compelled the State to accept returns that were

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90 minutes, 120 minutes late.

But whether we're right, or the Secretary of State is right, is fundamentally irrelevant at this stage, because at this stage, the question is not: Should those votes have been certified or not, should they have been included in the certification. The question here is simply: Are those legal votes that have not been included? And there can be no doubt that they've not been included. Everybody says that.

And, now, there cannot be any doubt that those votes are legal votes.

You have the uncontradicted evidence from Judge Burton, and you have the statement from Governor Bush's team.

Now, let me turn to the Palm Beach County votes that we do contest, the 3,300 votes. Those are votes that we have asked the Court to review and make a judicial judgment on, as to whether, under the law of Florida, the intent of the voter can be discerned from those ballots.

And one of the issues that the Court has been presented with is whether or not this Court has to apply an abuse of discretion standard, or whether it looks at that question de novo. And the Court is aware that we believe that that is clearly, under Florida law, a judicial question to be decided de novo. And you have both the statute and case authority, both going in the same direction.

As the Court knows, we rely on a long string of Florida

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Supreme Court decisions, not necessarily beginning with State against Williams in 1929, but certainly including cases at least back to 1929.

We've also relied on State against Smith in 1932. And in that case, the Florida Supreme Court expressly stated that the ballots were the best evidence of how the contest should be resolved, and they were to be looked at as original evidence by the Court. That's at 144 Southern at 366.

THE COURT: Is that State versus Smith, you say?

MR. BOIES: State versus Smith, the cite is 144 Southern 333, and then the particular portion I'm referring to is on page 336.

In 1936, the Supreme Court decided Peacock against Lathem. And, again, the Supreme Court held that it and the Circuit Court had jurisdiction to do an original count of the ballots then says --

Jumping to Bechstrom two years ago, in that case, the Supreme Court approved what the Circuit Court had done, in that case, as this Court knows, the Circuit Court had delegated to the Clerk of the Court, the process of counting the ballots.

And I want to take a detour for just a moment on Bechstrom, because the Court has heard a lot about voter error, and there's been a suggestion here that in contest actions, if the Court finds voter error, but nevertheless can

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discern the intent, the Court should disregard that voter intent. Now, there's never been a case that says that in Florida, there's nothing in the statute that says that.

But Defendant's counsel continue to argue that voter error somehow is an important concept to this litigation.

We believe that Bechstrom should have put that to rest once and for all, because in Bechstrom, the ballots that were at issue, the ballots that the Supreme Court ordered to be counted, were ballots in which there was unquestionably, voter error.

Just as the voters, in the punchcard counties, have been told punch all the way through, dislodge the chad, get rid of it entirely, the voters in Volusia County involved in the Bechstrom case, were told, fill in the bubble, fill in the circle with the Number 2 pencil, but they didn't do that. Voter error. A voter error that made their ballots unreadable by a machine.

But the Supreme Court didn't say: Well, we throw those out. They didn't even say we've got to look at all the ballots in the county. What the Supreme Court said is: You look at these particular ballots that are the subject of the contest, and you determine, regardless of voter error, whether or not you can discern the intent of the voter.

And the Supreme Court found that the Circuit Court was right, and that the Circuit Court could discern the intent of

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the voter, and so those ballots had to be counted.

Now, in addition to this unbroken line of Florida precedent, you have the language of Section 168 itself, which casts a protest action, and a contest action, not in terms of an abuse of discretion standard for the contest action, but in terms of an original action before The Circuit Court. And it says the Circuit Court has to make the judgment.

In the protest procedure, under 166, discretion is given to the Canvassing Board.

But in the contest section, 168, which, of course, is the section applicable to this proceeding, there is no provision for discretion in the Canvassing Board. There is no concept of abuse of discretion. There is no threshold requirement. So that Section 168 is consistent with State against Williams, State against Smith, Peacock against Lathem, the Bechstrom case, and all the other cases that we've cited to the Court, in providing that this is a question for judicial determination.

Now, it might be possible for the Court to put that question off, because the Court is going to have to look at the ballots, whether it is an abuse of discretion standard, or whether it is an original judicial decision.

The Court is also going to have to look at the Miami-Dade ballots, the 9,000, because there's been no discretion exercise, no one has even looked at those even

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once.

But we would urge the Court to directly deal with the issue at the earliest possible stage, as to the appropriate standard to be applied, whether it was abuse of discretion, or whether it is, this is an original judicial determination that this Court, in the first instance, has to make.

And we do that because we think the law is clear, and because we think that will simply identify the issues in terms of a ballot review and a ballot count.

So with respect, first, to the 3,300 ballots in Palm Beach, which are the first group of ballots that we presented to the Court for contest and for counting, we think that that review ought to proceed as expeditiously as possible.

Now, part of what the Court will want to take into account, perhaps, is some of the evidence that the Court has heard.

The Court has heard witnesses not called entirely by the Plaintiffs, but witnesses called from the Defendants, as well, who have told the Court that in a close election, a manual recount is the only way to be sure of how certain contested ballots should be counted.

You've heard some from Judge Burton, of the many kinds of ways that the Palm Beach Board found that people had not exactly followed instructions about how sometimes they put it

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on top of the throat, instead of in the throat, about how sometimes they don't punch all the way through. About ballots that, for whatever reason, were dimpled in every race, or dimpled in several races.

So there was unquestionably, a lot of ballots from which voter intent could be discerned, but the machine could not read them, just like in Bechstrom. Was it because of voter error? Was it because of inadequate instruction? Was it because of inadequate time? Was it because of a buildup of chad? And the Court will remember that box, almost chocked full of chad, and, remember, that wasn't a box we selected. That was a box that was sent up by the Canvassing Board.

The Court will remember the stipulation in which Miami-Dade agreed that it had not cleaned out the chad in those machines for eight years, machines that are used for a variety of state and federal elections, and we have union elections, and other elections.

Whether it was because of those factors, or any other factors, we respectfully submit to the Court, is not really the question. What is important is that we now all know from the record in this case, that in a significant number of instances, not even five percent, or ten percent, but down to the level of one or two percent, maybe not enough to make a difference in most elections, but many times more than enough

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to make a difference in this election, you have ballots that, for whatever reason, are not machine readable, whether it's the people, or whether it's the machines. And we've submitted, we think, a lot of evidence that it's not the people, that it is the machines.

But whether it is the people, and whether it is the machines, is not the critical question. The critical question is: Are there votes out there from which a review of the ballot can discern the intent of the voter, a manual review of the ballot can discern the intent of the voter that the machine can't read.

And we know that, we know that from the Bechstrom case, we know that from Judge Burton's testimony. We know that from the testimony of the machine expert that the Defendants made. We know that from the expert that we brought on election procedures, and the operation and characteristics of these machines. We know it from essentially every piece of evidence that we have, that there are ballots that the machine cannot read, but from which the voter intent can be discerned by a manual review.

Now, is that a lot? It depends. It's not hundreds of thousands. It's not tens of thousands. It may not even be many thousands. But it is certainly many, many hundreds, and perhaps thousands, and that is far more than enough to make a difference in this race.

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If you have only a fraction of one percent of ballots from which you can discern the voter's intent, but the machine cannot read, those ballots are sufficient to change the result of the election, and certainly to place that result in doubt. The standard of a 168 contest action.

Let me turn now to Miami-Dade. And in Miami-Dade, we have two groups of ballots. We have the 388 ballots that the Miami-Dade Canvassing Board counted. And the Court has heard from witnesses who may have agreed or disagreed with individual decisions that the Miami-Dade Board made, but every one of those witnesses testified that they thought that Miami-Dade Canvassing Board were competent, honest people, doing their very best to identify the intent of the voters. And they were succeeding in identifying the intent of the voters.

We brought in a statistical expert. They brought in a statistical expert. Both of them agreed on the arithmetic, they differed about what the consequences of that arithmetic was, but both agreed on the arithmetic. And the arithmetic is very telling.

In the precincts that were reviewed in Miami-Dade, Miami-Dade Canvassing Board was able to discern the clear intent of the voter in between one-fourth and one-fifth of the ballots that the machine did not read.

That was sometimes referred to as the recovery rate, in

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the sense that they were referring to ballots that otherwise would have been lost.

But however you describe it, you have a situation in which Miami-Dade was able to discern the clear intent of the voter in between one-fourth and one-fifth of all of the ballots that the machine could not read.

I think that there cannot be any doubt about those 388 ballots, just as I believe there cannot be any doubt about the 215 net votes for Vice President Gore that came out of Palm Beach, because, in each case, you have a group of ballots that have been gone through, and the clear intent of the voter has been discerned.

However, I will agree that there is one distinction between the 215 ballots on the one hand, and the 388 ballots on the other hand, between the Palm Beach situation, and the Miami-Dade situation. Because in the Palm Beach situation, we have undisputed evidence, and, indeed, we have the agreement of Governor Bush's counsel that the Palm Beach board was applying the right standard, was exercising its discretion properly, and that those votes truly represent the clear intent of the voter.

We don't have that concession with respect to Miami-Dade. And so it may very well be, because this is a judicial question, that in the absence of that undisputed evidence, and in the absence of that concession, the Court

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may have to look at those 388 ballots. We think that review can be done expeditiously, because we think that the Court will find that those ballots are extremely clear examples, because of the spade work that Miami-Dade has done. But we do recognize a distinction between the Miami-Dade ballots on one hand and the Palm Beach on the other in terms of what has already been counted.

The second group of ballots in Miami-Dade are the 9,000 ballots that have never been counted by a human being.

These are the ballots that have been counted only by a machine, and the Court knows from the undisputed evidence before the Court that the machine is not going to count a significant number of ballots from which the clear intent of the voter can be discerned. You know that from their machine expert and our machine expert.

You know that from Judge Burton. You know that from the recovery rate of Palm Beach County, and of Miami-Dade County, and to the extent it's in the record, of Broward County, as well.

So what needs to be done with those 9,000 ballots? We think the answer is obvious. They need to be counted. They need to be reviewed.

These are ballots as to which even the abuse of discretion argument that the Defendants make has no place. These are ballots as to the bending, and manipulating, and

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shaking argument that they make, has no place, because these have not been counted manually by anybody. So that these are ballots that we respectfully urge the Court clearly must be counted, and ought to be counted as promptly as possible.

Let me turn to, just briefly, to Nassau County, which is the issue that Mr. Dexter Douglass addressed, and in that connection, I want to emphasize Section 141 -- 102.141, which deals with the Canvassing Board's duties, and particularly Subsection (4) of that statute, which provides that there will be an automatic manual recount in the event that an election is sufficiently close, which it was here. And then the last sentence of that subparagraph says that if there is a discrepancy between the election returns, and the later tabulation, the machine recount, it is that later tabulation that controls.

That's what the statute says. Now, that doesn't mean it would be impossible to have a later tabulation, as part of either a protest or a contest you could have a situation in which you had the original machine count, and then you had the statutory recount, and then somebody said: That statutory recount is wrong. We believe it's wrong, so we're going to contest those results, and we're going to ask to have those ballots counted, again. That's possible under the contest action. But nobody did that.

What they did was, first, the people in the county

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tried to get some guidance. They said, "Well, what are we supposed to do?" And the Secretary of State's office says: "Well, you can just disregard the machine recount, the statutory mandatory machine recount."

Now, that was advice that was flatly contrary to the statute.

What they did not say is: You can have a contest, you can decide to recount those ballots, again. You can try to correct the error. You can open up those sealed boxes, and try to figure out what those votes are.

They didn't do any of the things they could have done. What they did was the one thing that the statute prohibits them from doing, which is to go back to the election night returns without any verification that those are the right returns because, Your Honor, all we know is that there is a discrepancy.

And the witness from Nassau County comes in and says, "We lost these 200 votes. But I don't know why. I think maybe they were upside down, but I wasn't able to check because the boxes were sealed, and I couldn't get anybody to agree to let me unseal them to look."

So what you have is just a speculation that maybe the first number, because it is higher, is right. And, yet, the statutory direction is that when you have a discrepancy, you pick the mandatory machine recount.

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The statute doesn't say: Well, take the mandatory machine recount if it's higher. But if it's lower, go back to election night returns.

You might have had a statute like that, but we don't. There is nothing in the statutory scheme that suggests that just because the election night returns were higher, a county Canvassing Board is permitted to take those returns as opposed to the later filed returns.

And there was, certainly, a time when I think everybody recognized that in Nassau County, because, not only were the machine recounts certified, they were faxed on Tuesday, they were sent on Wednesday. And, certainly, they knew then that the second count was lower.

But then when the absentee ballots were counted, the overseas absentee ballots were counted, they, again, sent in the old figures; that is, they didn't correct it then, either.

It was only after Thanksgiving that acting on what they thought was the advice of the Secretary of State, they went back to the election night returns. And they did so without any statutory authorization, without any precedent in their favor, and without any factual investigation, as to exactly what the ballots in the back you had would show.

Now, this doesn't mean that every time you've got a machine recount, that's the end of the story, because the

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statute provides for a contest if somebody believes that that mandatory machine recount is in error.

But they didn't do that. They simply went back to the first election night returns without any basis and in violation of the statute.

So we think that with respect to those 51, or 52 votes, that, too, is a question that, on this record is, a question of law that there simply aren't any disputed facts.

So, in summary, where we think the case stands now is that you have two groups of votes that we believe are clearly subject to a legal ruling, the 215 net votes in Palm Beach County, and the 51, or 52 net votes in Nassau County.

We also have either two or three depending on how the Court looks at the 388 votes in Dade, groups of ballots which, in our view, must now be subject to judicial review. Those are the 3,300 ballots in Palm Beach that we have contested, where a decision was made not to count them in the manual recount, but we have contested that decision, the 9,000 ballots inside Miami-Dade that have never been counted, and the 388 ballots in Miami-Dade that have been counted, we agree with those counts, but it may be that the Defendants disagree, and that will require the Court to review them.

Now, let me touch on a couple of arguments that I know that the Defendants are going to make, because they made them to the Court before, and, obviously, I will respond in

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Rebuttal, but I want to -- I want the Court to have a context of what our view is when the Court listens to what they have to say.

First, there may be an argument, they certainly made this argument before, that somehow you have to recount all of the ballots if you're going to have a contest on any of the ballots. That is something that I challenge them to cite the case that says that, because the statute doesn't say it.

And the case authority in which Circuit Courts and the Florida Supreme Court have repeatedly had election contests in which they have reviewed less than all the ballots at issue, are to the contrary, because what the section says is that you have to look, and you have to test the allegations in the complaint, and the allegations in the complaint are the ballot contests that we've identified.

Now, the second thing that they've begun to say, and that they may argue today, is that somehow the Miami-Dade ballots have been contaminated in some way. Now, exactly how that has happened isn't particularly clear. Nobody has brought in any evidence.

There was a suggestion to the Supreme Court that they needed a witness to identify the ballots. Florida law makes clear that the ballots themselves are official records. You don't need a witness to testify to the ballots.

I think that however creative their argument is in

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terms of contamination, that is clearly something that they bear the burden, and that burden has not been met.

Indeed, if you listened to the people from Palm Beach County, and you listened even to the Republican observers from Miami-Dade, I think the Court got the sense of citizen officials trying their best to deal with a difficult situation, making every effort to get it right, keeping close controls.

The Court is well aware from telephone conversations, and from this hearing, Mr. Greenburg's intent to make sure that Miami-Dade got it right, and that when they moved the ballots, they moved them in a way that this Court directed them, so that there would not be a chain of custody type argument to try to distract the Court.

So the Court has the ballots. The ballots have been segregated. That is the undisputed evidence, and those ballots are available for the Court to review.

Finally, they have argued from time to time that in this case, in this contest case, that other matters should be injected, matters from other counties with which they may or may not have a disagreement.

You have heard the Intervenors argue that somehow the Court should take into account in this contest, whether or not the networks prematurely called the race for Vice President Gore to the detriment of Governor Bush. I

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think the Court has no competent evidence before it from which the Court could conclude that that had any effect on the election.

But irrespective of that, and more important than that, whatever effect that had is not relevant to a contest action, which, under the terms of the statute, timely asks whether there have been legal votes rejected, or whether there have been illegal votes received. And it is up to the Plaintiff to identify the legal votes that the Plaintiff claims have been rejected, and the illegal votes that the Plaintiff claims have been received.

And we've done that. We've done that in each of the five issues that we've put in front of the Court. Those, we respectfully submit are the issues for the Court to decide, some of them issues of law, others the issue of the application of law to the individual ballots themselves. Thank you very much.

THE COURT: Thank you, Mr. Boies.

CLOSING ARGUMENT BY MR. RICHARD

MR. RICHARD: May it please the Court. Like Mr. Boies, I will rush to, in my Opening Statement, the threshold question that I believe defines the task that this Court faces in this proceeding.

And I believe that a good beginning point to analyze that task is the statement of the Florida Supreme Court in

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the 1981 case of McPherson v. Flynn, at 397 So.2d 665, in which the Court said: Since there is no common law right to contest elections, any statutory grant must necessarily be construed to grant only such rights that are explicitly set out.

In other words, among the three co-equal branches of our government, it is the Legislature which our constitution has entrusted the right and the responsibility of determining the circumstances under which an election can be contested, and there is none other than what it has stated.

So, too, the constitution has entrusted the Legislature for the Legislature the right to determine when, if ever, there shall be a manual recount, and I pause here to note that there is no right by the federal or state constitution to manual counts.

Now, the Florida Legislature has indeed told us in very explicit terms, the circumstances under which there can be a manual recount, and what body makes that decision.

It did it in Section 102.166, Subsection (4)(C), a section which Mr. Boies conveniently ignored, and here's what it says, "The county Canvassing Board may authorize a manual recount," period.

Now, the County Canvassing Boards are interesting bodies, they are unique within our system of government. The Legislature has provided that they shall be composed of a

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representative of each of the branches of government: A Judge, a Supervisor of Elections from the executive branch, and a member of the County Commission, indeed, the chairman of the County Commission, a legislative branch.

All of them, with the singular exception of Dade County elected officials, and all of them at the closest level of government to the people.

And it is that board, and that board alone to which the Florida Legislature has entrusted the decision as to manual recounts, and I defy Mr. Boies to find for this Court any other provision of Florida law that entrusts that decision to any other body.

Now, in his effort to suggest to this Court that the review of ballots is de novo, he rests upon a premise which I suggest his entire case needs for success, and it is this: That there it something different about a Section 168 contest, than the provisions of Section 166, which lay out the circumstances for recount.

Mr. Boies suggests that once a contest has been demanded under Section 168, that we no longer concern ourselves with the authority of the county Canvassing Boards, they essentially disappear.

And what they have done is no longer important, it is no longer a question of abuse of discretion.

Just two weeks ago, the Florida Supreme Court, the

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Palm Beach County Canvassing Board, in Palm Beach v. Harris, told us this: "The decision whether to conduct a manual recount is vested in the sound discretion of the board," and they refer to the county Canvassing Board.

Once the county Canvassing Board has made that decision, there is only one other provision in Florida law for a person to challenge it; and that is a contest under 168.

Now, if Mr. Boies is correct, then what did the Supreme Court mean when it says: The decision whether to conduct a manual recount is vested in the sound discretion of the board? What did it mean? Because according to Mr. Boies, once that decision has been made, and the next thing, by statute you can do is an election contest, the Court can disregard what the board did.

Well, that's not discretion, sound or otherwise. That's meaningless, because as soon as the board acts, the Court can disregard it.

I suggest to this Court that that is not a proper construction of Florida law.

What Florida law says, not only with regard to Canvassing Boards, but, in fact, all fact-finding boards, is that when the Legislature entrusts to a fact-finding board the authority to act, and that board acts within the scope of that authority, the standard for review is abuse of

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discretion. And that's what the statute says here, and that's what the Florida Supreme Court has told us. When it said that the board has the right to act within its sound discretion.

Now, once the Court says that, we know it leads to one, and only one conclusion: The standard of review is whether they abused that discretion. That's what discretion means. And we also know what the test is for whether or not discretion has been abused, it is the reasonable person test.

The test is can reasonable persons differ as to what that board did, and if they can, you can't overturn it. If any reasonable person could have done what the board did, knowing with what the board knew, it's not subject to being overturned. That's elementary law school fact. It's a simple principle, and we know it.

Now, Your Honor, I would discuss it in greater detail with respect to each of the issues that Mr. Boies has talked about, that there is no evidence in this case of any abuse of discretion by any of the county Canvassing Boards that are being challenged. But, first, I want to talk about Mr. Boies' cases.

In my Opening Statement, I invited Mr. Boies to tell this Court what case law provided that the review of an election is de novo in the sense that once a county Canvassing Board has decided not to conduct a manual recount,

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or has conducted a manual recount, that the Court can disregard it.

Mr. Boies has provided the Court a series of cases, primarily early cases in the 1930s, and 1920s, I don't suggest that that makes a difference. But I will tell the Court this: If you read these cases, you will not find in any one of them any discussion of the discretion of a Canvassing Board, and the right of a Court to disregard it. It is not an issue in any of these cases.

In State v. Peacock, there was no Canvassing Board involved, there was no discussion of de novo review. It is true that the Court reviewed ballots, but this issue was not before it.

In State v. Smith, there was no discussion of de novo review. There was no recount by a Canvassing Board. It was not an issue in the case. The issue in the case was the proof necessary to justify a recount.

And with regard to can -- by the way, Your Honor, I will not spend the time to analyze every case, but I will tell you that not one of the cases cited in the State of Florida by Mr. Boies is contrary to the proposition that I have presented to this Court and that flows necessarily from the decision two weeks ago from the Florida Supreme Court in which we were told that the board has the sound discretion to make that decision.

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And by the way, while the Court only had reason to address the decision as to whether or not there should be a recount, the same, necessarily flows from the identical provision of the statute with respect to what the board does in the course of making that recount. It, too, is within its discretion.

Now, Mr. Boies also discussed the Bechstrom case. The Bechstrom case had nothing to do with the Canvassing Board, and I mention the Bechstrom case only because Mr. Boies mentioned it for the proposition that in order to recount ballots, it doesn't matter if there was voter error, I'm going to talk about that in greater detail in just a few moments. I was told by a speech instructor once never to say that, because you just make the listener fearful that he'll have to hear more, but I thought I should give you warning anyway.

This had nothing to do with voter error, I'm going to get to a critical portion of the Bechstrom case. The Trial Court determined that the key issue in the election contest was the re-marking procedure used by the officials on many of the absentee ballots so as to enable those ballots to be counted by an electronic scanner. The marks on the ballots sometimes were not dark enough to go through the scanner, so the election officials marked it darker.

The Court said: The Trial Court found that this

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re-marking procedure was not in substantial compliance with Section such-and-such because the procedure provided no reasonable substitute means for verification.

The only holding in this case, Your Honor, was that the standard utilized by the lower Court was wrong, that it was not necessary to show fraud in order to question what the election officials did.

Now, again, I'm going to discuss that further later, because I think that the issue of voter error is an important one.

Now, again, I believe that the law clearly states that the discretion lies with the Canvassing Board.

And that being the case, it makes no difference -- but let me pause and point out here that there are 64 counties in this stays that performed no manual recount. It wasn't requested by the Gore team or by the Bush team, 64 counties provided no manual recount, and the right to a manual recount in those counties, as any counties, has nothing to do with chad buildup or hardening of rubber.

And you can take the testimony of Mr. Brace and Mr. Hengartner and march it down the road to the Supreme Court, and I don't think that any one of us truly believes that the Supreme Court will say that all of the 64 counties that used the Votomatic machine must have a hand recount because of that testimony. That's not what the law says.

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What gives you a right to the manual recount is not chad buildup, it is not hardening of rubber, it is the discretion of the Canvassing Board.

Now, I don't mean to suggest that under Subsection (1) 678, you can't have a case in which an election is thrown out because the magnitude of problems is so great that the Court determines that the result cannot be relied upon.

Of course, that can happen, that's why we have Subsection (1) 678. But we have not one shred of evidence in this case of any problems with any voting machine in any precinct, much less problems of such magnitude as to justify that.

It was interesting to me that Mr. Boies said at one point: There is no evidence in this case of contaminated ballots. Well, there is no evidence in this case of any problem with the voting machine.

There is the speculation of one witness that these types of machines might have a problem because of chad buildup or hardening rubber, testimony that was vigorously disputed by other witnesses, and there was testimony of the statistician about associations.

But I kept waiting for a witness to come in here and testify that there was a problem somewhere in this state, and that the problem was of sufficient magnitude to overturn the count anywhere. And there is none.

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Now, Your Honor, I'd like to talk about each of the counties that was challenged, and I will begin with Dade County. Now, what happened here is the Dade County Canvassing Board made the decision not to recount, the board changed its collective mind and conducted a partial recount of one-percent. And then it changed its collective mind, again.

First of all, I'm not sure what the law is here with regard to changing the mind of the board, but it seems to me that the Gore camp loses either way.

If the rule of law is that the board, having made a decision cannot change it, then its first decision holds, and there should never have been any recount. On the other hand, if the law says that the board has the discretion to change its mind, then it had the discretion to do it the third time, but that makes no difference, because that's not really the issue here.

The issue is that the board told us, and it's in evidence, that its ultimate decision not to go forward was based upon two things.

First, that there was insufficient evidence there, the one-percent count, that there would be an effect upon the ultimate result of the election. Supervisor Leahy voted against going forward with the full count because of the fact that he was not convinced in the first place that there was

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such evidence, and the Gore team has not provided this Court with a single item of evidence to suggest anything to the contrary.

There is no evidence in this case that the count, the difference that was shown after the initial count in Dade County when one considers the demographic nature of the precincts would have made a difference.

We had the testimony of Mr. Spencer, which was undisputed that the count that they had came out of a very heavily Democratic precincts, and that it would not hold true throughout the rest of the county. But there is no evidence. And I return to the facts that the burden in this case is not on my client.

We have a Plaintiff seeking to overturn a major election, at least with respect to recounting all the votes. The burden lies with the Plaintiff.

The Plaintiff brought in no evidence to suggest that there would have been a difference in the election in Dade County.

And that statute doesn't just say that there was a difference in the vote. It says two things, there has to be, number one, a difference in the vote between the machine count and the initial one-percent vote by hand. And, number two, it has to be enough of a difference so that one can conclude that it might change the effect of the election.

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Now, the only thing that we have here is the conclusion of the Gore team that if we multiply that number of votes by the total number of precincts, it will be enough to change the result. But their own expert Mr. Hengartner, when he retook the stand a few moments ago, said that's fallacious reasoning, you can't reach that conclusion, so we have no evidence here to suggest that.

But the second reason that the board voted not to go with the full count unanimously was an intervening act that occurred after they had begun, and that was the decision of the Florida Supreme Court that said: You must certify your results by 5:00 p.m., on Sunday, November 26th, period.

Now, let me pause here to discuss that for a minute. Mr. Boies appears to me to be suggesting not only in this respect, but also record the additional votes in Palm Beach County, that the Supreme Court really didn't mean that, that somehow this Court now has the ability to find that the deadline that was very clearly set by the Supreme Court of November 26th at 5:00 p.m., that you can overturn that discretion, that this Court somehow has the power to say: Well, I'm going to grant you the ability to get it in, anyway. I don't know where that comes from.

We had a major battle before the Florida Supreme Court, and it resolved it, and what it said was: We're going to give you some extra time, but we're going to put a deadline

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on it, and it was a very explicit deadline, 5:00 p.m. on November 26th, unless the office is closed, in which case it's 9:00 a.m. the next day, period. And Mr. Boies has no authority to suggest to this Court that they can disregard what the Florida Supreme Court did, any more than the Canvassing Board.

Now, the Dade County Canvassing Board recognized that the Florida Supreme Court had given it a very definite deadline and came to the very reasonable conclusion which only they had the right to come to, that they could not possibly finish the count on time.

Now, what the statute said, was, if you do a one-percent count, and then you go forward, you must then count all of the votes. And what the board said. In fact, if we did a partial count of the votes, we would be choosing a segment of the population that lives in precincts that has a different portion of support for the President, and they said we can't do it, we're not going to go forward.

Now, the law is -- we all know the law that says that nobody -- the laws never expect anybody to engage in a futile act, and that includes Canvassing Boards, not only a futile act but a very extensive futile act.

And interestingly, Palm Beach, which was well into its count by the time the Supreme Court rendered that decision, far beyond Dade County which had only just started and which

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was smaller than Dade County was not able to make the deadline, despite the conscious effort that that board made. So in retrospect, Dade County's conclusion that it could not make the deadline was apparently the correct one.

The Plaintiffs have given this Court no reason to overturn that decision by the Canvassing Board. Not only did they have the discretion, not only was there no abuse of discretion, but there's no reason to, even if it were de novo.

Let me address Nassau County. The supervisor took the stand, and I felt when she was concluded, frankly, I came close to standing up and suggesting that everybody in this room appreciated her years of service that she had done so well by, but I was fearful that it would appear to be grandstanding. And she gave us a very reasonable and undisputed explanation of what happened in Nassau County.

I heard Mr. Boies say that she said I don't know why that happened. I didn't hear her say that. I heard her say she knew exactly why it happened, because it's the only rational conclusion.

Let's keep in mind, in Nassau. We're not talking about which candidate got which votes, we're talking about two machine votes. One said there were 218 less votes cast, and the other said more. And that's not possible, unless she said there's nothing wrong with the machines. So there is no

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rational explanation, and she knew what it was, they forgot to pick up 218 cards and put them in the machine, and they made the rational judgment that they would go with the first certification. Here Mr. Boies reads something into the statute that I don't read.

I find nowhere in this statute, where it says, "If there's a difference that the county Canvassing Board must go with the second count."

I'm going to read the provision that Mr. Boies was talking about. It says, "If there is a discrepancy between the returns and the counters -- the returns being what the Canvassing Board submitted as returns, the counters, being, presumably, the gadget, or whatever the device, of the machines, or the tabulation of the ballots cast -- the counters of such machine or the tabulation of the ballots cast shall be presumed correct, and such votes shall be canvassed accordingly."

What that provision is talking about is not the difference between the first machine count and the second machine count, it's talking about the distinction between the machine count and the returns that were submitted.

There's no place in this statute that says that the Canvassing Board must go with the second machine count, and why would it? Why would we assume that the second count was right, and the first one was wrong? Now, in this case, it

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was a very rational reason to go with the first one, that's what they did. Mr. Douglass talked about a public meeting in kind of nebulous terms.

I heard nobody suggest to this Court that there was anything wrong with the meeting that took place. The supervisor told us that they went to extensive efforts to meet the requirements of the public records law, and by the way the public records law I know well, because I've dealt with it for many years, and, in fact, when I was in the Legislature, I introduced a major rewrite of it, the public records law says nothing in it about notice.

But it has generally been recognized by the Courts and the Attorney General in this state, that implicit in it is the obligation to give such notice, asking reasonably notice be given under the urgency of the moment. That's the rule.

And I can't imagine anything more reasonable than what this board did. They notified the major circulation newspapers. The supervisor said they placed it in the Florida Times Union, which she said appears on the doorstep of almost every resident in Nassau County, and they posted it on a whole series of public buildings, and they managed to get enough information across so that they had about 50 people present when they had the meeting.

But I haven't heard anybody suggest there was a violation of the public records law. And I haven't heard

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nobody suggest any reason why this Court should do anything with the Nassau County vote, certainly not begin a manual recount.

And that brings us to Palm Beach County. I want to begin, Your Honor, by clarifying one thing with regard to my clients' position on Palm Beach County. You will recall that the testimony was that there was a rule that had been adopted in Palm Beach County some years ago, I think it was that said that dimpled ballots were not to be counted in the absence of anything else. And the Canvassing Board began by following that rule, because it was their precedent, and then they changed.

Now, I pause here for just a moment to say that it is our position that they could not change because there is a provision of the United States Code, 3 United States Code, Section 5, whereby Congress says, you can't change the rules after the election is in progress when you are selecting presidential electors, you must play by the rules that were in effect at the time that the election began.

And I mention that because we believe that based upon that requirement, Congress, by the constitution, has the right to preempt the rules to the extent it desires to do so. That being the case, it is our legal position in this case that the Palm Beach Canvassing Board was required not to count dimpled ballots, and there is no law that says you must

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count dimpled ballots, constitutional or otherwise, so that is a legal position, and we assert it most vigorously, however, I will not dwell further on that, because I think it makes no difference.

The Florida Supreme Court in its decision two weeks ago, quoted from the case of Pullen v. Mulligan, the Supreme Court of Illinois, in 1990, a case which Your Honor may know has become somewhat known for its misinterpretation and here is a portion of the case that the Florida Supreme Court quoted. The Illinois Court said: "Our Courts have repeatedly held where the intention of the voter can be ascertained with reasonable certainty, from his ballot, that intention will be given effect."

Further down in the opinion, the Court said: "Again, to invalidate a ballot which clearly reflects the voter's intent simply because a machine cannot read it would subordinate substance to form."

And then finally the Court said: "Where the intention of the voter can be fairly and satisfactorily ascertained, that intention should be given effect. Clear intent, fair and satisfactory."

That's what the Pullen Court said, and that's what the Florida Supreme Court two weeks ago adopted, Pullen is interesting for another reason because it is analogous to this case in one respect, very close in one respect to

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Palm Beach County. One way it was not close is we were only talking about a total of 27 votes in the Pullen case, that's what was at issue, 27 votes.

And what happened was -- and there was no Canvassing Board issue there. The trial Court had determined that dimpled ballots would not be counted, period.

And when it got to the Illinois Supreme Court, the Illinois Supreme Court said: You can't have a per se rule like that. If the clear intent of the voter can be fairly and satisfactorily determined, you must count it whether or not it's a dimpled ballot, and they remanded it.

And on remand, the Court reviewed the 27 ballots and said: There are still19 ballots with dimples that we cannot determine the intent of the voter, and the Supreme Court said, fine, that's reasonable, they don't count.

That's what Judge Burton told us they did in Palm Beach County, and I'll tell you, Your Honor, it's interesting to me because I have been wondering exactly what it is that Mr. Boies is suggesting that this Court should do different from what the Palm Beach County Canvassing Board did very conscientiously for a very long time with many thousands of ballots.

I don't understand, and perhaps he can tell us when he has his reply, what it is this Court, or any group of individuals this Court should appoint, would do different

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than what the Palm Beach County board did, because what they did, as I heard it, is exactly what the Pullen case, the Supreme Court of Illinois said you should do, and the Florida Supreme Court, by adopting it says you should do, and any rational judgment of a human being suggests you should do.

Because if we do anything else, if we do what the undercurrent of suggestion really is that you need to count all dimpled ballots, that's just as much of a disenfranchisement as the person who didn't vote not counting it at all, maybe worse.

And here's where I want to pause for a minute to talk about voter responsibility. A voter can't come into Court and say: I forgot to go to the polls on election day and say: You need to give me another chance, and the voter can't say I went to the wrong precinct and voted the wrong place, let me vote, again.

Why is it any different when a voter walks into the booth and either fails to read the instructions properly or if he can't read them or she can't read them fails to ask the personnel who are available for such person to help and votes wrong.

And as a result of voting wrong, fails to give the Canvassing Board, the Judge Burtons, enough of an indication of intent for them to be able to figure it out. What that voter has done is delegated to somebody else, his or her

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vote. And we don't allow that.

Now, we don't have any evidence in this case, in fact, that any of the so-called dimpled ballots that the Palm Beach County Canvassing Board did not count, were that way because of a buildup of chads, or a hardening of the rubber, any more than we know they were that way because the voter just didn't pay attention to what he or she was doing.

But we know one thing for sure, because we heard Judge Burton, and we heard no conflicting testimony, what we have now is that three human beings, who by the way, Judge Burton testified, voted almost always unanimously, concluded there was no rational way to determine the intent of those voters that they didn't count.

Now, also on Palm Beach County, we have this issue of suggesting to the Court that just because the Palm Beach County board counted a vote, and we know how many additional ballots there were, the Court can overturn the Supreme Court's deadline, and, again, I know of no authority to do that. And the argument here is: Well, but we know those people voted and we need to count it. There's probably thousands of voters in the 67 counties that were never manually recounted that aren't going to be counted either, and that's the way it is, because we have laws, and we must abide by them.

By the way, he said 215 votes, I understood it was 183

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votes. We need not dwell on that. There's one other issue on Palm Beach and I'm almost finished. And by the way, let me go back, with regard to this voter error, the Supreme Court on December 1st dismissed all the cases that arose out of Palm Beach that were challenging the butterfly ballot in which the voters were saying the ballot was so confusing and I didn't know what I did.

And there have been statistics there quoted widely publicly about the unusually high number of votes that were cast for one particular candidate, and an associational suggestion that that wouldn't have happened unless voters could read the ballot.

The Supreme Court dismissed those cases with prejudice. It said there's nothing wrong with the ballot and implicit in that decision is a simple lesson. Voter confusion, voter mistake is not enough.

The voter has some obligation to do it right. You cannot come into Court later and say: I was confused. I didn't read the instructions well enough and I got it wrong. And we have no evidence in this case that anything happened. Again, the burden is not on my client.

The last thing I want to mention about Palm Beach County is this. The testimony in this case, again, I keep saying this but it happens to be true, which is undisputed, was that at the time the Palm Beach County Canvassing Board

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publicly stated its intention to proceed according to Judge LaBarga's rulings, which I believe they did, his rulings said: We need to look at the totality of the ballot, and you need to determine, if you can, and he quoted, actually, from Pullen, the clear intent of the voter -- if you can determine the clear intent fairly and satisfactorily, then you should do it, that's what they did, they followed his rulings.

But when they announced that's what they were going to do, nobody went back to Judge LaBarga, and nobody has appealed Judge Labarga's order.

As a matter of fact, that order was required at the request of the Democrats in a case in which Mr. Gore was a party.

We have a doctrine of law in this state, and throughout this country, called estoppel. I suggest to the Court that these Plaintiffs had no right to allow the county Canvassing Board to continue to proceed along a standard that they asked nor, until they completed the count, and now come to this Court and say: Overturn that count and have somebody do it over, again.

Because the time for them to have done that if they thought it was wrong was when the count was going on. They've certainly -- we're not dealing with Plaintiffs here who are shy about taking appeals. And they had adequate

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opportunity to appeal to the District Court of Appeal, just as they appealed several of our cases, and they chose not to, or to go back to Judge LaBarga and suggest he made a mistake which they did not do.

The burden, once, again, Your Honor, is on the Plaintiffs. I respectfully suggest to this Court that we are light years from any carrying of that burden. There is no proof of any problems. There is nothing but two witnesses with speculation. There is no evidence. No evidence which is sufficient to overturn the count that there would be a change in the results. There is no evidence of abuse of discretion, and once, again, I urge upon this Court that that is the issue.

There is no suggestion that the county Canvassing Boards were not both reasonable and competent in making the decisions that they made, Mr. Brace, the Plaintiff's witness, said they were among the most professional Canvassing Boards in the country.

And I leave the Court with two questions in the course of your deliberations. The first is what this Court would do, again, different or instruct anyone else to do different from what the Palm Beach County Canvassing Board did, and the second is whether Florida is prepared to tell the American people that it will disqualify its electors and possibly hinge the election of the Presidency on the only two

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witnesses presented by the Plaintiffs. Thank you, Your Honor.

THE COURT: Thank you, Mr. Richard. Mr. Klok?

CLOSING ARGUMENT BY MR. KLOK

MR. KLOK: Yes, sir. Your Honor, This is a very unattractive place to be in this lineup. The only job that is less attractive is yours.

On Friday the Supreme Court of the United States considered this whole matter. On Tuesday the United States Court of Appeals for the Eleventh Circuit is going to consider it. The Supreme Court of Florida has weighed in, and the Legislature is poised over here on the side bench to pounce, as well.

Your Honor, the thing that is the most striking when you consider all of this is what I believe to be an extremely cynical approach that has been taken by the Plaintiffs here. On the one hand, the argument is made that this is a contest, Judge. Let's not pay any more attention to 166.

But then what you have to do is you have to look to the relief that they're looking for, because they switch back and forth, back and forth, whenever it meets their fancy.

For instance: The basic theme that we hear everywhere on the radio, TV, and courtroom is: Let's count all the votes. So let's start with Nassau County, okay. This is supposedly a contest action, right, so it's supposed to look

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to 168. Do we see the Plaintiffs seeking to have a manual recount in Nassau County? No, no, Judge, that's not what we want to do in Nassau County. What we want to do is in Nassau County is take that superb public servant who sat there and crucify her.

The point is a mistake was made. Everyone knows a mistake was made. It's very, very clear. Do we want to count the votes in Nassau County to find out what happened? Nope, we want to go back to the number that we like, which is the second number that was a mistake, not properly what you would expect to see in a contest.

Then, Your Honor, even though we're having a contest, we have to sort of go back and forth to 166 when we want to. What's the relief we're looking for in Palm Beach County, or Broward County or Dade County? In Broward County, we're happy, because apparently the standard was if you get enough votes for your guy, you don't have to contest it. But now we look at Palm Beach County. What's wrong with Palm Beach County? Well, what's wrong with Palm Beach apparently is instead of interpreting every dimple that appeared next to Mr. Gore's name as a vote that board sat down and said well, gee, if they punched all the holes here and they only have a dimple here, we don't think that's a vote. Unacceptable to Mr. Gore and Senator Lieberman. That is unacceptable.

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They have to be mandated by a Court to be counted. Now we've heard testimony from their expert, the guy who talked about the voting booths. And he testified, when I asked him: What would happen if you looked at a ballot and you saw a punch and a dimple? Well, he said, that's obvious, the dimple is the mistake, and punch is the vote. Okay. But, if you see dimples other places they're not mistakes, they're votes.

Then what you do, Judge, is you have to look back and forth as to what kind of relief is being offered. In the case of Nassau, this lady is being excoriated because of a relatively minor mistake. And we all know listening to it that's all it was. Meanwhile back in Palm Beach County, the Secretary of State, the much maligned client that I represent, is supposed to, in the face of a Supreme Court order that almost tells you how you're supposed to unlock the door on the day you receive the voting tabulation says, if you're open on Sunday, you take them by five. If not take, them by 9:00 a.m. That should be pushed aside and we should take the later return, and if we don't take the later returns, Judge, what we should have taken are the returns that are evident by five o'clock.

I don't have the record reference, and maybe we can get it while I'm babbling along up here, Your Honor. But the fact is, if you look at that document that was given to us by

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Palm Beach County, if you can devine what the count was of manual votes as of 5:00 p.m. on Sunday, you will be the brightest man in this country, because it's unascertainable. And to this day, I believe, yesterday or sometime today the Secretary of State received some document which purports to be the final returns from Palm Beach County.

But don't count those 51, but whatever number of votes come from Palm Beach County, no matter when it drags itself in, that's just fine. Oh, and while you're at it, go back to Palm Beach and anything that has a dimple on it, count for Mr. Gore.

Now we roll down to Miami-Dade County. Well, unfortunately, again, the only theme that's important is you garnish as many votes for your candidate as you can. In Miami-Dade what they did and what we're supposed to do under the protest statute, is we start out by doing the automatic recount, we all know that. It's done by machine. And then either the candidate or the party, not a party voter, may ask for a manual recount. But they're not entitled to a manual recount. They're entitled to a test. The test that is done on one-percent of the voters, three or four precincts, whatever it is.

The statute tells us two things with respect to the test. Number one, you have to look to see whether or not it demonstrates an error in the voter tabulation system. The

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other thing we're supposed to do for purposes of this analysis is to forget where that statute came there, even though we know where it came from, it came from the 1998 race between now Senator Mack and Special Envoy Mckay, when there was a mess with the voting machines in 1988.

Twelve years ago in computerland, Your Honor, is like two centuries ago. And what they were concerned about there in Florida we had no right, none, zero right to a manual recount in the State of Florida. So they created a minimum right to a manual recount. And that statute is as clear as a bell that it is designed around mechanical or electromechanical failures. Okay, but forget that. When you do the test, you're supposed to see whether there was an error in the voter tabulation system.

The testimony put on there and records we will show you from Broward County, when they finished the test, they discovered there was no error in voter tabulation. But, for different reasons, each of them went forward. Judge, that's just politics. That's the way it works. What was the thing that caused them to go forward? After having done an analysis of 5,000 votes, that came from 90 percent, Democratic precincts in Miami-Dade, we came up with six, count them, six votes. And we looked at the six votes for the Vice President, what did we find? In each case we found voter error. Based on that, they made a decision, two to

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one, not to proceed.

Now, we know from the argument that apparently the decision not to proceed was not a mandatory decision. What became a mandatory decision was, when you voted to proceed, although in voting to proceed later on, they did not do so based on any of the statutory criteria, I gather they did so with respect to something else.

Now, Your Honor, what is a poor Judge to do? Let's say, for instance, that they're right, and we're going to sort of go over to the contest statute now, although, as you can tell from Mr. Boies' argument, they would borrow from the other, and go back and forth as need be, whatever the need is at the moment. But as to the contest, Judge, what are you to do?

If you look at the case law, and let me refer back to Mr. Boies' Opening Statement, as opposed to mine, and I quote from it: Rather than go decade by decade, referring to case law, I'll jump all the way to the Bechstrom case in which the Supreme Court held in an election contest case that you will look at the ballots.

The Bechstrom case was a voter error case, a case in which the voters were instructed to color in an optical ballot with a Number 2 pencil. They didn't do that, and it was voter error. The Court held the right way to deal with an election contest was to have the Court look at the ballots

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and make a determination. The only similarity between that and the case was the spelling of Bechstrom.

That case had nothing to do with voter error, it had to do with improprieties by voting officials. What happened in the Bechstrom case, and I think we heard some testimony on that, although it blends itself together, they when they had these votes where they had not properly, completely filled in the mark, the voting supervisor went through and colored it in with a Magic Marker or something. The issue, and I'll hand it up, I don't have copies.

Its the Trial Judge's decision, Your Honor. Very interesting to read, because the Trial Judge did an extensive analysis of what happened there. Judge, everything you could do wrong as a voting official, they did wrong in that case.

And if you just look through it, it's just like the catalog of voting official sins. And the issue that the Trial Judge was dealing with there was a novel one in Florida law, because it was passed by the District Court of Appeal directly to the Supreme Court, and that was, when you found gross negligence. But it did not lead to, I think, fraud or an improper result. Can you ignore it? That was the issue they were dealing with.

And the Trial Judge there, Judge Doyle, ruled that he was not going to be bound by that, because he was not going to block the voter intent, because when he looked at the

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ballots, he was able to tell underneath the Magic Marker where the original mark had been made, and it went up to the Supreme Court of Florida and they basically affirmed him. It wasn't a voter error case at all, Judge.

Let's look at all of the cases in Florida, and all of us love the oldies but goodies. No two ways about it, the old cases in Florida articulate marvelous law. But the old cases in Florida have not dealt with computers, or computer voting. It's a whole new world. And if you look at the statutes, you will see it was never contemplated to do a statewide race under these statutes, and I defy anybody to find a case in Florida that deals with a contest of statewide race that made it up to the appellate level.

So here is the difficulty we have: All the cases you look at, sure, we can go back to those old cases, Judge, and what they're doing is pulling out a ballot and saying, gee, if you put the X on the right of Mr. Smith's name, as opposed to on the left, you should give that voter intent. There's a far distance from that point to holding the card up in the air and deciding whether you're going to use the Leahy two test, which is to turn it sideways and see if you see a bump, whether you're going to use the sunlight test, whether you're going to use the fingernail has run over it test, or all the holes are punched test. What test are you going to use and where?

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For instance, are you to use, if you follow through what they want and you go to Palm Beach County, do you use the Burton test? And then when you go to Dade County, are you supposed to try to figure out the combination of the Judge Lehr, Judge Larry King, and David Leahy test? What are you to do?

And if you look at how the people were selected for a manual recount, which we would suggest to Your Honor was meant to be done only in very limited cases and clearly never in a statewide race, it's clear that the people that were appointed were a very important part of the process.

You know, Judge you look at what we've been living with for the last several weeks, and people say, gee, are we going to let Florida decide who the President of the United States is, then they say, are we going to let the folks in Palm Beach County decide who the President of the United States is?

Then the question is: Well, is it going to be the Supreme Court of Florida, the seven of them? Now, the question, Judge, is, is it going to be you?

Now, if you look at the statutes that we have in the statutory scheme of the State of Florida, is there any question in anyone's mind that if you look at the limited instances that you were supposed to use in the manual recount under the 166 protest, which is the only basis to do a manual

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recount anywhere that you're going to find in the Florida Statutes, that the intent of the Legislature was for one lone Circuit Judge in Tallahassee with everybody looking at him to look through all of the ballots, either on a county-by-county basis, or the ones that have been sorted in Dade County, or the ones put aside in Palm Beach County and make that decision, I suspect not, Judge, and I think it's relatively clear that that is not the case.

One other point that I think deserves comment is the point with respect to whether or not it needs to be a statewide count. We think, Your Honor, it has to be.

One of the things that both the Supreme Court of Florida and the Supreme Court of the United States focused on in their argument phase on this is the whole thing about statutory interpretation, and statutory construction.

Judge, it's clear that those statutes in Florida are not written for a statewide race.

And when you look at the cases, you'll see all of the cases have to do with a county race or something that's even smaller than a county race.

So the question that comes up is: How then should all that be implemented? It flies in the face of common sense and decency to think that somebody should be able to manipulate the results in candidate-favored counties, or series of counties, to the detriment of the rest of the

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state.

So what say the Vice President? It's easy. If we go forward and we ask for a manual recount in three counties, it's incumbent on you guys over here to ask for the other 64 counties, how about if they think that is improper. Then we have Mr. Butler sitting over on the side, and he doesn't have any right to come up with a manual recount, and we have a statute that perhaps you could avoid a due process challenge to on constitutional grounds because there is no right of an individual voter that asks for a manual recount if you restrict its application. Now, all of a sudden it's there, and Mr. Butler, who everybody wants to poke fun at, he's got a problem, he's over in Collier County, and maybe these lawyers here, maybe they're not the brightest in the world. They appear way up there.

But maybe they should have challenged the results in the other 64 counties, but they didn't, and here is Mr. Butler, and he's concerned his vote is going to be diluted in the democratically-rich counties of Broward, Dade and Palm Beach. And he's not going to get his vote counted.

Meanwhile, if you're on Mr. Bush's side, you have a choice of either engaging in something you think is improper by filing challenges to the other 64 counties, or doing nothing and fighting this gorilla warfare that's been going on for the last three or four weeks.

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I would suggest if you look at that statutory scheme you have no choice but to come to the conclusion, if you want to challenge a statewide race in the State of Florida, you must file in all 67 counties. And if you don't do it, you haven't acted properly.

Now, Your Honor, what's the basis for filing such a challenge? Well, the statute tells us that the grounds are -- this is under 168, misconduct, corruption, we know it's not that one, down to (e), or any other cause or allegation, which, if sustained, would show that a person other than a successful candidate was a person duly nominated and elected to the office in question.

So here we have this very serious matter, and what do we spend two days discussing? Whether or not you can fit the stylus down and the little chads are going to disappear, how hard the rubber is, whether you have to lubricate the rubber, where you're going to put the machines. But all of that, at the end of the day, what the Plaintiffs have to show is that whatever it is they're bringing before, you would make a basis and a difference on a statewide basis, not on a county-by-county basis.

The poor professor who was brought in here from Yale, very nice young man, and he testified very, very candidly, and it was clear if he had more information maybe he would have done better, and in this room there are a lot of very

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good lawyers, and then there's a few of us from Florida kicking along, those of us from Florida know what the different counties are in Florida and who is in them.

If you take the exhibit that was put before you that shows the no votes in all 67 Florida counties, and the charts that shows you which counties have optical scanners, and which counties have punch ballots, what you'll find, Judge, is that in counties that are side by side, with the same demographics, they make just the same number of no votes, undervotes as they call them, with the optical scanning system as they do: With the punchcard system.

But if you take a group of statistics and say let's group together all counties that use optical scanners, and all the counties that use punchcards, then you take the big counties, and they can request the results. So we have data by a county-by-county basis, and if Your Honor takes a map of Florida with the counties, and sticks in them the rate of no votes, and looks at the difference between optical scanning and punchcard, I defy you to see the pattern that was suggested by their expert. It just isn't there. It's not there, Judge. It's not there at all.

Finally, Your Honor, whenever someone says finally, it means there's three or four things to go, so I retain that right. Let's talk a little bit about the facts that in fashioning a remedy, and I don't want to be cute about it,

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but I don't know what standard you would use if you were to decide that you were going to undertake a count, but I'll tell you this, Judge, under the only place you're entitled to do a manual recount, which is 166, it says is you count all the ballots, all of them, not the ones that Mr. Leahy has run through the machine three or four times, which I think he's trying to do to help the Court, but the Court has to count all the ballots, but that's the only basis to do a manual recount.

In fashioning a remedy and seeing what the equity is, you have to consider all of the factors. Mr. Butler, some of these Intervenors, they do have valid points, Your Honor, I mean, maybe not as strong as some other people would want to make them, but the fact is, if other folks don't have a right to have a manual recount in their counties, that has to be taken into consideration.

The Vice President chose to do two things, first to extend the protest period, which otherwise is a relatively perfunctory period which lasts seven days. He wanted it to be longer, he got his wish. The old Chineese Proverb, he got 19 days worth of protest, and 16 days worth of contest. But he is not the only one being punished, everybody else that wants to have a contest gets punished, as well.

I would adopt the argument Mr. Richard made, as far as the review, I think it's the only review you have, and I

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don't think you'll find any case that talks about a de novo standard as far as review of this.

Also, Judge, how about the overseas military ballots that we've heard something about. Well, our Americans in blue, and women, or whatever color they wear are cut down to 16 days to file a contest and very little of that has made it into the courts, then we heard the issue of the felons that voted. Every day an extra two lawsuits were being dumped into the clerk's office of this Court as one new theory comes in, let's back off and see how this whole thing began.

As I mentioned before, the Trojan horse was the butterfly ballot. It was rolled in, the butterfly issue, and all that was designed to do, was to give the troops time to figure out the lay of the landscape come up with a new theory, and what was the new theory, and, Your Honor, God bless them, but it may be true, there were some people confused by the butterfly ballot. And I think the reason why there's little scratches on the ballot is because folks like myself whose eyesight is not as great as it used to be, probably stick the stylus down on the name and go across the arrow and into the hole. That's the reason they're there. There probably are some people that take their ballots out and do it this way and that way.

But the point Mr. Richard raises which he charitably refers to as voter responsibility is a big point. Every

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voter that filled out their ballots correctly deserve to be treated well, just as the ones who put their ballots on a piece of paper, or put their ballots somewhere else, or at least not do what they were supposed to do, it could not be clearer: Punch the hole, take it out, clean the back, put it in the ballot box.

That's all I have, Your Honor.

THE COURT: Madam Reporter, is it time? I told her every hour, we needed to give her fingers a little rest, so you luck out this time. So let's stand in recess, until five after nine o'clock.

(DISCUSSION OFF THE RECORD.)

MR. KLOK: Your Honor, the letter I was referring to when we broke up, it's under Tab 8, but it's SDX 35, a letter from Palm Beach County, it's under Tab 8, sir.

MR. DOUGLASS: We couldn't understand a word you said.

MR. KLOK: I was just giving the Judge the reference from Palm Beach County, that letter that came on November 26th.

MR. MULLIN: Your Honor, if again, may it please the Court, my name is Mike Mullin, and I represent the Nassau County Canvassing Board and Miss King, one thing I am sure of, and I think the sad part is, and I know the next time there's a vote I'm going to vote for Shirley King and Murray Greenburg, and we wouldn't be here. Shirley King

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stood up for herself and represented herself in fine fashion. I wanted to hug her, instead of applaud her.

THE COURT: I salute Miss King as a great American, anybody who has worked in this process like we've heard, testified they've worked an inordinate amount of time, and everyone needs to -- I believe Mr. Douglass did so, also.

MR. DOUGLASS: I didn't like that being crucified business. That wasn't fair, or true.

CLOSING ARGUMENT BY MR. MULLIN

MR. MULLIN: I agree with Your Honor, and I think that's the difference on behalf of Nassau County and the Canvassing Board who is a representative, like Miss King, of everybody in Nassau County, and the difference between Nassau County, as I see this, if we don't have chads, we don't have dimples, any of these technicalities, we don't have statistical, all we have is a do right problem in Nassau County, that's what a CNN reporter told us.

Let's start first, and I think the stipulation that Mr. Douglass and I entered into on behalf of the Defendant and the Plaintiff, put to rest entirely this discussion about any public notice requirement.

The stipulation says it met, the meeting met Florida Statutes 286.011 and I said in my opening we regret the fact that an unfounded allegation made its way to the Plaintiff, they had no way of knowing it was unfounded and we put 245 to

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rest, in shouldn't be any question whatsoever.

The second part is to a minor degree there's been a discussion of the substitute commissioner, and as the statute reflects, the chairman of the board of commissioners sits on the Canvassing Board, unless he or she is a candidate and then a substitute is placed there.

Therefore, Commissioner Howard was a substitute, Commissioner Howard had to be out of town, therefore, they needed a substitute, and in a duly held meeting on or about November the 20th, substituted Mrs. Marshal for Mr. Howard, Mrs. Marshal was sworn in for her second term as a County Commissioner, therefore, she was no longer a candidate in any race.

She appeared and came to the Canvassing Board meeting with 50 members of the public to listen to the Supervisor of Elections who had consistently said for days I made a grievous error and I want to correct it, we've got to correct this error and I think Mr. Richard pointed out well, how that happened. And the Secretary's lawyer pointed out very well how that happened and I won't belabor that. Miss Marshal, in the statute, and Mr. Boies quotes the statute. The statute says that, certainly, a person who is a candidate, the board of County Commissioners shall appoint a substitute member of the board who is not a candidate in the opposition of the election.

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Well, Miss Marshal was not running for President of the United States, she may one day, but this day she was not. She was there to make a vote on the presidential elector's ballot. And, again, also, Your Honor, the Canvassing Board did not count votes on that date, they simply voted to correct an error that has been well described, and it was one unanimous vote. But the two sitting members on the Canvassing Board, both Miss King and County Judge Williams voted, as well, to do the same thing.

So even if there was some minor problem with Miss Marshal, it is a minor problem, harmless error at best, and we contend there was no error and she had every right to be sitting on that board to do what she did on that date.

The other aspects about -- as has been mentioned to Your Honor, about finding abuse of discretion that has to be found, I think it's crystal clear in Nassau County, you can't find any abuse of discretion, the only problem was that no one in either party wanted to file a protest, because it was very clear why the error occurred, and very clear if a protest was filed on the Democratic side what would happen, the 51 votes would come back.

And we understood on the other side, the Republican side, that was not their principal necessity seeking to pursue those types of actions, therefore, no one filed a protest, so the supervisor, again, sought advice from the

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Secretary of State, and went to her Canvassing Board after she had gone public to the citizens of Nassau County, saying I didn't count them correctly, and I give her credit for doing that, and give the Canvassing Board credit for saying that, saying you cannot disenfranchise 218 voters and just discard them. And if I understand the Plaintiff's side, they want to discard them in our county, and we very much resent that.

No matter who gets those votes, that's not fair or right or what the Supreme Court of Florida said in the guiding principles in how you look at it. They said the will of the people not a hypertechnical reliance should be the guiding light and that's exactly what happened in Nassau County.

And I think it is very clear, Your Honor, that is those votes should stand as they are it, again, every right the Canvassing Board had every right to take the good, well-founded act that they did, and no matter how many times we want to say, well, weren't properly constituted, this wasn't right, that wasn't right, none of that is correct.

None of that is true, and I think Your Honor has enough evidence before you to clearly understand that, and I don't have to belabor the point on behalf of Nassau County, except, again, our only intent in Nassau County is to do what is right by those voters, and everything statutorily, morally,

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legally, was done to ensure those voters were heard.

And if I hear both sides, that's the primary reason, the reason that we're here tonight. Thank you, Your Honor.

THE COURT: Thank you, Mr. Mullin.

CLOSING ARGUMENT BY MR. MADIGAN

MR. MADIGAN: Thank you, Your Honor. Your Honor, I'm here on behalf of a voter and the citizens of Florida. I'm not going to repeat all that you've heard, the commentary on the evidence, or lack thereof.

Mr. Richard and Mr. Klok have made very good eloquent statements about the evidence that's not here, about the law, and I'm not going to repeat the law, again. Mr. Klok really made my argument in large part, as far as Mr. Butler's case in what brings us here a case that a voter had the audacity to get involved in, perhaps has been made jokes about by the Gore team that would stand up for his rights, but that's what we're here about, at least that's what I heard Mr. Gore say, the Supreme Court say, that seems to be the common business. That's what we're here about.

A process started a few weeks ago, where Vice President Gore could go in and select counties he wanted to take a recount in. After the count, after the statutory recount, he wanted a hand count in certain counties. Of course, he picked counties favorable for him, very fertile Democratic counties, where likely you were going to find votes for him.

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Mr. Butler couldn't do that.

Your Honor, we know that the laws didn't provide for it, where does that leave us now, Your Honor? We have a situation where Mr. Gore has taken selective advantage of the law of the State of Florida that allows him to disenfranchise the vast majority of our citizens. He has chosen to cherry-pick three counties he knows will go for him and wants you to decide the President of the United States based on that.

His actions, Your Honor, would disenfranchise voters of the other 64 counties of Florida, indeed, they can disenfranchise voters in the rest of the country.

Your Honor, the law compels you to apply common sense, you've heard the argument on the law, you have got to read it with common sense in mind, to disenfranchise 64 counties because their votes wouldn't be counted in the way that the votes in the other three counties are is absurd.

Thousands of votes in these 64 counties, tens of thousands, have not been counted. We hear that every vote counts, but that's not what we see and here in the courtroom, only the votes that Mr. Gore wants to count is what he wants to count, everything else is out the window. He wants you to look at this in a vacuum. When you think about it, Your Honor, to take this tact, you're almost disenfranchising the votes in the three counties, where he's picking from

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because all they want you to do is forget about the votes for the people that followed the elections, didn't have the problem, the great vast majority of voters.

He wants you to surrender the choice of the President of the United States to a count of questionable fouled and incorrectly filled out ballots in three counties in the State of Florida. Why? Because he's asked for it.

You've heard the evidence, Your Honor, there is nothing, absolutely nothing that could tell this Court, other than supposition, that there was anything bad or wrong with this election. There was a terrible problem that people were denied their right to vote.

You've heard questionable science, very weak science. It's been very well picked apart by the Defense and their experts, but, again, nothing there that could compel you to make a decision of the great magnitude that you're being asked on to make.

Your Honor, if there's any basis here whatsoever for you to even think about doing something to affect this election, you're going to have to look at a statewide recount of the vote. There is no way this Court can take action properly to disenfranchise all the other voters in the State of Florida, indeed, voters in other states in the United States as well, if we're to have any credibility here, you would have to go through the entire state.

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But, Your Honor, there is no reason to do that, there's absolutely no basis set forth to do it, other than Mr. Gore's very selective use of Florida law that says, "Judge, please count a few, don't count these others, why do you want to count these, well, there's not a good reason, other than we think that will give us more votes."

Your Honor, if we're going to go through that, we basically have done away with the voting system as we know it now. We don't need voting machines, we don't need recounts, we just do our votes, send them to a Circuit Judge in Leon County, and let's hand count them. That would be ridiculous. You don't need to make that conclusion. There is nothing to compel you the votes as they've been cast. It's fair to everyone in the State of Florida. The petition of Mr. Gore needs to be dismissed. Thank you.

CLOSING ARGUMENT BY MR. MYERS

MR. MYERS: May it please the Court. I'd like to share my file with co-counsel, Manuel Klausner, so I'll shorten my address to the Court.

This lawsuit, undoubtedly carries more significance than any of us lawyers may see again in any of the practice we have. It stands as a monument to the stability and the grandeur of the democracy that we have set up in a reform of government. And the evidence in this particular lawsuit has revealed that Florida has got a bunch of hard working people,

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like Judge Burton and got honest people who care about the right result like Shirley King, and it's got likable characters, like our friend attorney, Murray Greenburg.

All great Americans as the Court has pointed out, working under the closest scrutiny possible, under the tough of times, in their particular jobs, yet the Court heard no corruption, no dishonesty, no voter fraud, no voter evidence, none of that evidence was presented to the Court because it wasn't there, we now know that in Florida.

In Florida's election, the principles of hard work and honesty should prevail, and other governments should take notice of what happened here in Florida.

No matter who wins this election, Your Honor, all the power, the immense power, and the grandeur and the authority that is turned over to the next President of the United States, will be turned over without the first drop of blood. That's amazing.

And the Court is tasked with identifying what the intent of the Florida voters were in this statewide election, all the voters, all the voters in this statewide election, all the voters in Florida's 67 counties, and, yes, Your Honor, all the voters who live in west Florida.

You heard Teresa Cruce here testify tonight Your Honor, "It's not fair to ignore my vote," and she doesn't even know if her vote counted. You heard Jeanette Seymour tell you she

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got to the point that she was convinced that her vote had been rendered valueless. And we now know how wrong that is in our country.

We know that every vote counts, and it has been said before, every vote ought to be counted in the entire state.

And under the concepts of fairness, and equal protection under the law, the Court is required to treat every vote in our state equally.

And my friend George Orwell, if he were alive, Your Honor, bringing you back to what I said, believe it or not, that was yesterday morning that we opened up, he would agree with me that casting our vote here serves as the single most important thing we can do in our society, because voting allows us to collectively exercise our control over those who govern us.

As you're well aware, the winner of this election, will govern only by the consent of the government. And George Orwell will also agree with me that every vote is equal, and that no county's vote is more equal than any other's.

If the Court is truly to ascertain the will of the voters in Florida, and I mean all the Florida voters, then the Court must consider this from a statewide perspective, taking the totality of the circumstances in mind when the Court rules.

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You heard Attorney Spencer say here earlier today that if a hand recount were done in selective precincts, then that would result in a skewed result in that county. Your Honor, we contend that, likewise, if the Court did a consideration by cherry-picking counties throughout the state, and looking at those results, the statewide result would likewise be skewed.

Every Florida vote must be counted, Your Honor, on an equal basis with every other vote. Not just Miami-Dade County, not just Palm Beach County, but every county. And so I stand by this, before I yield my time to my co-counsel, all voters, all Florida votes are equal, Your Honor, and no vote is more equal than another.

THE COURT: Mr. Klausner?

CLOSING ARGUMENT BY MR. KLAUSNER

MR. KLAUSNER: Thank you, Your Honor. The primary difference between our constitution, and the old Soviet constitution of 1936 is that under the old Soviet constitution they had an express clause that protected freedom of speech, and freedom of assembly. The difference between their constitution and ours is that our constitution protects freedom of speech and freedom of assembly.

The Florida Supreme Court, on November 21st, when it issued its unanimous decision in the Palm Beach County Canvassing Board in the Harris case, issued in many respects

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an opinion that is likely controversial. But nobody quarrels about the basic premise of the Court's underlying opinion, and that is the emphasis that the Court made, what is fundamental about the system of government in Florida, and that is, as the Supreme Court stated, the very first words, in the body of the Florida Constitution, are follows under Article 1, Section 1, of the State Constitution, all political power is inherent in the people.

And the Florida Supreme Court emphasized that the framers of the Constitution, started the Constitution with the declaration that all political power is in the people. The Court also understands and stated that this principle governs all election law in Florida.

In keeping with this fundamental principle, the Supreme Court stated in the Palm Beach decision that: "We conclude that we must invoke the equitable powers of this Court to fashion a remedy that will allow a fair and expeditious resolution of the questions that presented in this litigation."

And we know in its 1998 opinion, in the Bechstrom decision, Bechstrom v. Volusia County Canvassing Board, the Florida Supreme Court said, quoting from the opinion: "The real parties in interest here, not in the legal sense, but in realistic terms, are the voters. They are possessed with the ultimate interest, and it is they who we must give primary

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consideration."

As attorneys for the Intervenors, we believe that the Gore-Lieberman position is cynical and inconsistent, because while they profess to insist on the cardinal importance of counting all votes, the remedy they ask is exactly the opposite. We've heard discussion and we join all of those who understand that selective manual recounts in heavily Democratic counties does not lead to a fair vote.

The Gore-Lieberman team insists that this clear erroneous count the second, the recount in Nassau County, should be credited to their side claiming that they speak to equality in the votes. Our west Florida county Intervenors, they objected to, they objected to our experts, and said that our experts which included the eminent Dr. John Lott (phonetic) from the law school, and Dr. Cannon, from Kato Institute, that they couldn't testify in this Court.

And the Gore-Lieberman team further argued even though there were less votes for Governor Bush in the Florida election, because of the erroneous projection of a Gore victory, because the polls closed in the Panhandle, is irrelevant, and this Court should give the Plaintiffs the affirmative relief they want to win the election.

But not only is their position cynical or hypocritical, but it flies in the face of the explicit language in the operative statute of the contest, governing, 120.168

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Subsection 8, which provides the Court may fashion such orders as it deems necessary to present or correct any alleged wrong, and to provide any relief appropriate under the circumstances.

That is now a license to steal an election. The statutory power, encompasses the inherent inequitable power of the Court to frame an appropriate remedy to prevent any alleged wrong, but not to exacerbate an existing wrong, as, for example, in the Nassau County vote situation, or in our client's situation, being the western Panhandle, where the erroneous network projection ended up losing a lot of votes that diluted the impact of the turnout for President -- for Governor Bush.

What the Gore position is is a brazen effort for the Courts to pose not an equitable result, but an inequitable remedy inconsistent with what the State Supreme Court told us 12 days ago.

What our clients suggest is that this Court deny this selective manual recount they seek, and we ask that the Court reject their request to have the Court convert what is clearly an electoral loss on election day into a judicially imposed burn the village victory.

We think that if this Court counts the votes as of the day of the election, that this Court frustrates the voters after the election. And this Court recognizes, in

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keeping with the doctrine of the Declaration of Independence, derives from the consent of the governed. This is the principle that animates our client's standing, something the Court and the rejection of this contest is called for clearly by the statute. Thank you.

THE COURT: Thank you Mr. Klausner. Mr. Jennings?

CLOSING ARGUMENT BY MR. JENNINGS

MR. JENNINGS: May it please the Court. Your Honor, I represent six individual voters in five separate counties, and we intervened for the purpose of contesting the face and the application of Florida Statute 102.166, that's the manual recount statute. We also are asking the Court to determine that the entire provisions of 102 that relate to the manual recount are unconstitutional, and particularly, Your Honor, I would like to address the issue of this application by Vice President Gore and the circumstances of this election.

Your Honor, What I would term the catch-22 interpretation of this particular statute causes us to be in a situation that was completely untenable. I would ask the Court to recognize that one of the basic premise with passing constitutional muster is that a statute and its application must have a reasonable relationship to the purpose of the Legislature.

And the purpose of the Legislature in this particular case was to ensure a fair and true count of the election.

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The application by Vice President Gore on the circumstances of this case does exactly the opposite. It ensures an unfair and skewed election result that would dilute the votes in the 64 counties that Vice President Gore did not request be recounted.

Another part of this catch-22 is that this application by Vice President Gore asks for a recount in the counties that he won, and, in some instances, dramatically. Now, I want to ask the Court to consider what is Governor Bush supposed to do under these circumstances?

Governor Bush got his undergraduate degree from Yale University, Your Honor, he got an M.B.A. from Harvard, he's been successful in many businesses. I suggest to the Court that there is absolutely no way that he is going to ask for any recount in the statewide election that he already won.

Your Honor, this statute, as applied under the circumstances of this case by the Gore Campaign completely undermines the votes of all of the rest of the voters in counties other than the three that are before the Court.

I would ask the Court to consider that Governor Bush won 51 of the 67 counties in this state, many of them by dramatic margins. There were undervotes in all of the counties where there were these Votomatic machines, and in the records, we have completely shown by the Department of

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Elections that -- and the record will speak for itself, that Duval County had the Votomatic machine, in that county Bush won by 55 percent.

In Collier County, they had the Votomatic machines, Bush won by 66.8 percent. In Indian River, Bush 59.3 percent. Marion County, 55 percent.

And there are other counties that did not have the Votomatic machine, for example, Okaloosa, my sister county next to Walton, 75 percent of the vote went to Bush. Those individual voters that have not had their ballots recounted have had their constitutional right to vote totally diluted.

This statute, Your Honor, has been purposefully used by the Gore Campaign in an unconstitutional way. I related it earlier that in order to have the minimal standards of constitutional muster, it must be reasonably related to the purpose. The purpose being to have a true and fair and accurate document.

In the case where a fundamental right is at stake, the fundamental, underlying right of all Americans, the right to vote, you have to have more than that. You have to strictly cite what is going on here. And in this particular case, there has been an intentional effort by the Gore Campaign to dilute and discriminate against the voters in the other counties in this state.

Your Honor, I would ask the Court to consider other

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things. One of those being the Democratic Attorney General's own report, his own letter to Judge Burton, who has been a witness in this case before us, this is dated November the 14th. Attached is the legal opinion requested by the board, that is the Canvassing Board in Palm Beach County. The circumstances surrounding these legal issues are extremely serious says Attorney General Butterworth, if hand recounts have already occurred in Seminole County, and an unknown number of other counties, without the restraint of a legal opinion, while similar hand counts are blocked in other counties through a newly issued standard, a two-tier system for reporting vote results.

This letter does not directly relate to the situation in this Court, Your Honor, but the principles are exactly the same. His letter continues, a two-tier system would have the effect of treating voters differently, depending on what county they voted in, a voter in a county where a manual count was conducted would benefit from, of course, a better chance of having his or her vote actually counted than a voter in a county where a hand count was halted.

The statute in this instance, Your Honor, halts the hand count in all of the counties where Governor Bush won, because it would be brazen and an idiotic act for having to request a hand count in those counties where he won the statewide election.

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As the state and legal chief, legal officer, Butterworth continues: "I feel a duty to warn that the final certified total for balloting, includes figures generated from this two-tier system of differing behavior by the Canvassing Boards, the State will incur a legal jeopardy both under the U.S. and the state constitutions, this could potentially lead to Florida having all of its votes, in effect, disqualified, and this state being barred from the electoral college's selection of a President."

Your Honor, I submit that the scheme that has been perpetrated on the State of Florida has not only jeopardized the electoral vote of the State of Florida, it's also caused absolute quagmires in our elections system.

It has also threatened the integrity and the ability of the next President to govern the United States. Your Honor, this application has been totally unconstitutional, has been totally intentional, and if you think that anybody would have picked only three counties just out of happenstance, I know that you are a much wiser Judge than that.

That was an intentional act by the Gore campaign to skew the votes, and most importantly to my clients, to diminish their right to vote.

This nation has been under Baker v. Carr, and it's been under Reynolds v. Simms for about 40 years now, Your Honor, and that is one man, one vote. My clients' right to their

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vote have been diluted as have all of the other voters in the 64 counties that have not been recounted. Thank you, sir.

THE COURT: Thank you, Mr. Jennings. Who is next?

CLOSING ARGUMENT BY MR. VEZINA

MR. VEZINA: Thank you, Your Honor. Rob Vezina on behalf of Representative Thrasher. As one of the many Intervenors, my status is a bit different, and that results from the identity of my client, Mr. Thrasher. He is one of the 25 Republican presidential electors who has been certified, also by the governor of the State of Florida, to the Federal Government.

We believe, Your Honor, we have a legal issue to bring before you that is based upon a rule of law, it's based upon a reading of the contest statute, and is clear, and it's not unique to us, as I will get to shortly, and I won't take all of my time, it is also an analysis that Judge LaBarga rendered in the butterfly ballot case, we advance three arguments that the complaint in this case should be dismissed.

There's no subject matter to jurisdiction under the contest statute, there's no standing for the Plaintiffs. And there has been a failure to join indispensable parties, specifically 25 Republican electors.

As to subject matter jurisdiction, the vote of Judge Sauls on November 7, as you know, was for presidential

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electors, not for the candidates, Bush or Gore.

There is, I think, a common misconception for good reason that we don't need to think about the significance of presidential electors in the typical case, but it is a misconception not to do so, and we have to focus on what the contest says, and specifically it says, "That electors of President and Vice President known as presidential electors, and I'm reading from 103.011, electors of President and Vice President, known as presidential electors shall be elected. Votes cast for the actual candidates for President and Vice President shall be counted as votes for the presidential electors supporting such candidates."

Let me underscore the fact, again, electors to President and Vice President, known as the presidential electors, they shall be elected. That is what the Legislature of the State of Florida has provided in 103. 103 does not, and this is the statute entitled, "Electors of President and Vice President," does not deal about a procedure to contest elections.

We know there's not a common law right to do so, and we know we heard from Mr. Boies and others, that the sole basis for Vice President Gore, and the Senator Lieberman challenge is Section 102. 102, Your Honor, provides that, as you know, 1.678, the certificate of election for any person to office may be contested. Let me underscore that. Any person with

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certification of election of any person to office.

I think the Court and perhaps others in the room can see where I'm going, we have Chapter 103 that provides who we elect are presidential electors, such as former speaker, Mr. Thrasher, and that the votes for those electors are not votes for the direct candidates, for either Governor Bush or Vice President Gore, and that the contest statute, 102, provides that the certificate of election can be challenged as to any person to office.

It is conceded in the Vice President Gore response to Governor Bush's Motion to Dismiss that the Florida electors, presidential electors are not those holding office.

The Florida electors do not vote until December 18. Vice President Gore is not yet and cannot be defined as an unsuccessful candidate for office. For office is the key term, and I'll give you an example from not long ago in our history, in 1992, when we had the presidential election in Florida, President Bush won Florida. President Bush, however, lost the Presidency to President Clinton.

What office did President Bush win when he won Florida? He didn't win an office, and this statute, this contest statute is only applied to a person to office. We're talking about a rule of law, Your Honor, and I think we all agree that we want here to be governed by the rule of law, and perhaps one might say that this is an elegant solution for

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dealing with the difficult issues before you, and it may be, but it's also a solution or a reading based simply on the text of these citations, and what the Florida Legislature has provided.

It is not reasonable to interpret Section 102 of the statute to apply to national presidential elections.

I will say that for a couple more reasons. There is no appropriate or meaningful remedy provided in the statutes for this Court.

I heard Mr. Douglass say earlier the Court has the power to do what it wants. The Legislature has addressed as a remedy is ouster, you can oust a person from office. I don't think that any of us would seriously contend that Circuit Court Judges in the State of Florida have the power to oust a President in office or a presidential candidate, and that is the only specific remedy that the Legislature has talked about in these statutes.

I will say that whether you're an unsuccessful or a successful candidate, under the scheme that we have in place by the Florida Legislature, that cannot happen under the best of terms, at least until December 18th, when the electors cast their votes, and perhaps can't happen until January 6th when the United States, both houses of Congress have the issue, and they determine, accept, and act upon the elector votes.

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The Fladell (phonetic) decision, which is the butterfly ballot case, it's attached to our memo of law, Judge Labarga's decision at the trial Court level. I urge you to read it. I know you've got thousands of pages that folks have urged you to read.

He deals with this issue in detail and he determines that as a matter of law, the contest statute, 102, could not apply to political elections, because he made that ruling of law, he never had to deal with the factual issue of whether the butterfly ballot had to be thrown out, we filed a notice of supplemental authority to bring to the Court's attention the Florida Supreme Court's decision in the butterfly ballot case, and where Judge LaBarga resolved the issue on that basis, the Florida Supreme Court dealt with the issue of fact and determined as a matter of fact the butterfly was not confusing and not improper, therefore, turned to the questions of law and said we don't have to reach those, to the extent they are reasonable.

The Court did not reverse Judge LaBarga's comment substantively, on the issues that I'm sharing with you today, and I would suggest to you that no party has put before the Florida Supreme Court these very specific issues of statutory construction on 103, and 102. I will tell you, unless, another item that is attached to our memo of law is an opinion letter from the general counsel for the Florida

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Legislature, expressing his opinion that the contest statute, 102, is not applicable to elections of electors.

The Plaintiffs in this case, Your Honor, also lack standing. The contest statute, 102, as you know, those procedures are available only to qualified voters, to taxpayers or to unsuccessful candidates. The Plaintiffs are not qualified voters, are not taxpayers here, the only basis that they can allege standing is as unsuccessful candidates from the November 7th election.

The statute can't be any plainer that the unsuccessful candidates, if you will, under the November 7 election, are the Democratic electors, those are the persons for whom we voted.

So if 102 can apply at all, it would require the Democratic electors stand as Plaintiffs in this case.

Thirdly, and briefly, if the contest statute could apply to presidential elections, if it could apply, it requires by its express terms, the joinder of each successful candidate as an unsuccessful party. The successful candidates from the November 7th election are the Republican electors. Thrasher, Speaker Thrasher is more than an interested party that's entitled to come in here and intervene to listen and have some limited participation, as a certified elector of the State of Florida on the Republican state, he is an indispensable party Defendant to this case.

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The only basis for this case is the statute, 102. That's clear. It must be strictly applied.

We know that your rules cannot be made after the election, or as we go along.

And we know, and should well keep in mind, Judge, the Federal Supreme Court issue. Article 12 of the United States Constitution, gave the State Legislature the option to provide or not provide for contest procedures for presidential elections, they specifically have that option.

And I respectfully suggest, for the reasons I've just gone over, the Florida Legislature did not provide a statute of applicability for presidential elections.

Federal law provides a remedy in Title III of the U.S. Code.

Let me conclude and just turn to the issue very briefly of separation of powers.

Presidential elections in this country are unique in every respect. And they are unique in the specific area that I have addressed as to going through electors by constitutional design. Presidential elections are not the outcome of direct representative democracy. People do not elect the President directly.

And in our history, frankly, we have incidents where the presidential electors, although pledge to carry out their vote, be it Republican or Democrat, don't do so, they vote

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differently.

In close cases in any event, the constitution provides for decisions by the most representative branch of government and that branch of government is the Legislature. With all due respect to this Court and all of us in this profession the least representative branch of government is the judiciary, and it is the wrong branch to decide the outcome here, thank you, sir.

THE COURT: Thank you, sir.

MR. RICHARD: Your Honor --

THE COURT: I believe you now have --

MR. RICHARD: Your Honor, my co-counsel, George Terwilliger has some brief presentation of a Motion to Dismiss, which we had discussed with you earlier. I have conferred with Mr. Boies.

THE COURT: You reserved, and since you didn't present it earlier, I promised I would be able to present.

MR. RICHARD: And I talked to Mr. Boies, who prefers that it be presented before he makes his rebuttal.

THE COURT: Briefly. I didn't count this in my time.

MR. TERWILLIGER: I'm George Terwilliger from White and Case from Washington on behalf of Governor Bush, and I appreciate being able to appear in the courtroom.

Your Honor, I'm going to address myself solely to issues in the Motion to Dismiss. And while some of these

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issues may seem technical in nature, we all realize, of course, that the law has its procedures that apply, in these proceedings, and some of these issues that you've just heard, and others as well, could well be dispositive in this case, given the unique nature of these proceedings and the way the trial has unfolded.

We would also suggest, respectfully, that it is Your Honor, considered some of these issues dispositive that the Court may want to consider making findings in the alternative on the merits, since the trial is now completed and the Court has heard all of the evidence in this case, we have filed a Motion to Dismiss that among other things, suggests that the case be dismissed for failure to state a claim upon which relief can be granted.

And I would suggest that some brief consideration of the grounds for that may tie together several of the legal issues that several counsel have discussed and that seem to be a real division for you between the parties presented to Your Honor for consideration.

I'd like to illustrate that difference. There's a passage in Alice in Wonderland, where the king calls for a trial, and the queen says, no, verdict first, trial later. That is very much the situation we find ourselves in with the claim that has been brought forward for the Court's consideration, the claim that the campaign is entitled to a

recount.

That claim is unamended as we stand before you here today at the conclusion of these proceedings, and I respectfully submit that that claim has to fail because the statute, the election contest statute, allows for a contest of election, not a contest of ballots, and that seems to be an issue that the Defendants have fundamentally confused. There are several reasons why it is clear that this is a statute that makes for a contest of election, not a contest of ballots.

The statute makes clear that the Canvassing Board is a party Defendant to these proceedings, because its very action that is being challenged as part of an individual claim that is reversed to an election, the case is also made clear that a recount is but one remedy or method to which Your Honor could address the issues in a contest where certain threshold issues are met, which Mr. Richard has argued has not been done here.

In addition to that, the grounds here, if there were to be a recount, could require that some ballots that were supposedly judged wrongly as to voter intent, of course, would require Your Honor to decide on what standard those ballots were to be judged as a threshold issue.

And that, of course, would move into a requirement that more than just the ballots in question be reviewed. And I'll

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address that further in a second.

To accept Mr. Gore and Mr. Lieberman's position in this matter; that is, that simply by bringing a complaint they are entitled to a recount, would taken to its logical extension mean that the mere allegations in a complaint are sufficient to cause a judicial recount under the contest statute to occur.

If, in fact, Mr. Gore and Mr. Lieberman were correct that a de novo review is the gravamen of a contest, that doesn't mean that first step in that contest is a de novo recount of votes, rather, the Court has to address, as I mentioned a moment ago, the standard.

And what they are really asking you to do, and this goes to what claim has been made, and whether or not it states a claim upon which relief could be granted, the relief they have asked for is a partial recount of votes. And here they disagree in their papers with our contention that a manual recount has to be of all the votes, or that any recount has to be of all the votes. But surely the Florida Legislature would not design a statute, nor suggest that a Court conducting a contest have two different standards for recounts, and it is clear if one looks at the language of Section 166 (5)(C) concerning recounts after the initial recount by the Canvassing Board, if they go on to do a recount at that point, is a recount of all the ballots.

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And our position here is very simple. Mr. Boies invited us to cite a case to you on this point. We don't need a case. The statute says all. It is self-evident, and logic dictates that it be all the ballots that would be subject to a recount.

The fact of the matter is, Your Honor, that if one was to reconsider a countywide election on the issue of whether or not the correct standard was applied for example, to dimpled ballots, one won't just look at one precinct in that county, you have to look at all the votes in that county, that logic obviously extends from a county to a statewide election.

Your Honor, there are a couple of other points that have been raised and addressed by other counsel that I do want to make clear just very briefly what our position is on those particular issues. First of all, the proper parties to this action.

The Plaintiffs, the Gore-Lieberman campaign takes the position that the candidates are the proper parties here, and refers to such official language of the statute.

But as counsel just pointed out to the Court, that simply can't be right, because a contest is for entitlement to such office, and surely within the scope of the relief yesterday that Your Honor could grant, is not a degree that one candidate, sets of candidates, or the other were entitled

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to such office.

On the timeliness of the complaint our position is simple there is before the United States Supreme Court right now the issue of whether the extension of the deadlines by the Florida Supreme Court was constitutional and consistent with Florida law, and not violative of federal law.

Our position is that the operative date upon which election results were properly certified under Florida law was November 14, the last day for the certification of election results following -- I mean, for the filing of a contest following that would have been November 24th, and this contest is, indeed, untimely.

Your Honor, I would like to turn just briefly concerning the claims against Miami-Dade County, in terms of a motion, or Motion to Dismiss. They do not -- the Plaintiffs do not contest by asserting that the count certified that is now part of the basis for the certificate of ascertainment for the electors of Governor George Bush and Dick Cheney is in error, but that votes not counted, votes that are outside of that certification are the error, and they base that on statistical projections which we've all heard more than enough about at this point which they claim would change the result.

That claim, Your Honor, in order to be accurate, requires an incredible amount of judicial bootstrapping if

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the Court were to find that it lies, because, like the others, it depends on the Court adopting a new standard of what is, in fact, a vote.

If dimples are not votes, then there are no other votes out there to count, since these ballots have been counted, and those have been found to be no votes.

Second, the Gore campaign asserts that the board committed an error by stopping the recount because it couldn't complete it by the 5:00 p.m. deadline on November 26th. Surely the irony is lost on no one, no less Your Honor, that the board is now being sued in essence for exactly that result, that this campaign asks for in getting the deadline extended and creating a situation where this contest could not begin with whatever remedies might have been available.

And instead we now have a situation where the board is being sued for failure to meet a deadline that the Gore-Lieberman campaign asked for.

Secondly, on that point, Your Honor, clearly no statute can be interpreted under the well known principle of avoiding law, which brings us absurd results to be read to require the impossible, and the board, in the exercise of its discretion, determines that it was impossible to finish the recounts.

Finally, Your Honor, one last substantive point that, again, may sound somewhat of a technicality, but we think is

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very important for the Court's consideration. The Plaintiffs here cannot make out a claim without asserting the integrity and proving up the integrity of the ballots.

And they do not make that claim, nor have they, frankly, successfully prosecuted it here in Bush v. Beasley, the Supreme Court of Florida made clear over a quarter of a century ago, that ballots cannot be used to impeach an official return unless the integrity of those ballots is first clearly established by the person who seeks to use the ballots for that purpose.

And by integrity, of course, we don't mean authenticating the ballots, that they are what they comport to be, but, rather, that the ballots remain in such condition that they are still, and remain, and have probative value as indicative of voter intent, and that's not something to be assumed but something of an affirmative burden to be proved.

Your Honor, the bottom line here is that the claim that the Petitioners seek to have actionable in this case, boils down to adopting yet another new rule in this election, this one for election contest that would have the effect of creating a sweeping new standard that would count votes never before under any Florida precedent that would count dimples, rogue dimples, even, random dimples, as votes and then asking the Court to authorize a selective search for votes on that standard within a very narrow band of all the ballots that

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should be at issue in a statewide election.

We believe, Your Honor, that they have brought the case at the wrong time, against the wrong Defendants, seeking the remedy first, and proving their entitlement to it later. On behalf of my colleague, as well as my clients, we thank you for the great fortitude as well as the clear, kind, and careful consideration that you have given this matter, thank you, sir.

THE COURT: Mr. Boies? Rebuttal Closing Argument.

REBUTTAL CLOSING ARGUMENT BY MR. BOIES

MR. BOIES: May it please the Court. Mr. Richard said that we take the position that 168 is different than 166. Mr. Klok says we take the position that the two have to be combined. Mr. Richard is right, Mr. Klok is not.

As I stride to make very clear in my Opening Statement yesterday, and in my initial remarks this evening: This is a contest under 168. 166 is not involved. We're not seeking a manual recount under 166. That time has come and gone. And for Defendant's counsel to argue that somehow there is no right to a manual count, or a review, or a contest at this stage, flies in the face of uniform Florida precedent and the statute itself.

We hear from Mr. Klok that this statute, 168, was not intended to apply to statewide races, and, yet, he says elsewhere in his argument that it was passed in reaction to a

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problem with the statewide race.

We hear from Mr. Klok and Mr. Richard that this is not meant to apply to a presidential race. Well, certainly, the Florida Supreme Court when it decided the Harris case a week or so ago, thought this statute, the contest statute was applicable, because the Florida Supreme Court said that the only reason for bringing the certification period to a close was to permit a contest of this election to take place on a timely basis.

Now, Defendant's counsel would have you believe that the Florida Supreme Court was doing that so that there would be an absolutely meaningless exercise because they would have you believe that somehow, despite the fact that the statute doesn't say so, despite the fact that there's no presidential support for it, and despite the fact that the Florida Supreme Court expressly set the certification for this election with a view towards permitting a contest of this election to be done on a timely basis that there is no applicability of the 168 contest provisions to a presidential election. We think that argument simply does not hold.

The Defendant's counsel, also, say -- and my friend, Mr. Richard, said, that there is not a shred of evidence that there was anything wrong with the voting machines.

Even given some license for argument, and some license given the hour, it seems to me that that's somewhat

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inaccurately stating the state of the record.

For example, you had Mr. Brace testify about a number of things that were wrong with the Votomatic machines, with the punchcard machines that would result in undervotes. You had Professor Hengartner give statistical testimony that he said, and that even their statistical expert was not prepared to refute, that you could not explain all of the variation by factors other than the nature of the machines. Some of the factors might be -- some of the difference might be explained by other factors, but you could not explain all of the difference simply by reference to the demographic factors, or others.

But you don't just have our witnesses, Your Honor, you have their witnesses. For example, Mr. Burton came in and testified about how they discovered hundreds of votes where the voting machine was not recording the vote that he said the Palm Beach Canvassing board found unanimously, they could discern the clear intent of the voter. It wasn't just Mr. Burton.

Mr. Ahmann comes, and you'll recall, that he -- when confronted with a patent application, he agreed that he had taken the position that, because the card supporting the surface of the punch board can become so clogged with chips, it can prevent a clean punching operation. Incompletely punched cards can cause serious errors to occur in data

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processing operation utilizing such cards.

He said, not, of course, in his earlier Direct testimony, but I said there's a real problem with the chads building up, and preventing people, some people, from punching all the way through.

You also heard him testify about how the machine Escambia had to be properly maintained and had to be emptied of chads on a periodic basis, and you know from the stipulated evidence that Miami-Dade didn't do that for at least eight years. You also heard him testify that he had tried to convince Miami-Dade to use a different kind of stylus, so that it wouldn't degrade the machine and it would improve the voter ability to dislodge the chad and make a clean vote. And he said they declined to do that.

There is a lot of evidence, not only of the existence of votes that are created and can be discerned to reflect the intent of the voter that are not counted by the machine, but, also, strong evidence that at least in some significant number of cases, that's due to the nature of the machines itself.

But whether it is due to the nature of the machines itself, or to voter error, we submit is not important in this litigation.

And, again, Mr. Richard said that the Bechstrom case had nothing to do with voter error. I think Mr. Klok said

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that, too, if you go to 707 Southern Reporter 2d at page 722, what you find is the Court describing how it came to be that there was these ballots that had to be examined.

And it was that the optical scanner rejected ballots which were marked with instruments other than Number 2 pencils, and it talks about how voters were all instructed to use Number 2 pencils, but some of them didn't, and because they didn't, they created those ballots.

And these are the very ballots that the Florida Supreme Court holds must be counted, because they reflect the will of the people.

I say there is simply no basis under Florida law to say: If you can discern the intent of the voter, you can disregard that vote, because of alleged voter error. Now, the Defendant's lawyers, also, say that the only basis for a manual recount is Section 166.

If that were true, you would never have a ballot-by-ballot review by a Court in a contest action, and, yet, we know from Bechstrom, from Smith, from Peacock, from Williams, from the cases that we've cited over and over, again, that the Courts do a ballot-by-ballot review, not under 166, but under the contest statute.

And we know that the statute instructs that if the Court concludes that there have been, under 168 (3)(C), and they say that we're moving under 168 (3)(E), that is, in

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part, true, but they omit 168 (3)(C), which is the primary thing that we've talked about, and the primary thing I talked about in my remarks earlier this evening, and that says if you receive a number of illegal votes, or reject a number of legal votes that is sufficient to change or place in doubt the results of the election, you've made out a contest.

Incidentally, it doesn't say: You've got to contest the entire number of ballots, that you've got to recount 6,000,000 ballots.

What it talks about in (C) is simply a sufficient number of illegal ballots received, or illegal ballots rejected, and you've made out a contest.

And as the statute makes clear, each of those provisions is in the alternative, you don't obviously have to make out each one, you make out any one of those five grounds, and you have made out a contest.

So 168(3)(C) establishes both that there is a statutory basis for what we know the Court is doing in terms of reviewing the ballots individually, and that the standard is not to look at all of the ballots statewide, but to look at those ballots that are alleged to be either the illegal ballots received, or the legal ballots rejected.

Now, the Intervenors, and to some extent, Mr. Clark, say that there is an unfairness here because you are only challenging, we are only contesting, certain counties.

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The problem is that the statute gives the party bringing the contest the right to contest particular ballots. Particular ballots that they say are either legal votes rejected or illegal votes received.

They, of course, have a rights to bring a cob test of their own, they have chosen for a variety of reasons not to do that. But that does not limit the rights that we have under section 168. Because under 168, if we can establish, again, a sufficient number of illegal votes rejected or illegal votes received, that makes out the contest, and that makes out the contest regardless of what happens in other situations, or what happens in other counties, or whether or not other people have or have not brought a contest.

Now, some of the Intervenors recognize this. Some of the Intervenors unlike Mr. Klok, say: The statute is unconstitutional because it provides this specific act.

We agree that it provides this specific act, but we don't agree that it makes it unconstitutional. There is no due process, no equal protection, no plausible constitutional claim that this statute is unconstitutional, nor did the Supreme Court think so a week or ten days ago when it specifically discussed the importance of the contest period, and specifically limited the certification period in order to allow for that contest to go forward.

Another argument that we hear from Mr. Klok and from

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some of the Intervenors is that we must protect Governor Bush from his lawyers. Governor Bush's lawyers simply didn't realize that they ought to go out and make a contest or they mistakenly decided not to, so what ought to happen is this Court ought to protect Governor Bush from his lawyers and say: Okay, they didn't ask for a recount, so we're going to force the Plaintiff to ask for a recount for Governor Bush.

There is no support in the case law, and no support in the statute for that kind of paternalism.

The statute provides that the Plaintiff gets to select which are the ballots that the Plaintiff is going to contest.

And it is quite true that the election, it is the election contest, not merely a ballot contest, but what turns a contest of specific ballots into an election contest is the provision of 1638 (3)(C) that you have contested enough ballots successfully, to either change the result of an election, or to place that election result in doubt.

So the standard is right there in the statute, and that, of course, the standard that the Florida Supreme Court has repeatedly upheld.

Let me turn to the question of Palm Beach. In his argument, Mr. Richard said that they were challenging what the Canvassing Board had done in Palm Beach. First, I don't think that there is any basis to do that, given the uncontested testimony of Mr. Burton.

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However, I do remind Mr. Richard and the Court that, at a hearing this week, on November 28th, the transcript at page 44, Mr. Richard said: And this was in response to a question, as to whether the Defendants objected to any ballots that Palm Beach County Canvassing Board reviewed, and therefore, whether there were any ballots preserved that they needed to bring up, he says, "We believe that the Canvassing Board acted within its discretion, and within the order of Judge LaBarga, so we have not challenged what they did." That's what he said two or three days ago, we think that is entirely consistent with Judge Burton's testimony here.

As far as those 215 ballots are concerned, we think the uncontested evidence is that reflects the intent of the voter, which is what Florida law, in an unbroken string of cases, requires to be counted.

Now, in terms of making that count, we, of course, argue that that has to be made by the Court. We've said that's in the statute. We've said that in the cases. I challenge them to come forward with a case. The last speaker says: Well, we don't need a case.

Generally my experience, and perhaps the Court's, is when a lawyer says: We don't need a case, they don't have a case, because if they had a case, they would have told the Court about it. But we do have some cases and one of those cases is State v. Smith, and the Court will remember

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Mr. Richard saying: The review of the ballots by the courts wasn't an issue in State v. Smith.

Well, actually, on 144 Southern at 336, the page that I actually cited earlier today, the Court, Florida Supreme Court, talks about how the ballots themselves can become, quote, the best evidence of how the electors voted and such ballots may be examined by the Court as the original evidence when necessary to verify the accuracy of the returns.

And, of course, in Bechstrom, while the Supreme Court did not review the ballots themselves, there the Supreme Court approved the Circuit Court having those ballots reviewed by the Clerk, subject to the Court's review.

So there is, we think, clear precedent under Florida law for the Court's review of the ballots. We think it's clear that that's a judicial review.

There is no case about discretion. There is nothing in the 168 statute that suggests that it is an abuse of discretion standard. Indeed, there is nothing in 168 that talks about the Canvassing Board having any discretion at all.

And to digress for a moment, even with respect to Section 166, which is not involved here, but they have talked so much about it, let me spend a moment on it, even with respect to 166, the only discretion that that statute gives the Canvassing Board is whether or not to do a sample manual

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recount. Once they have done a sample manual recount, and the results of that sample manual recount indicate that there's enough of a difference to effect the results of the election, they have a mandatory obligation to go forward. There's no discretion there, and there's no discretion as to how to count the votes.

The votes are to be counted by the intent of the voter. They have an obligation to discern the intent of the voter. That's the standard, there's no discretion given to them in terms of how that works.

And for them to say: Well, you're going to turn every election contest into a manual recount, ignores the entire history both of this case, and of every other election contest case that's ever been filed, because every election contest case focuses on specific ballots.

Going all the way back to the 1916 gubernatorial election, coming all the way forward to Bechstrom, the election contests have focused on specifics ballots. You've not had a situation where anybody, and certainly not the Plaintiffs in this action, have asked the Courts to go back and do a full manual recount of all the ballots that probably is not permitted under the statute, but nobody asks for that, because nobody believes that would be practical.

The only people asking to bring all of the millions of ballots here to the Court are the Defendants, and we think

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the reason for that is transparent. The Plaintiffs in this case, like every election contest case, attempt to focus on the ballots that they can demonstrate are either -- in the language of 168, legal votes rejected, or illegal votes received.

And one of the Defendant's counsel said, there isn't any authority that relates to whether or not the Canvassing Board has an obligation to go forward once they've done the sample.

Well, of course, just in the last few days, in the Miami-Dade Democratic Party against Miami-Dade Canvassing Board, the Third District Court of Appeal held that once Miami-Dade had done the sample recount, that you had a mandatory obligation, a mandatory obligation to go forward. And the District Court of Appeals also held that that sample recount of just six votes in Defendant's own counsel's words, out of three precincts, was, quote, an error in the vote tabulation which could affect the outcome of the election, closed quotes. That's from the decision of the Court of Appeals.

There isn't any doubt that the number of votes here at issue, could affect the result of this election, that's what the Court of Appeals held, now, they could not use mandamus to allow them to continue to count and certify those results.

We've now moved though, from the manual recount, the

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166 stage, to the contest stage, and that finding of the District Court of Appeals, that the sample of Miami-Dade shows an error in the vote tabulation, which could affect the outcome of the election, is virtually the same standard as exists in 168 (3)(c).

When that finding is made, there is simply, I respectfully suggest, no way out of counting those remaining 9,000 ballots, and no way out of reviewing the 388 ballots that have already been designated as votes, if the Defendants object to them.

There was some talk, not as much as there might have been if their witness, Mr. Ahmann, testified on Cross, as he did on Direct, but there still was some conversation tonight about the fact that there are multiple ways for dimples to arise.

However, I remind the Court of what Mr. Ahmann testified to, and without contradiction, and that is if you look at the ballot, if you look at a ballot individually, you can tell whether that indentation or crease has been made by somebody's fingernails, or by bending the card or by a stylus, because he said the stylus is going to make an impression that you're going to be able to discern.

So that even if it were the case that there were a variety of things out there creating indentations, a manual review, an individual ballot review by the Court, or the

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Court's designee, can determine which of those indentations fairly can reflect the intent of the voter.

The Miami Dade Canvassing Board did that with about 20 percent of the precincts. They didn't get to the rest. That needs to be done, and we think it must be done now in a contest proceeding. If they had been done in time to be certified and if somebody contested it, the Canvassing Board could have done that. Canvassing Boards do that in most elections. Canvassing Boards have done that in most counties in this election without contest.

But where there is a contest of specific ballots, those ballots, themselves, are as the Court in Smith said, the best evidence of how the electors voted and such ballots may be examined by the Court as original evidence when necessary to verify the accuracy of the returns.

Let me spend just a moment on Nassau County. There was an argument that the last sentence of 102.141(4) doesn't relate to the mandatory machine recount, that somehow, it was relating to just checking counters, or something like that.

The whole section starts out dealing with the mandatory machine recount. That's what that whole section is about, that's what the whole Section 4 is about. I respectfully suggest there simply is no credible way that you can read that last sentence as meaning anything other than that the tabulation that is made as a result of the machine manual

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recount, the statutory mandated machine recount, is the return that has to be canvassed.

And if you think about it, what they're really saying -- and I wrote this down, they said, "The only rational explanation is that you must have missed some ballots, when you have a discrepancy, and the second count is lower than the first count, you must -- the only rational explanation is that you missed some ballots."

If that is the case, then the statute would have said you do this machine recounting and you take whichever is higher, because if it's lower, you go back to the original one, that's not what the statute says, the statute says you do the machine recount, and that's the number you take, everyone knows that. That is what Nassau County itself did.

I'm not saying that they didn't, or might not have you believe that there were some ballots missing. But that belief is no substitute for the statute, particularly where you have other mechanisms to test whether that's right or not.

They could have opened up, through a Court order, through a contest, with the permission of the Secretary of State, or the Elections Commission, a whole variety of ways, to access those ballots, and to see which count was right.

You've got two counts. You've got the first count and you've got the second count. The statute says take the

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second count. Even if I didn't have a statute that says take the second count, the mere fact that you've got the ones that are different, doesn't tell you which is right. The fact that one is higher, the higher result is not always the right result.

That's particularly true when nobody had ever looked to see whether the hypothesis of these upside down ballots is valid or not.

There was also a statement by Mr. Klok, I believe it was Mr. Klok, either Mr. Klok or Mr. Richard, that there was testimony that there was nothing wrong with the machine. I don't recall that testimony.

The Court, obviously, has his own notes, and we can both cite the transcript to the Court. But I don't recall the testimony that anybody had checked the machines to figure out whether anything was wrong with it, but whether they had checked the machines or not, you still simply have two results that are different. And they just picked, without any further checking, the higher result. The statute says you can't do that.

Even if the statute didn't say that, common sense would say you can't simply refer the higher result to the lower result.

There were two questions that Mr. Richard left with the Court. One question was what standard should the Court apply

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in looking at these ballots, and I suggest that that standard has been set by the Florida Supreme Court, and indeed is set by the Pullen case, and is set by Judge LaBarga, and set by the Dellahunt case, which Judge LaBarga relies on, is to look for the discernible intent of the voter.

They quoted some language from Pullen as to whether you could fairly and satisfactorily ascertain the intent of the voter. I think that's basically the same standard. They refer to Judge LaBarga's opinion, which they point out nobody has appealed, and Judge LaBarga says: You look at the ballot to determine the intent of the voter, and he cites the Dellahunt case, and, of course, the Dellahunt case says in so many words, if you find an indentation on or near the chad, you count that as a vote.

Now, the last argument Mr. Richard makes is he says, "Well, maybe there are some votes there. Maybe there are some people who intended to vote, but it's too late, and that's that."

With respect, Your Honor, the Florida Statutes, and the Florida case law does not permit at this stage saying: We're simply going to ignore the intent of the voter, that it didn't get counted by the machine and that's that. Bad things happen, and this is one of the bad things that happened.

But the statute provides a mechanism for dealing with

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this particular bad thing that happens, and that is to allow a party to come in and get a judicial determination in a contest proceeding, and it requires that you identify the ballots that you want to contest, you bring the ballots in, and allow those to be presented to the Court.

And the Florida Supreme Court could not have been clearer, I suggest, in the Palm Beach County against Harris decision that it rendered this month, or just the end of last month. They said, and, remember, they were talking about this election. They weren't talking about an election for county commissioner, or for sheriff. They were talking about this election for the Presidency of the United States.

And they said that it is of paramount importance that into every vote be counted if you can discern the voter's intent, and they said it is so important to permit that to be tested in a contest proceeding, that we are going to set a deadline for the certification, because it's only when the certification is done that the contest can begin.

And when the Supreme Court made that ruling, they were not merely accepting what we said. They were accepting what Mr. Richard and Mr. Klok said, because they told the Florida Supreme Court that if there's a problem with this election, Vice President Gore and Senator Lieberman ought to challenge it in the contest phase, they ought to bring a contest.

Mr. Klok and Mr. Richard told the Florida Supreme Court

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that there are ballots that you think were not counted that should have been counted, you ought to raise that in a contest proceeding, and we've got to cut off the certification so you can get to a contest proceeding, and these issues can be raised. And the Florida Supreme Court agreed with that, and they said: We're going to cut off the certification proceeding so we can get to the contest, and that's where we are now.

THE COURT: Thank you, Mr. Boies.

MR. KLOK: Yeah, Your Honor, I just want to hand up a couple things, if I could, please, sir. I only have one copy of the Trial Court decision Bechstrom, with Mr. Boies. I hand up to Your Honor, if I could, a copy of the Trial Court decision, in Bechstrom, and this is a copy of the Supreme Court decision, as well.

I also want to call to Your Honor's attention, we incorporated the trial brief, and also a copy of the Fladell (phonetic) decision of the District Court of Appeal, before it flipped up, and particularly the contest on the Judge Kline. And in the trial brief, Tab 13, is the one that contains the undercount votes for all the counties of Florida that I mentioned in the argument.

THE COURT: All right. At this time, Counsel, I need to tell you it was a case well tried and argued. I suppose what I should do at this time, I'll take it under submission,

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and I will give you a decision in the morning. The Court will stand in recess.

(HEARING CONCLUDED AT 11:18 P.M.)

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CERTIFICATE OF REPORTER

STATE OF FLORIDA:
COUNTY OF LEON:

I, **B. J. QUINN,** Certified Realtime Reporter, Registered Professional Reporter, and Notary Public in and for the State of Florida at Large:

DO HEREBY CERTIFY that the foregoing hearing was taken before me at the time and place therein designated; that before testimony was taken, the witness was duly sworn; that my shorthand notes were thereafter transcribed, via computer, under my supervision, and the foregoing pages numbered 1, through 758, are a true and correct record of the aforesaid proceedings.

I FURTHER CERTIFY that I am not a relative, employee, attorney, or counsel of any of the parties, nor relative or employee of such attorney or counsel, or financially interested in the foregoing action.

WITNESS MY HAND AND SEAL this, the 4th day of DECEMBER, A.D., 2000, IN THE CITY OF TALLAHASSEE, COUNTY OF LEON, STATE OF FLORIDA.

B. J. Quinn
MY COMMISSION # CC603438 EXPIRES
March 20, 2001
BONDED THRU TROY FAIN INSURANCE, IN

B. J. QUINN, RPR, CCR, CMR
Certified Realtime Reporter
519 East Park Avenue
Tallahassee, Florida 32301
(850)222-5508

My Commission Expires March 20, 2001

CERTIFICATE OF NOTARY

STATE OF FLORIDA:
COUNTY OF LEON:

I, **B. J. QUINN**, Notary Public in and for the State of Florida at Large, do hereby certify that the witness personally appeared before me and was first duly sworn by me to testify to the truth on the date and time indicated herein.

B. J. Quinn
MY COMMISSION # CC603438 EXPIRES
March 20, 2001
BONDED THRU TROY FAIN INSURANCE, IN

B. J. QUINN, RPR, CCR, CMR
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Clerk of the Circuit Court